



Manual on Electronic Voting Machine and VVPAT

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भारत निर्वाचन आयोग
Election Commission of India
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"Greater Participation for a Stronger Democracy"

FOREWORD

The use of Electronic Voting Machines (EVM) has revolutionized the Electoral System and introduction of Voter Verifiable Paper Audit Trail (VVPAT) system has provided greater transparency to the pollprocess.

This is the 5th Edition of Manual on Electronic Voting Machine and VVPAT, which has been restructured in view of the 100% deployment of VVPATs with EVMs that has been mandated since May 2017. The Manual contains the gist of all important instructions on use of EVM & VVPATs. The Manual has been divided into parts for ease of understanding. Part-I covers storage and movement of EVMs during non-election period, First Level Checking and First Randomization. Part-II covers all processes from second randomization to counting of votes. Part-III gives the historical and legal prospective. Part-IV contains all Annexures.

It is hope that this Manual will prove useful to all election related officials and other stakeholders. The Commission would welcome suggestions from all users of this Manual for making it more informative and useful.

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PART – I

(From Non-Election period to First Randomization of EVMs & VVPATs)

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CHAPTER - 1

STORAGE OF EVMs & VVPATs AND OPENING OF EVM WAREHOUSE & MOVEMENT OF EVMs & VVPATs – DURING NON-ELECTION PERIOD AND DURING EMERGENCY

Physical Aspects of the Warehouse:

- Only (1) entry/exit point
- Seal all other doors/windows of the warehouse using brick-masonry or concrete.
- Install Main switch outside the warehouse/strong room and disconnect electricity after sealing.
- Free from dampness, pests, rodents etc.
- Free from flood/water logging risk/cracks/leakage/broken window etc.
- Provide exhaust fan on the front side at the highest feasible point for air-circulation and install strong iron grill at the vent/passage.
- No other material whether election related or not (except the documents / materials prescribed by the Commission to be kept with the polled EVMs/VVPATs) to be kept with the EVMs and VVPATs.

1.1 Non-Election Period (After C+45 days)

1.1.1 Storage of EVMs & VVPATs

1. In Treasury
2. District Head Quarters
3. If not possible as above then not below the Tehsil Head Quarters with valid reasons.

1.1.2 Security & Safety arrangements for Warehouse:

- Double Lock System with all keys of each lock with two separate officers.
- Minimum Half Section of Armed Police for 24X7 security (only Government Security Personnel)
- Log book for each entry and exit and duty roster
- Videography at the time of the opening and closing of the warehouse
- Fire- extinguishers both inside and outside.

1.1.3 Custody of Warehouse Keys: DEO to remain over all in-charge of the safe custody of EVMs & VVPATs

- All the keys of Lock -1 with DEO & all the keys of Lock-2 with Dy. DEO
- Warehouse outside the District HQ- all the keys of Lock -1 with SDM & all the keys of Lock-2 with Tehsildar.
- Deposit keys in Treasury and maintain proper log book for depositing and taking out the keys.
- Handing over and taking over of the keys to be a part of CTC.

1.1.4 Protocol for opening of warehouse:

- Inform National and State recognized political parties in writing, at least 24 hours in advance, about the date and time of opening and closure of EVM/VVPAT warehouse.
- Do not open Warehouse having EVMs/VVPATs in Election Petition or court cases for any purpose.
- DEO to nominate an Officer not below the rank of Tehsildar for the purpose of opening/closing of EVM-warehouse.
- Allow Political Parties Representatives to remain present during opening and closing of the warehouse.
- Conduct of videography is mandatory.
- In case of exigencies like flood or fire etc, if videography is not feasible, video of opening/closing of warehouse shall be made through mobile.
- In case of exigencies like flood or fire the CEO/DEO may shift the EVMs/VVPATs under intimation to the Commission and also take post facto approval.
- Maintain details of EVMs/VVPATs in a Master Stock Register (MSR) for every district as per format in **Annexure –1**.

1.1.5 Monthly/Quarterly Inspection of warehouse by the DEO

- Monthly inspection of sealed warehouse every month and submit inspection report by 5th day of subsequent month to the CEO concerned in **Annexure-2**.
- Quarterly inspection report of opening and checking the warehouse for its internal condition by 5th day of April, July, October and January every year and submit report to the CEO concerned in **Annexure-2**.
- The CEO shall submit consolidated report to the Commission by 15th day of every month.

1.1.6. After completion of FLC, store EVMs/VVPATs in Strong Room till first randomization of EVMs & VVPATs with minimum 1 section security and CCTV coverage.

CHAPTER-2

FIRST LEVEL CHECKING (FLC) OF EVMs & VVPATs

2.1 Overall Responsibility of FLC – DEO is responsible for overall FLC process and to ensure strict adherence & compliance of FLC instructions by appointing an Addl./Dy. DEO, fully trained with FLC process, as FLC supervisor.

2.2 WHEN FLC TO BE PLANNED:

- Before every General and Bye-election to State Legislative Assembly and Lok Sabha.
- Within one – month of occurrence of vacancy in case of bye-election.
- Around P-120 day in case of General Election to State Legislative Assembly and P-180 day in case of Lok Sabha
- Complete FLC preferably before issue of notification calling the election.

2.3 SCHEDULE OF FLC:

- CEO/DEO to prepare Schedule for FLC in consultation with EVM Manufacturers (ECIL & BEL).

Intimation to political parties:

- Ensure presence of representatives of political parties during FLC.
- Communicate FLC schedule to every National and State level recognised party at the district headquarters and endorse copy to State headquarters in writing atleast 2 days before the beginning of FLC.
- Record their signatures every day on the register kept at FLC Hall in **Annexure-3**.
- Ensure timings of FLC from 9 am to 7pm on all days including holidays.

2.4 Arrangements in the premises of FLC:

- a. Spacious hall to accommodate the EVMs/VVPATs, officials nominated by DEO, engineers of BEL/ECIL and the representatives of political parties.
- b. Large, well-lit, well ventilated and dust free hall. Non-heating high illumination LED lights to be installed so that each table is brightly lit.
- c. FLC area to be fully barricaded and sanitized by police.
- d. Ensure the hall is free from any electronic components device, except those permitted by the Commission for the purpose of recording FLC process etc.
- e. Make proper arrangements like drinking water, toilets, first aid, fire extinguishers, fire alarm inside and outside the hall

- f. Single entry and exit to hall with full security by armed police forces (minimum one section) round the clock with 24X7 CCTV coverage.
- g. Paste copy of the Detailed Standard Operating Procedure (SOP) mentioning step by step instructions in FLC hall.
- h. Entry to hall through Door frame metal detector (DFMD) on production of Identity card of authorised official/pass issued by DEO.
- i. Proper frisking of every person/officer/engineer at every entry with record in the log book for every entry and exit.
- j. Cell phones, camera, spy pens etc. not to be allowed inside the FLC hall and kept at the collection centre made outside the hall **except for two mobiles, to be used by the election officials nominated by DEO for marking FLC-OK and one mobile to BEL/ECIL engineer to mark FLC-Reject in EMS using mobile app with proper reason.**
- k. **No** other equipment allowed inside the hall except those mentioned in FLC Standard Operating Procedure (SoP).
- l. Web casting of the entire FLC process and monitoring the same in the Control room at DEO and CEO level and submission of report to ECI.
- m. **Inspection of preparedness and quality check of FLC:**
 - o In case of bye-election(s) to Parliamentary/Assembly Constituency (ies), EVM Nodal Officer of the State/UT concerned shall do inspection.
 - o In case of General election to Lok Sabha/State Legislative Assembly, Nodal Officer(s) of other States/UTs shall be deputed to do surprise inspection. In Lok Sabha election, State Officers/NLMTs/ECI consultants may also be deputed.
 - o They submit report to the Commission in **Annexure-4**.

2.5 Manpower in FLC:

- a. FLC only by authorised engineers of BEL and ECIL. BEL and ECIL shall be fully responsible for the integrity, efficiency and competence of their engineers.
- b. Randomisation of list of engineers deputed by BEL/ECIL for carrying out FLC by the CEO for District-wise allocation and intimation of this list alongwith engineers cell numbers to DEO.
- c. Deputation of Sr. level engineers at State Headquarters as well as each district headquarters by BEL/ECIL to supervise FLC.
- d. Deputation of one Manager by BEL/ECIL for 4-5 districts to remain in the field for daily supervision & co-ordination.

- e. No entrance of engineers, technicians or other technical staff except authorised engineers/ technical staff of BEL and ECIL to the FLC Hall.
- f. Deployment of sufficient unskilled labour by the DEO for cleaning, unpacking and packing of EVMs and VVPATs in consultation with the manufacturers.

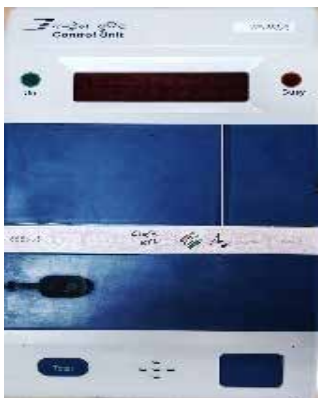
2.6 Work to be done during FLC:

- a) **Cleaning of machines** which includes removal of address tags, ballot papers, cleaning of superscriptions of BU & CU, clearing of earlier poll data, dusting of BU & CU etc. in the secured place under supervision of FLC In-charge and engineers.
- b) **Visual Inspection** of carrying cases, EVM, VVPAT, connecting cable, connector, latches etc. to ensure no structural damage or breakage of plastic parts, latches, switches etc.
- c) **Full functionality checks:**
 - Diagnostic test of each BU, CU and VVPAT prescribed by the manufacturer.
 - Checking of all switches in CU, BU, doors (flaps), sealing provisions, scratches on acrylic screen etc.
 - Check response of all switches and carry out tests prescribed by the manufacturers as per the SOP to confirm all the components of the EVM are original by engineers
 - Ensure opening of Plastic Cabinet of BU & CU by the authorized engineers in the presence of representatives of political parties at the time of FLC and show PCB and other components to them and certify the same in **Annexure-5**.
 - 1 vote for each of the 16 candidate buttons and observation of result and clearing of mock poll data for each EVM (BU+CU)
 - In case of VVPAT, mock poll of 6 votes against each candidate button and tally with the electronic count and VVPAT paper slips for each VVPAT.
 - Paste Green FLC OK stickers on the FLC-OK machines and Red FLC Reject stickers on the FLC-Reject machines and ensure signatures of engineers of BEL/ECIL and FLC Supervisor.
- d) **Conduct of Mock Poll:**
 - **In addition to above, Mock poll in 5% of randomly selected EVMs (i.e. 1200 votes in 1% EVMs, 1000 votes in 2% EVMs and 500 votes in 2% EVMs),** using VVPATs, in the presence of political parties. Count Printed ballot slips of each VVPAT and tally with the electronic result of the CU and show to the representatives of the political parties present and take their signatures in a register at **Annexure-6**. as their confirmation of no discrepancy between the electronic count and VVPAT paper slips.

- Allow representatives Pick machines randomly for the purpose of mock poll and also to do the mock poll themselves if they desire and take their signatures in the register at **Annexure-7 and Annexure-8** respectively.
- e) Destruction of VVPAT paper slips generated during FLC on daily basis through shredding machine.

2.7 Sealing of plastic cabinet of Control Unit of EVMs with Pink Paper Seal:

Sealing of plastic cabinet of Control Unit of EVMs with pink paper seal:



- Seal CU with Pink Paper Seal (supplied by Indian Security Press, Nashik) on the portion between the Candidate Set Section and the Result Section of the CU
- Take signatures of the Engineer and the representatives of the political parties present along with the party name in abbreviations below their signatures. Allow them to note down the serial number of the pink paper seal.
- Maintain a register in **Annexure-9** for mentioning the unique number of CU and serial number of pink paper seal and take their signature and provide photocopy.
- Provide photocopy to the political parties and also to all the contesting candidates as soon as last date of withdrawal of candidature is over and take their acknowledgement.
- Ensure the availability of photocopy of the register at the time of commissioning of EVMs/VVPATs.

Defective units

- **Do not perform any electronic repair during FLC of EVMs/VVPATs.** However, mechanical repairs i.e. replacement of broken/damaged switches, buttons, latches, hood, cable, RTC cell, spindle etc. are allowed for which no soldering is required, so BEL/ECIL deputed engineers with adequate number of spares with them.
- Mark defective units (containing Unit ID of BU/CU/VVPAT with defect observed) in EMS.

- If any EVM is found defective, keep aside and send back to factory within 7 days of completion of FLC.
- Club dispatches from more than one district to economize transport.

2.8 Supervision of FLC:

- Under direct and close supervision of DEO.
- Ensure supervision and arrangements for FLC as per ECI instructions under FLC supervisor (officer not below the rank of Additional/Dy. DEO) and submit a certificate in **Annexure-10** to the CEO through DEO.
- Daily inspection of venue and process of FLC by DEO.
- DEO/CEO to monitor through web cast.
- If webcasting is not feasible due to connectivity issue then CCTV coverage shall be done for monitoring and recording purpose with the approval of the CEO concerned.
- Set up Control Room at CEO & DEO offices for monitoring.
- Conduct surprise inspections for FLC process and send the reports to the Commission.
- Send FLC completion Certificate to the Commission in the format given at **Annexure-11**. Update FLC status (FLC OK or FLC Reject) of the EVMs in EMS on daily basis using mobile app.

Note: FLC of EVMs and VVPATs for bye-election to the Assembly Constituency

For First Level Checking (FLC) purpose, the requirement of EVMs and VVPATs shall be 200% of number of polling stations of the Assembly Constituency.

Note: FLC of EVMs and VVPATs for General Election

For First Level Checking (FLC) purpose, the requirement of EVMs shall be 125% and VVPATs shall be 135% of the number of polling stations.

CHAPTER – 3

FIRST RANDOMIZATION OF EVM/VVPATs

3.1 Steps for First Randomization to be done by DEO:-

Before 1st Randomization, take out 10% EVMs and VVPATs for training and awareness purpose and mark as “Training and Awareness” in EVM Management Software (EMS).

Use EMS for First Randomizations of EVMs and VVPATs.

Conduct First Randomization in the presence of the representatives of recognized political parties

In case of General/Bye-elections to Legislative Assembly, Allocate EVMs and VVPATs Assembly Constituency-wise.

In case of General/Bye-elections to Lok Sabha, Allocate EVMs and VVPATs Assembly Segment-wise.

In case of Simultaneous Elections to the Lok Sabha and State Legislative Assembly, Allocate EVMs and VVPATs Assembly Segment-wise (for PC), as well as, Assembly Constituency-wise (for SLA).

Exceptional cases:
In case Assembly Constituency/Segment is falling in two or more districts (Refer Scenario-4)

DEO will fix a schedule, after announcement of election(s) by the Commission.

Execute Randomization in such a way that the CUs, BUs and VVPATs are randomly selected using EMS to match the poll day requirement including the Reserve required for each Assembly Constituency (AC)/Assembly Segment (AS).

Provide the list of randomized BUs, CUs and VVPATs to each recognized political party and obtain written acknowledgement.



Taking charge of EVMs by ROs/AROs, as the case may be.



Receiving of Randomized machines in AC/AS Strong Room using Mobile App.

During the General Elections to the Lok Sabha, the States/UTs may face the following scenarios:

Scenario No.1: When the entire district consists of the PC, the District Election Officer

(DEO) is the custodian of EVMs/VVPATs of that district and the Returning Officer of that PC.

Ex: PC consists of only one District-A having 9 Assembly Segments (AS) (a, b, c, d, e, f, g, h and i).

District-A (1-PC = 9 AS: fully covered in District -A)

a	b	c
d	e	f
g	h	i

Shaded Area is PC

Scenario No.2: When the entire two or more districts consist of the PC, the DEOs are the custodian of EVMs/VVPATs of the respective district and the DEO of one district is the Returning Officer of that PC.

Ex: PC consists of two Districts-A & B. District-A having 9 AS (a, b, c, d, e, f, g, h and i) and District-B having 4 AS (j, k, l and m). DEO of District-A is the RO of PC.

District-A District-B

a	b	c	j	k
d	e	f	l	m
g	h	i		

Shaded Area is PC

Scenario No.3: When the PC consists of entire district as well as some AS of some adjoining district/districts and the DEO of this district is RO of the PC.

Ex: PC consists of entire Districts-A (a, b, c, d, e, f, g, h and i) & some AS of District-B (only AS-j) & District-C (only AS- o and p). DEO of District-A is the RO of PC.

District-A			District-B	
a	b	c	j	k
d	e	f	l	m
g	h	i	Shaded Area is PC	
n	o	p		
q	r	s		
District-C				

Scenario No.4: The PC consists of entire district as well as some AS or some parts of AS of some adjoining district/districts and the DEO of this district is RO of the PC.

Ex: PC consists of entire Districts-A (a, b, c, d, e, f, g, h and i) & some part of AS of c i.e. c(ii) of District-A is in District-B & some AS of District-C (only AS- o and p). DEO of District-A is the RO of PC.

District-A			District-B		
a	b	c	c	j	k
d	e	f	l	m	
g	h	I	Shaded Area is PC		
n	o	P			
q	r	S			
District-C					

3.2. Clarification on percentage of EVMs (120%) and VVPATs (130%) to be kept for first randomization.

- Randomize all the CUs and VVPATs available in the district for allocating them to AC/AS wise. Hence, as far as possible equal percentage of Control Units, allocate to all the ACs/ASs without retaining any CU at District level.
- In case of BUs of EVMs, randomize the number of BUs equivalent to number of CUs for allocating them to AC/AS wise i.e. the percentage of BUs should be equal to percentage of CUs at each AC/AS.

- (c) The remaining BUs should be available in the FLC strong room at the District level for allocating to the PC/AC where more than one BU would be needed after withdrawal of candidatures. However, this additional allocation after withdrawal should also be randomized.

3.3. IDENTIFICATION AND RECOGNITION OF EVMs & VVPATs FOR SIMULTANEOUS ELECTIONs

For clear identification and recognition of EVMs and VVPATs for simultaneous elections:

- (i) Paste distinct colour (same that of ballot paper) self-adhesive stickers containing the words 'LOK SABHA' or 'LEGISLATIVE ASSEMBLY', as the case may be, on the carrying cases of BU, CU and VVPAT.
- (ii) Apart from the above, paste distinct colour (same that of ballot paper) self-adhesive stickers containing the words 'LOK SABHA' or 'LEGISLATIVE ASSEMBLY', as the case may be, on top cover 'BATTERY SECTION' of the CU and on top of VVPAT.
- (iii) Size of self-adhesive sticker - **6 cm x 3 cm**.

CHAPTER - 4

REPAIRING OF DEFECTIVE EVMs & VVPATs

The defective EVMs are sent to the factory of the manufacturers concerned of the EVMs/VVPATs, namely, BEL & ECIL for necessary repairs.

Strictly follow the following protocol for defective EVMs/VVPATs: -

1. Send FLC rejected EVMs/VVPATs to the manufacturers for repair within **7 days** of completion of FLC in that district. The CEO will coordinate and club defective Machines of multiple districts for dispatching to the factory.
2. **No movement of EVMs/VVPATs (defective or defect-free) during the period from commencement of Candidate setting to the Counting day. Only transportation of EVMs/VVPATs required for use in poll** in subsequent phases is allowed under intimation to the political parties/candidates.
3. Store all Defective EVMs/VVPATs not used in the poll in a separate room/warehouses, preferably in a separate campus and never with working EVM/VVPATs.
4. **POST ELECTION REPAIRS:** After election, send all the defective EVMs & VVPATs to the respective factory for repairs.
5. After repairs are carried out, BEL/ECIL to follow exactly the same testing protocol for all repaired machines as for new EVMs/VVPATs.
6. The manufacturers shall not return the repaired EVMs/VVPATs to the respective State/UT and keep these repaired EVMs/VVPATs in the factory. CEOs/DEOs are not required to take back the EVMs/VVPATs sent to the factory for repairs. **Further allocation of these repaired EVMs/VVPATs will be done by the Commission only.**
7. The manufacturers will furnish a report of the repaired EVM/VVPAT to the Commission.

Expenditure on Repairing of defective EVMs/VVPATs: Sender State will bear the payment for repairing of all defective EVMs & VVPATs. The States/UTs where no specific Head for meeting the expenses on repairs/maintenance of EVMs & VVPATs exist they may create necessary sub head viz. **“Maintenance of EVMs”** for the purpose in consultation with the State Government.

No electronic repair can be done during FLC (except mechanical).

Shifting of these defective EVMs/VVPATs through EMS only.

CHAPTER-5

TRAINING AND AWARENESS

- Take out Only **FLC OK** machines (upper ceiling of 10% of the total number of polling stations in the District) for the purpose of Training and Awareness and change their status “Training and Awareness” in EMS so that these EVMs and VVPATs cannot be used for Randomization.
- No distinction between training and awareness EVMs/VVPATs to utilize maximum number of EVMs/VVPATs for training and awareness purpose inter- changeably.
- Affix Yellow Colour Sticker mentioning “Training/Awareness” on such EVMs and VVPATs and store in a separate designated warehouse with same protocol followed as is done for strong room having FLC OK EVMs and VVPAT with keys kept with two separate officers.
- Invite the Political Parties, Candidates/their agents to witness the process and share the list of the machines taken out for Training and Awareness purpose. Circulate a copy of finalized schedule of Awareness and video graph the entire process.
- At the end of each day during training and awareness programs, DEO shall ensure storage of these EVMs and VVPATs in a secure Govt. Office/Govt. building only and if it is not possible, then store in the nearest block/tehsil headquarters under proper security.
- Maintain proper log book.

VVPAT DEMONSTRATION

- A demonstration of VVPAT system by the DEOs & ROs for political parties and candidates and electors respectively at suitable locations.
- Pasting of the poster “How to Cast Your Vote Using EVMs and VVPATs” (**Annexure-12**) at prominent places of the constituencies and at each polling station in a manner that voters waiting in the queue can read.
- The DEO and RO should also organize programmes for awareness about use of EVMs with VVPAT on print media and local cable-network etc. A short film on How to Cast Your Vote using VVPAT with EVM shall be made in regional language for this purpose.

Protocol to be followed:

- i. Deputation of fully trained authorized officials by DEO for training and awareness purpose.
- ii. No demonstration in an open area to shield VVPATs from direct sunlight.
- iii. Keep the Ballot Unit and VVPAT together so that voters can see the printed paper slip in VVPAT.
- iv. Explain the Voters about the process of using EVM with VVPAT and also about the use of VVPAT with EVM in elections.

- v. Maintain a Register to record votes and signatures of all the participants on daily basis in the demonstration process.
- vi. Engineer(s) will only use dummy symbols for ballot paper(s) and VVPAT as mentioned below:
 - a) For name of candidates- AAA, BBB, CCC,and so on;
 - b) For symbol of candidates- Alpha (α), Beta (β), Gama (γ)...and so on.

Sample:

For Training/Demo/Awareness		
1	AAA	A
2	BBB	B
3	CCC	Γ
-	- - -	-
-	- - -	-

- Engineers will carry out Symbol Loading Unit (SLU) or symbol loading and preparation of sample ballot papers.
- At the end of demonstration, clear out the electronic result of the CU & remove the VVPAT slips from the VVPAT drop box. Further, it has to be ensured that on the next day the same process is repeated.
- Destruction of VVPAT Printed Slips using paper shredder on daily basis.

A list of avoidable mistakes during training & awareness to be provided to official deputed for the said purpose:

AVOIDABLE MISTAKES

- Re-loading of Dummy Symbols for 16 candidates (including NOTA) in the 1% VVPATs used for testing with 4-BUs having 64 dummy symbols (including NOTA). It should be ensured that VVPAT slips print as per the dummy ballot papers used.
- Irregularity on use of Dummy Symbols. It should be ensured that VVPAT slips are printed as per dummy ballot papers used.
- In case of M3 EVMs, M3 VVPATs should be connected at the time of commissioning of the EVMs otherwise EVM will not accept a VVPAT at a later stage. Hence, for awareness purpose candidate setting in M3 EVMs should be done using Ballot Unit and VVPAT.
- Lock paper roll when transporting the VVPAT from one place to another. Otherwise, VVPAT may go into error mode.
- Do not switch on the VVPAT in broad daylight or directly under a bulb or halogen lamp at the time of awareness demos as the VVPAT may go into error mode. Hence, ensure that awareness on EVM and VVPAT shall be done in shaded/closed area.

- Do not repeatedly switch ON and OFF the VVPAT as it will deplete the battery as well as paper roll.
- Switch OFF the CU when connecting or disconnecting the EVMs/VVPATs and do not pull the cable for disconnecting.

NOTE:

- In Assembly Constituencies having 100 or more polling stations, it shall be mandatory for the DEO to ensure that atleast 5% of the EVMs and VVPATs taken out for training and awareness purpose are re-introduced as Poll-day Reserve after de novo FLC, randomization, candidate setting etc. are carried out as per the extant instructions of the Commission. For ACs having less than 100 polling stations, the number of training/awareness EVMs and VVPATs to be re-introduced in the poll-day Reserve pool may be decided by the DEO as per the specific local requirement. In any case, effort must be made to ensure maximum machines from the training/awareness lot are re-introduced as Poll-day Reserve to optimize the utilization of machines for polls and the list of all such EVMs and VVPATs be shared with representatives of political parties with acknowledgment.
- Add the Training and Awareness EVMs/VVPATs to poll day reserve, if required, only after following process of FLC, randomization and Candidate Setting in the presence of political parties/contesting candidates/their agents.

TRAINING OF MASTER TRAINERS, POLLING PERSONNEL, COUNTING PERSONNEL AND STORAGE PERSONNEL:

- Presiding Officers, Polling Officers, Returning Officer, Assistant Returning Officers, Sector Officers and Counting Personnel must be given hands-on-training related to their role/duties on use of EVMs with VVPATs.
- Every official to get an opportunity to operate the EVM with VVPAT system and understand the process of recording the vote using VVPAT.
- Separate training to be given on counting of printed paper slips from the VVPAT system and tallying the count of VVPAT paper slips with the count of the Control Unit.
- A copy of VVPAT brochure (**Annexure-13**) should be given to all officers during training and be made available at polling station on poll day.
- A training session may be incorporated in the training module of State Public Administration Institutions, on operation & use of VVPATs.

Hands-on Training on VVPAT slips counting during training of counting staff as well as at the time of mock drill of counting of votes

- Only EVMs & VVPATs pertaining to training and awareness shall be used.
- Only dummy symbols prescribed by the Commission shall be used.

- For mock drill of VVPAT slips counting, a dummy VVPAT Counting Booth (VCB) shall be made.
- For mock drill atleast 500 VVPAT slips shall be generated.
- Mock drill of VVPAT shall be conducted in the presence of the ECI Observer.

DESTRUCTION OF VVPAT SLIPS GENERATED DURING TRAINING & AWARENESS

- Destruction of VVPAT slips generated during the training and awareness using Paper Shredding Machine on a daily basis, in the presence of a Gazetted Officer duly nominated by the DEO.
- Issuance of a certificate by the Nodal Officer in-charge of Training and Awareness exercise regarding the daily destruction of all VVPAT as per Commission's direction.
- Further, the DEO shall submit a Certificate to the respective CEO on P-3 day for the entire district attesting the compliance of these instructions.

NOTE: Use only FLC-ok EVMs & VVPATs with dummy symbols for training, awareness and demonstration purposes.

PART – II

(From Second Randomization of EVMs & VVPATs to Counting of Votes)

FROM SECOND RANDOMIZATION OF EVMs AND VVPATs TO COUNTING OF VOTES			
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CHAPTER - 6

STORAGE & MOVEMENT OF EVMs & VVPATs AND OPENING OF EVM-WAREHOUSE

6.1. Election Period

6.1.1 Pre-Poll Storage: After first Randomization of EVMs & VVPATs till dispersal of polling parties

- a. After first randomization of EVMs, hand over EVMs and VVPATs to the RO/ARO concerned, as the case may be, under proper armed police escort.

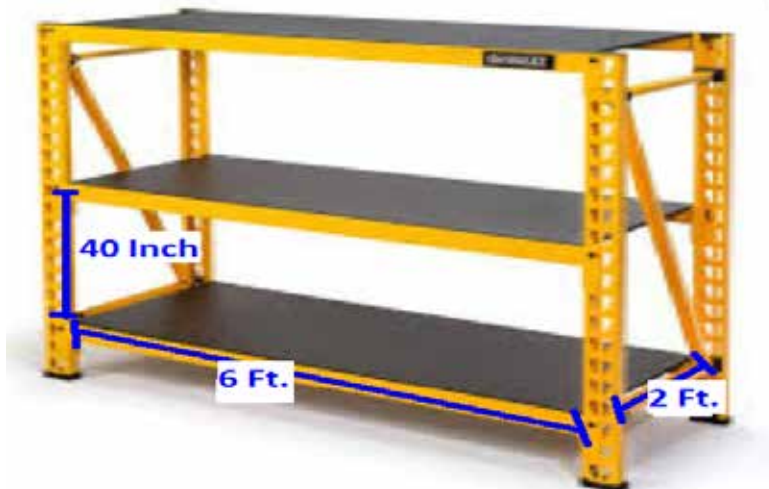
Guidelines to be followed:

- Store EVMs/VVPATs in a strong room in the presence of representatives of National/State Level Political Parties under Videography.
 - Keep Training and awareness EVMs & VVPATs in a separate strong room.
 - 1 Section Security and CCTV coverage 24X7
- b. Store EVMs and VVPATs in separate strong rooms Assembly Constituency (AC)/Assembly Segment (AS) wise.
 - c. In case of simultaneous elections, store EVMs and VVPATs pertaining to AC/AS separately in separate strong rooms.
 - d. In exceptional cases, only with the prior approval of the Commission make temporary separate strong rooms for each AC/AS within large strong room with separate entry.
 - e. Open the Strong Room at the time of commissioning of EVMs & VVPATs.
 - f. After commissioning, keep EVMs & VVPATs again in the strong room and open on the day of dispersal in the presence of **candidates** or their representatives.

6.1.2 Post-Poll Storage (Polled EVMs/VVPATs storage): After poll till counting day

- a. After completion of poll, escort back the complete set of machines (BU, CU & VVPAT) of a particular polling station to the Polled strong room.
- b. Store unused EVMs & VVPATs in separate “Reserve EVM” strong room in other location.
- c. Earmark specified parts of the floor space in the form of squares in advance for stacking the voting machines received from particular polling stations with their serial numbers in one square in the strong room. If not feasible, to accommodate all EVMs/VVPATs in one strong Room follow the protocol mentioned below:

- Keep polled EVMs and VVPATs (including defective polled) in multiple strong rooms, adjacent to each other, and outside each strong room paste a notice indicating the particulars of the elections, AC/AS name and No. and serial number of polling stations whose EVMs/VVPATs are kept inside.
- Fabricated steel/iron/wooden multi-layer storage rack for storing polled EVMs & VVPATs (including defective polled) as per ECI specifications



6.1.3 Security & Safety arrangements for Polled EVM & VVPAT Strong Room:

- Single Entry / Exit with all other doors/windows sealed with brick masonry / concrete.
- Double Lock System.
- All the keys of Lock-1 with RO and all the keys of Lock-2 with ARO
- Minimum One Platoon of Armed Police for 24X7
- Two tier security arrangements round the clock. Innermost perimeter by CPAF and outer perimeter by State Armed Police.
- IP Controlled CCTV Camera with DVR and Uninterrupted Power Supply.
- Operative Control Room adjacent to the Strong Room.
- Log book for each entry, exit and duty roster for security personnel.
- Separate Log book for authorized officials (including Observers, DEOs or SPs) crossing the second security ring i.e. the middle perimeter under Videography.
- Videography at the time of the opening and closing of strong room.

- Fire- extinguishers inside and outside of strong room. Fire alarm inside.
- No entry for any vehicle including VIPs & officials.

6.1.4 Protocol for Polled EVMs:

- Intimate all contesting Candidates 24 Hr. in advance for deputing their representatives for watching the security arrangements of strong room and allow them to stay outside the inner perimeter. If entrance of the Strong Room is not visible, arrange CCTV display for them.
- Make proper arrangements like drinking water, shamiana / tent etc.
- Circulate the phone nos. of CEO, Addl. CEOs, DEC in-charge in the ECI and the DEO/ SP/COP/ROs concerned for emergency.
- Constant Videography of all the entry points (doors etc.) of strong rooms using the web-cams.
- Visit of RO to the storage campus (up to the inner perimeter only) twice a day in the morning and evening to check the log book and Videography and send a report to the DEO on the status every day.
- In case of strong rooms located in the district headquarters or outside the District HQ, DEO is responsible for regular or frequent visits as possible and at least once in 3-4 days.
- DCs and SPs are responsible for security of strong room within the district and meticulous implementation of the protocol. Copy of the Manual to be circulated to all candidates, DEOs, ROs and CPF commandant.
- After completion of counting of votes, seal CU as per existing instruction of the Commission. Thereafter, shift EVMs & VVPATs to Strong Room.
- The above instructions will also apply mutatis mutandis to the storage of the voting machines during the interval between the original count and the recount, if any.

6.1.5 Report of Observer on Storage and Safety arrangement of EVMs & VVPATs:

- Within 3 days of reaching assigned Constituency (ies), joint visit report of ECI General Observer and Police Observer in **Annexure-14**.
- Before 2 days of counting of votes, ECI General Observer shall submit report in **Annexure-15**.

6.2. After the Counting of Votes till EP Period

- Sub-rules (1A) and (2)(cc) of Rule 92 of the Conduct of Elections Rules 1961 – Keep all voting machines and the printed paper slips sealed under the provisions of rule 57 C of the said Rule in the custody of concerned DEO.

- DEOs are custodian of EVMs and VVPATs.

6.2.1 For storing of EVMs and VVPATs after Counting of Votes:

- i. Inform all the contesting candidates/their agents well in advance in writing about the location of EVM and VVPATs strong room. Allow them to put their seals on the double lock system.
- ii. Guidelines to follow if the strong room is at different place than the counting centre:
 - (a) Allow the contesting candidates/their agents to follow the vehicles carrying EVMs and VVPATs and give intimation in writing.
 - (b) Provide proper armed escort for the vehicles carrying EVMs and VVPATs after counting of votes with Videography.
- iii. Do not keep EVMs and VVPATs of 2 or more than 2 Assembly Segments/ Constituencies in the same strong room till completion of Election Period (EP).
- iv. In case of simultaneous elections, store EVMs and VVPATs pertaining to AC and AS in separate strong rooms i.e. do not keep EVMs and VVPATs pertaining to AC with EVMs and VVPATs pertaining to AS of PC in the same strong room.
- v. Guidelines to be followed in case of not keeping the EVMs and VVPATs pertaining to 1 AC/ PS in a single room:
 - (a) Fabricate steel/iron/wooden multi-layer storage rack for EVMs and VVPATs
 - (b) Keep EVMs and VVPATs in two strong rooms, adjacent to each other within a building and paste notice indicating the particular of elections, AC/AS name and No. and serial number of polling stations outside of all such strong rooms.

Guidelines of the Commission on retention period of the EVMs (Under rule 94(aa) of the Conduct of Elections Rules 1961) after using in election and for using the same in the subsequent elections are as under:

- A. Do not touch any EVM and VVPATs used in an election which are in the custody of the DEO, under the standard protocol of security, till confirmation of Election Petition (EP) position from the High Court concerned, after the completion of the period for filing Election Petition i.e. 45 days from the date of declaration of the result.
- B. Immediately after completion of EP period, obtain the details of the EP/Court Cases pertaining to the election from the High Court/Court concerned.
- C. After ascertaining the position of EP/court cases from the court concerned,
 - (a) Within 10 days, send all the defective EVMs/VVPAT (along with list containing unique ID of BU/CU/VVPAT) to BEL/ECIL, which are not involved in any EP/court cases.

- (b) Do not open the Strong Room in which the defective EVMs/VVPAT pertaining to any EP/court case are kept. After final disposal of the EP/Court case, send the defective EVMs for repairs to the respective factories within one month.
- D. If there is no election petition filed or no other court cases are pending, after the aforesaid period, use EVMs/VVPATs for any future election or any other purpose like movement, physical verification of EVMs and VVPATs etc.
- E. Take following action if EP filed: -
 - (i) If the EVMs are the subject of the EP, the EVMs/VVPATs used at all Polling Stations in the constituency continue to be in the safe custody of the DEO, till the EP is finally disposed of by the Courts.
 - (ii) After disposal of election petition/court case, the CEO shall take the following action:
 - Ascertain the position of appeal from the Supreme Court.
 - If no appeal is filed, the DEO shall be permitted to open the warehouse, if needed.
 - Petitioners/respondents of the EP/Court case shall be invited through a Notice regarding opening of the strong room.
 - (iii) If EVMs & VVPATs are not subject of EP, move an application to the concerned court for taking out the EVMs/VVPATs from the strong room for any future election or any other purpose.
 - (iv) Follow the procedure for segregating the EVMs not involved in any EP/court case from the EVMs involved in EP/Court case stored at one place: -
 - (a) Give a notice informing the opening of Strong Room having EVMs involved in EP/ Court Case to the petitioners/respondents of the EP/Court Case and the representatives of all political parties in writing at least 72 hours in advance, requesting them to remain present at the time of opening of strong room.
 - (b) Open the strong room in the presence of the DEO, Petitioners/respondents of the EP/ Court case and representatives of Political Parties.
 - (c) Segregate and take out the EVMs not involved in any EP/Court Case from the EVMs involved in EP/Court Case from the strong room under videography and provide a prepared list of taken out EVMs to the petitioner/respondent of the EP/court case and take acknowledgement.
- F. If any other Court Case is pending, like, booth capturing, etc., in which any EVM is involved, keep the EVM concerned or the EVM(s) used at such Polling Station(s) concerned till the final disposal of the said case. After the final disposal of the election petitions or other court cases, as the case may be, referred to above, use the EVMs for subsequent elections.

6.2.2 Lost/stolen EVMs

Action to be taken in case of traced or recovered lost/stolen EVMs

- Furnish a detailed report to the Commission
- Recovered/traced units to be kept in a separate store and stock-taking of the same not to be done, if already does not exist in stock inventory.
- Send to the factory for destruction.

6.3 TRANSPORTATION/SHIFTING OF EVMS & VVPATs

General Instructions to follow:

- (a) Movement of EVMs & VVPATs through EVM Management System (EMS).
- (b) Use only containerized trucks or sealed trucks with proper locking arrangements.
- (c) Seal all trucks transporting EVMs/VVPATs with lock and paper seals.
- (d) Use GPS enabled Vehicles for movement of EVM/VVPAT.
- (e) Inform Political Parties in advance about opening, stocking & sealing of warehouses while shifting EVMs and VVPATs. However, if no representative attends, the work should not stop.
- (f) DEO to video-graph the whole process of transfer/receipt of EVM.

TRANSPORTATION

Factory to State

- | |
|--|
| <ul style="list-style-type: none">• Transportation arrangement of New EVMs/VVPATs done by Manufacturer• Consignee State/UT to depute its official at Factory with security personnel• State/UT to bear the transportation charges of shifting of repaired EVM & VVPATs |
|--|

Intra-State & Intra District Movement

- | |
|--|
| <ul style="list-style-type: none">• CEO is competent authority to issue permission to DEO for shifting under intimation to the Commission• Share list of EVMs/VVPATs to political parties/candidates/their representatives• Smooth Movement to avoid physical damage.• Proper entry of moving out the EVMs & VVPATs in the Master Stock Register/Movement Register to be ensured by nominated officer with the acknowledgement from the officer receiving the same. |
|--|

Inter-state Movement

- Appoint Nodal Officer at State as well as District level for constant coordination and smooth transportation.
- Borrowing State/UT to depute its official at Sender State/UT with security personnel
- Ensure the location of districts for collection of EVMs/VVPATs are in a cluster or on the same route
- Ensure that neither defective nor EVMs/VVPATs under conflict in EMS are transferred to the borrowing State/UT

Intra-State (inter-district) shifting of First Level Checking (FLC) completed EVMs/VVPATs:

- (i) **De-novo** FLC in the district where these units are being shifted.
- (ii) During Parliamentary election, within the Parliamentary Constituency (covering more than one district)
 - **BEFORE** first randomization of EVMs/VVPATs, ensure **de-novo** FLC of the EVMs/VVPATs.
 - **AFTER** first randomization of EVMs/VVPATs, there is **no need of FLC** of the EVMs/VVPATs.

In case of Intra-district shifting of FLC completed EVMs/VVPATs:

- (i) FLC of these EVMs/VVPATs is not required, subject to the following conditions: -
 - (a) For General Election to State Legislative Assembly, from one Assembly Constituency to another Assembly Constituency after first randomization of EVMs/VVPATs, ensure **de- novo FLC of the EVMs/VVPATs**.
 - (b) For Parliamentary election, from one Parliamentary Constituency to another Parliamentary Constituency after first randomization of EVMs/VVPATs, ensure **de-novo First Level Checking of the EVMs/VVPATs**.
- (ii) In case of simultaneous elections to Assembly and Parliamentary constituencies, FLC of EVMs/VVPATs is conducted, if EVMs/VVPATs pertaining to Assembly election are required to be used in Parliamentary constituency or vice-versa.

6.4. Use of vehicles with GPS tracking/Mobile app-based tracking for movement of EVM & VVPATs

- a) Monitor the end-to-end movement of all GPS enabled vehicle carrying all EVMs and VVPATs including Reserve EVMs and VVPATs at all times.

- b) Set up **'EVM Control Room'** at DEO as well as CEO level for round-the-clock monitoring and tracking through GPS Monitors and other related IT infrastructure/applications.
- c) Sector Officers shall not remove the EVMs and VVPATs from the authorized vehicles except where required for election purpose or for safe storage at designated places.
- d) DEO notifies the registration number and details of all vehicles carrying Reserve EVMs/VVPATs along with the name of the Sector Officer to all political parties/candidates and Observers in the district.
- e) DEO is responsible for the effective end-to-end GPS based tracking and monitoring.
- f) The General Observer shall monitor the compliance of these instructions and record an entry to this effect in the General Observers' diary.

CHAPTER – 7

SECOND RANDOMIZATION OF EVMs/VVPATs

The purpose of Second Randomization is to allocate EVMs/VVPATs randomly to Polling Stations.

Do Second Randomization after Finalization of List of Contesting Candidates and just before Commissioning of EVM/ VVPATs using EMS



RO will Conduct Second Randomization in the presence of the Contesting Candidates/ their representatives

In case of General/Bye-elections to Legislative Assembly, by RO of the AC concerned

In case of General/Bye-elections to Lok Sabha, by RO of PC concerned.

In case of Simultaneous Elections to the Lok Sabha and State Legislative Assembly, by RO of AC (for State Legislative Assembly) and by RO of the PC (for PC election)

Exceptional case for General/Bye Election to Lok Sabha: By ARO



RO will fix a date for preparation of EVMs and VVPATs for poll (Candidate Set) after the last date of withdrawal of candidatures and finalisation of ballot papers under written intimation to all the contesting candidates at least 48 hours.



After second randomization, provide list of randomized BUs, CUs and VVPATs (Polling Station-wise allocation) and Reserve units along with the list of 1st Randomisation to all the candidates and obtain written acknowledgement.

CHAPTER – 8

COMMISSIONING OF EVMs (CANDIDATE SET) & VVPATs

8.1 Commissioning of EVMs/VVPATs after the last date of withdrawal of candidatures

- a. RO draws schedule for commissioning of EVMs/VVPATs.
- b. Commissioning of EVMs/VVPATs is done for all the assembly constituencies/segments in separate halls.
- c. Written intimation to all the candidates about the schedule for their presence to oversee the commissioning and actively participate in the mock poll process and take their signatures on the register maintained as per **Annexure-16**.
- d. In case of Parliamentary Elections, ARO will supervise the preparation of EVMs for assembly segment.

8.2 Arrangements in the premises of preparation of EVM/VVPATs

- a. Large Preparation hall to accommodate EVMs/VVPATs, officers nominated by the DEO, engineers of concerned manufacturers and representatives of candidates.
- b. Fully sanitized to ensure that the hall is free from any electronic components or devices.
- c. Single entry and exit point to hall with full security by armed police forces round the clock with 24X7 CCTV coverage.
- d. Permission for Entry to hall through Door frame metal detector (DFMD) on production of Identity card of authorised official/pass issued by DEO.
- e. Proper frisking at every entry.
- f. Neither allow anyone to carry any electronic device inside the hall nor anybody to take out anything outside the Preparation Hall.
- g. Commissioning of EVMs and VVPATs pertaining to AS of PC falling in RO headquarters may be done at **ARO** level under direct supervision of **RO** level, in the presence of candidates/their representatives. Further, the commissioning of EVMs and VVPATs of remaining AS may be done by the respective **ARO** in the presence of candidates/their representatives.

8.3 Manpower for preparation

- a. Only the authorized engineers of BEL/ECIL associate for the commissioning of EVMs/VVPATs.
- b. BEL/ECIL to share the list of engineers with DEO for carrying out task during the commissioning of EVMs/VVPATs in a district along with their identity card numbers etc.

- c. Allow authorized engineers/technical staff of BEL and ECIL only to enter the preparation hall.
- d. Separate team for each EVM in which 1000 votes are cast during mock poll.

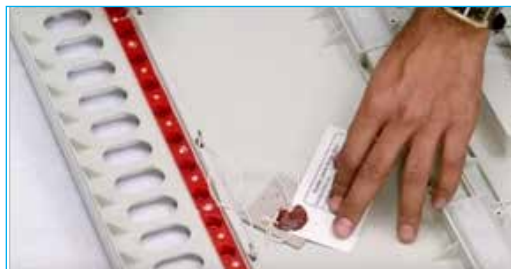
8.4 Additional tasks during preparation

Detailed instructions of the tasks performed during preparation of BU and CU of EVMs are available in the Handbook for RO. Execute the following additional tasks:

8.4.1 Checking of Balloting Units (BUs) –

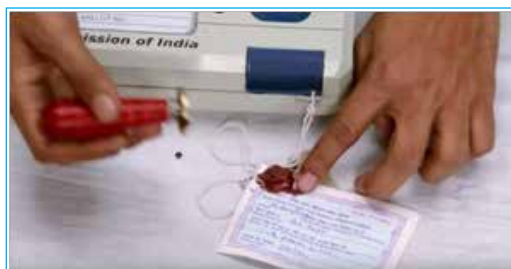
- a. Opening of outer cover of BUs by BEL/ECIL Engineers to examine and certify as in **Annexure-17** that all components of BUs are original and show to the candidates/their representatives.
- b. Separately issue detailed instructions for checking of BU by BEL and ECIL for their respective machines and the list of equipments to carry within the preparation hall.

(a) Sealing of ballot paper screen of BU with thread and address tag



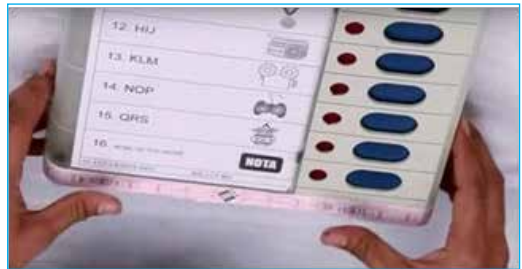
After firm fixation of the ballot paper followed by Ballot Paper Screen on the upper side of top cover, seal the screen by passing the thread through two holes using address tag showing the particulars of election with seal of the RO.

(b) Sealing of plastic cabinet of BU with thread and address tag



After unmasking candidate buttons, seal the upper cover of the BU by thread passed through holes on the top and bottom end at right side using address tags showing the particulars of the election with the seal of the RO.

(c) Sealing of plastic cabinet of BU with pink paper seal



In addition, seal BU with special **“pink paper seal”** affixed on lower portion of BU so that no candidate button or name of symbol is hidden.

(d) Sealing of Candidate Set Section and Battery Section of CU with thread & address tag



After Candidate set, seal cover of the Candidate Set Section of CU by passing a thread through hole provided on the right side using address tags showing the particulars of the election with the seal of the RO.

8.4.2 PREPARATION OF VVPAT- Rule 49B [4(c) (i) – (iii)] of the Conduct of Elections Rules, 1961



Installation of paper roll



Inserting of power pack

- a) Connect a new battery power pack to the VVPAT unit and shut the door of the battery compartment. Do not seal the battery compartment as the power pack can be replaced in case of low battery.
- b) Install a fresh paper roll in the printer unit as per the procedure mentioned in the user manual (Annexure-18)

- c) Load allotted Serial numbers, names of candidates and symbols in VVPAT with the help of engineers using Symbol Loading Unit (SLU). RO/ARO to check the test printout with the ballot paper in BU & sign & certify the same.

Sealing of paper roll compartment of VVPAT:

SEALING OF PAPER ROLL COMPARTMENT AT THE TIME OF PREPARATION OF VVPAT



After installation of paper roll in the paper roll compartment of VVPAT, seal the latches of Paper Roll Compartment by passing a thread through holes provided on the latches using Address Tag showing the particulars of the election with the seal of the RO.

(Ensure Switching OFF of Control Unit before sealing of paper roll compartment)

NOTE : *All Seals used at the time of commissioning of EVMs & VVPATs shall be signed by the Returning officers and candidates / their agents.*

8.4.3. Candidate Setting in Control Units:

- a) Install new Power Pack in CU.
- b) Connect cable of VVPAT with CU and cable of BU with VVPAT.
- c) Unlock Paper Roll knob of VVPAT (Rotate to “Working Position)
- d) Switch ON the CU.
- e) Press Candidate Set button of CU. Display Panel of CU shows Set Candidate_ _.
- f) Press last candidate button (NOTA button) of BU to set candidate in CU.
- g) Mock Poll with one vote to each candidate to check that the VVPAT is printing the paper slips accurately.
- h) Switch off the CU.
- i) Seal the latches of paper roll compartment of VVPAT and Battery & Candidate Set compartments of CU using thread seals and address tags.
- j) Allow the candidates/their agents to affix their signatures with party abbreviations on Address Tags.

8.4.4. Safe custody of Symbol Loading Unit:

After completion of commissioning of EVMs and VVPATs, BEL/ECIL Supervisors will hand over all the SLUs to the concerned DEO. DEO will keep the SLUs received from the BEL/ECIL Supervisors in their safe custody and return the same to them or engineers authorized by the BEL/ECIL on the next day after poll i.e. P+1 Day. DEO will ensure that no engineer of BEL/ECIL or any other person carry the SLU:-

- a. On poll day in the field and that all the SLUs are released to BEL/ECIL on P+1 day to enable them to move to the next AC/AS for next phase.
- b. BEL & ECIL will provide the details of SLUs allocated to the team for each AC/AS in writing to the DEO concerned.

8.4.5. Conduct of higher rate Mock Poll:

- a. Checking of VVPATs In 100% VVPATs, one vote to each candidate shall be given to check that the VVPATs is printing the paper accurately.
- b. Mock poll of 1000 votes on 5% randomly selected EVMs as well as VVPATs.
- c. Tally the electronic result with paper count. Allow Candidates/their representatives to pick machines randomly for this purpose.
- d. Allow representatives of candidates to do the mock poll themselves and take their signatures in a register in **Annexure– 19** as token of having done mock poll themselves.
- e. Ensure that the pink paper seal of the CU applied at the time of FLC is not damaged in any manner during commissioning.

8.4.6. Supervision of the preparation: RO or one of the AROs will supervise the preparation of EVMs/VVPATs under videography.

8.4.7. Introduction of Braille Signage Features in EVM: Make Additional Arrangements to facilitate visually impaired electors to exercise their franchise.

- (a) **Do not paste any sticker** on Braille on the right of the blue button (voting button) on the BU because it has embossed serial numbers of the candidates in Braille signage.
- (b) After finalization of list of the contesting candidates, immediately send the list of contesting candidates to the Devnar Foundation for Blind/National Blind Association or to any other source available for **preparation of Dummy Ballot Sheets** which contains the serial numbers of the contesting candidates, names of the candidate arranged in the same serial numbers order in which their names appear on the ballot paper on the BU.
- (c) Indicate the party affiliation of each of the candidates by printing the name of the political party concerned against the name of candidate. In the case of Independent candidates, print the word **“Independent”**.

- (d) Prepare **Dummy Ballot Sheet in regional languages** (i.e. language printed on actual Ballot Paper) in addition to English and supply a copy of the same to each of the PS.
- (e) If **more than 1 BU** is used at a polling station, print separate dummy ballot sheet for each BU.

8.5 Preparation of Dummy Ballot Sheet:

- (i) Give serial Numbers in each Dummy Ballot Sheet **from 01 to 16** i.e. If number of contesting candidates are **19** including NOTA, number the serial number for the candidates in first Dummy Ballot Sheet as **01 to 16** as mentioned on the Ballot Paper of first BU. For contesting candidates at serial **number 17-19 of BU-2**, start the serial numbers again from **01 on 2nd** Dummy Ballot Sheet.
- (ii) If more than 1 BU is used, **print BU-01** in Braille on the **TOP MIDDLE PART** of first Dummy Ballot Sheet and **BU-02** in second dummy ballot sheet and so on.
- (iii) Similarly, **print Braille stickers 'BU-01', 'BU-02'** and so on and affix on the corresponding BU on the **TOP MIDDLE PART**.
- (iv) Print Dummy Ballot Sheets mentioned above in Braille signage by Devnar School for Blind/ National Association or by any other source available for this purpose under the supervision of one responsible officer appointed by CEO of the State/UT. Write the name of the constituency on Dummy Ballot Sheets in normal script at the top.
- (v) Commissioner of Disabilities of concerned State or her authorized representative who will be an official knowing Braille, will certify each such sheet prepared for every polling station.
- (vi) Conduct detailed training and briefing sessions for the Presiding Officers and the Polling Officers explaining them these facilities for the visually impaired electors.
- (vii) Arrange for wide publicity of these measures through advertisements in newspapers and TV etc. to inform the visually impaired voters for the arrangements made.
- (viii) At the polling station, allow the visually impaired persons to take a companion along as provided in Rule 49N of the Conduct of Elections Rules, 1961
- (ix) Give the Dummy Ballot Sheet in Braille to the visually impaired voter on her request if she prefers to cast her vote with the help of same. After she studies the contents of Dummy Ballot Sheet, allow her to proceed to the voting compartment to cast her vote.
- (x) Such electors after reading the Dummy Ballot Sheet will be able to cast their vote by reading the serial number of the candidate of their choice on the numeric sticker fixed on the EVM.
- (xi) After the voter has cast her vote, ensure that the Dummy Ballot Sheet delivered to the voter is returned to the Presiding Officer.

- (xii) After the close of poll, seal the Dummy Ballot Sheet in separate cover superscribed “**Dummy Ballot Sheet**” for visually impaired and send to the RO along with other Non-Statutory forms.
- (xiii) Keep a record of all such voters (who avail of the facility of Braille Sheet) in the following **Proforma** and submit the same to the RO along with the EVM. RO will consolidate all the information supplied by the Presiding Officers in this regard and submit the same to the Commission through the CEO after declaration of result.

Proforma for report on the voting by the Visually Impaired Voters

No. and the Name of the Assembly/Parliamentary Constituency.....

No. and the Name of Assembly Segment.....

(In case of Parliamentary Constituency)

No. and Name of the Polling Station.....

Name of the Presiding Officer.....

S.No.	Number of visually impaired voters turned up for voting	Number of such voters who used dummy ballot sheet in Braille	Number of such voters who did not use dummy ballot sheet and preferred to vote using the provision of Rule 49N	Number of voters who used both the facilities

(Signature of Presiding Officer)

8.6. Destruction of VVPAT paper slips taken out during commissioning of EVMs and VVPATs: VVPAT slips generated during Commissioning of EVM & VVPATs disposed off by using Paper Shredding machine on daily basis in the presence of Returning Officer/Assistant Returning Officer.

Note:

In case any BU or CU does not work properly during commissioning of EVMs & VVPATs, dispersal of polling parties or during mock-poll at polling station, the concerned unit (**i.e. in case BU or CU does not work properly, replace only BU or CU respectively from the reserve one**).

CHAPTER – 9

DISPERSAL OF EVMs/VVPATs

9.1 Inform date and time of opening of strong room in writing to the candidates/ agents whenever the EVMs/VVPATs are taken out of the strong room for dispatch to polling stations.

9.2 At the time of dispatch, **Advise the Presiding Officers to:**

- (a) Compare the machine number inscribed on the metal label and the adhesive sticker.
- (b) Verify the Polling Station Number indicated on the sticker and compare it with PS no. mentioned in the address tag before accepting the EVM/VVPATs.
- (c) In case of any discrepancy, bring to the notice of the officer in charge of dispatch arrangement and reconcile.
- (d) Advise the candidates to share the machine number of the EVM (both CU/ BU) /VVPATs allotted to the specific PS with their polling agents appointed by them.

ROLE OF POLLING PARTIES

1. **At the time of dispersal of Polling parties, hand over two copies of trouble shooting instructions (Annexure-22) and a list of additional items of Polling material (Annexure 24) to the Presiding Officer.**
2. **Procure adequate number of black paper envelopes and plastic boxes for storing the Mock Poll paper ballot slips removed from the VVPAT.**

EVM-Intermediate Strong Rooms for Polling Team staying with EVMs/VVPATs at intermediate location before poll and after poll

SOP for P-2/P-3 dispatch and P+1 arrival of Polling Parties:

- Earmark a Govt. building at the cluster point for polling parties and EVMs and VVPATs of P-2/P-3 dispatch Polling Stations and RO will inform the same to all the contesting candidates in writing. Do not use Police Stations for such cluster points.
- Earmark a room as strong room for storing EVMs & VVPATs of the P-2/P-3 PSs at these designated Govt. buildings. Keep all EVMs & VVPATs in the said strong room and seal in the presence of Sector Officers and video graph the entire process. Allow the contesting candidate to nominate their representative to watch the whole process, if they desire.
- In case there is more than one assembly segment involved, make a sturdy partition for each AS of the said strong room in such a way that it can be properly secured by double lock system/seals etc. Under no circumstance, mix the unit's of one AS with those of another AS in one strong room.

- Maintain a logbook for opening and closing of the said strong room.
- Follow the aforesaid process for P+1 arrival of Polling Parties. Minimum half section CAPF will guard the intermediate strong room, where polled EVMs are stored.

NOTE: Instruct the polling parties for not testing the VVPAT at the time of dispersal and before mock poll at polling station under any circumstance.

CHAPTER – 10

VOTING COMPARTMENT USED IN POLLING STATIONS

To maintain secrecy of vote at the time of poll and uniformity on use of voting compartments, follow the following instructions for use of Voting Compartment at Polling Stations: –

- a. **Voting Compartment will be only of corrugated plastic sheet (flex-board)** of steel grey color, which is opaque and reusable. The thickness of corrugated flex board for making Voting Compartment will be minimum 3 mm.
- b. In three folds, each fold having dimension of **24”X24”X30” (Length X Width X Height)**. Increased **height of 30”** is mandatory.
- c. **Self adhesive stickers on all the three sides** of the voting compartments as per **Annexure-20**.
- d. The height of the table on which the voting compartment **should be 30”** as per **Annexure-20**.
- e. If more than one BU is used for poll, increase the width of the voting compartment 12” for each additional BU. Where additional BU is used, arrange it in the manner as per **Annexure-20**. While placing the EVM in the voting compartment, ensure that the secrecy of voting is not violated and ensure that it is not near a window or the door of the polling station.
- f. Route the interconnecting cable of BU/VVPAT in such a way that it does not obstruct the movement of voters inside the polling station and they do not tread or trip over it, but **the entire length of the cable should be visible and under no circumstances be concealed under the cloth or under the table**.
- g. **Tape the connecting wires of BU, CU and VVPAT to the leg of the table with “Transparent Adhesive Tape” of half inch width** in such a manner that the wires do not hang in the air so that the load of hanging wire does not impact the connecting switch of the BU and VVPAT.

Additional Directions:

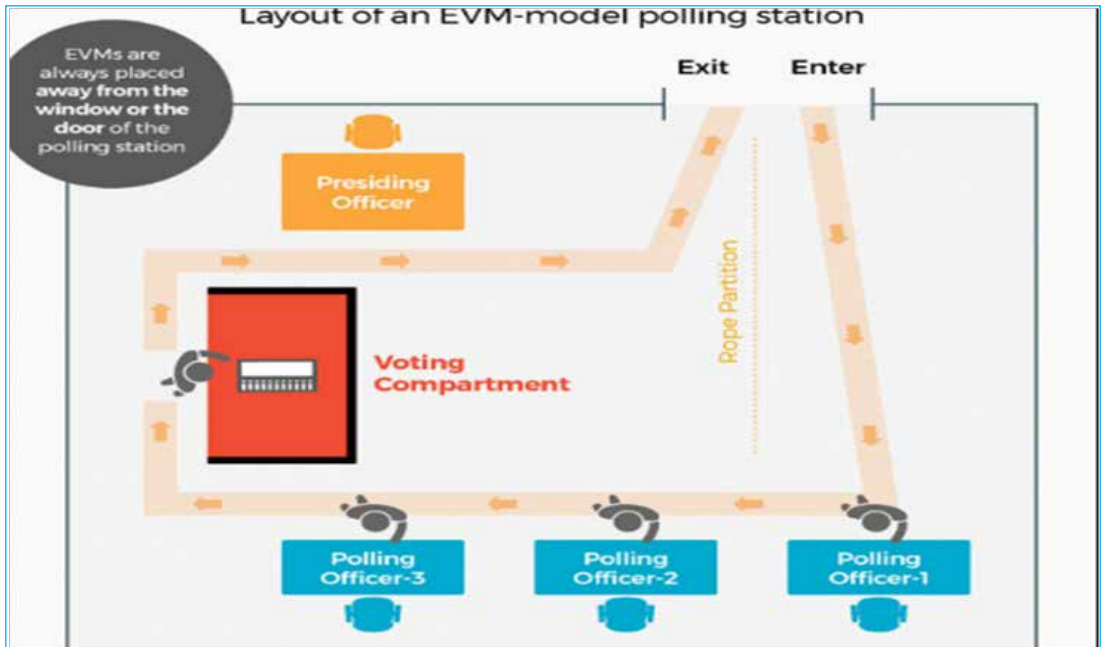
- i. Proper electricity arrangements at the polling stations.
- ii. Do not place high wattage incandescent bulbs/tube-light over or in front of the voting compartment
- iii. Place the Voting Compartment in such a way that sufficient light is available inside the voting compartment, no direct lighting is placed over or in front of the voting compartment.

NOTE: The size of the voting compartment as specified above includes the use of VVPAT.

CHAPTER - 11

POLL DAY

11.1. Layout of polling station



11.2. SET UP OF EVMs AND VVPATs



A. CU – Polling Officer (PO3)

B. BU + VVPAT – Voting Compartment

11.3. RESPONSIBILITIES OF DEO & PRESIDING OFFICER ON POLL DAY

In order to ensure that the conduct of the Presiding Officers and other polling staff complies with secrecy of votes, the following instructions shall be strictly adhered to: -

11.3.1. SUPPLY OF DUMMY BALLOT PAPER TO PRESIDING OFFICER

- a) Supply a printed sample of EVM Balloting unit pasted on a cardboard (real size) to all the Presiding Officers along with other polling materials at the time of dispatch.
- b) While printing such model ballot, ensure that only dummy name and dummy symbols that are not in use, are used and not any real names or symbols and print in colour so that **‘blue button’ ‘green light’ and ‘red light’** etc. are clearly represented.

11.3.2. RESPONSIBILITIES OF PRESIDING OFFICER

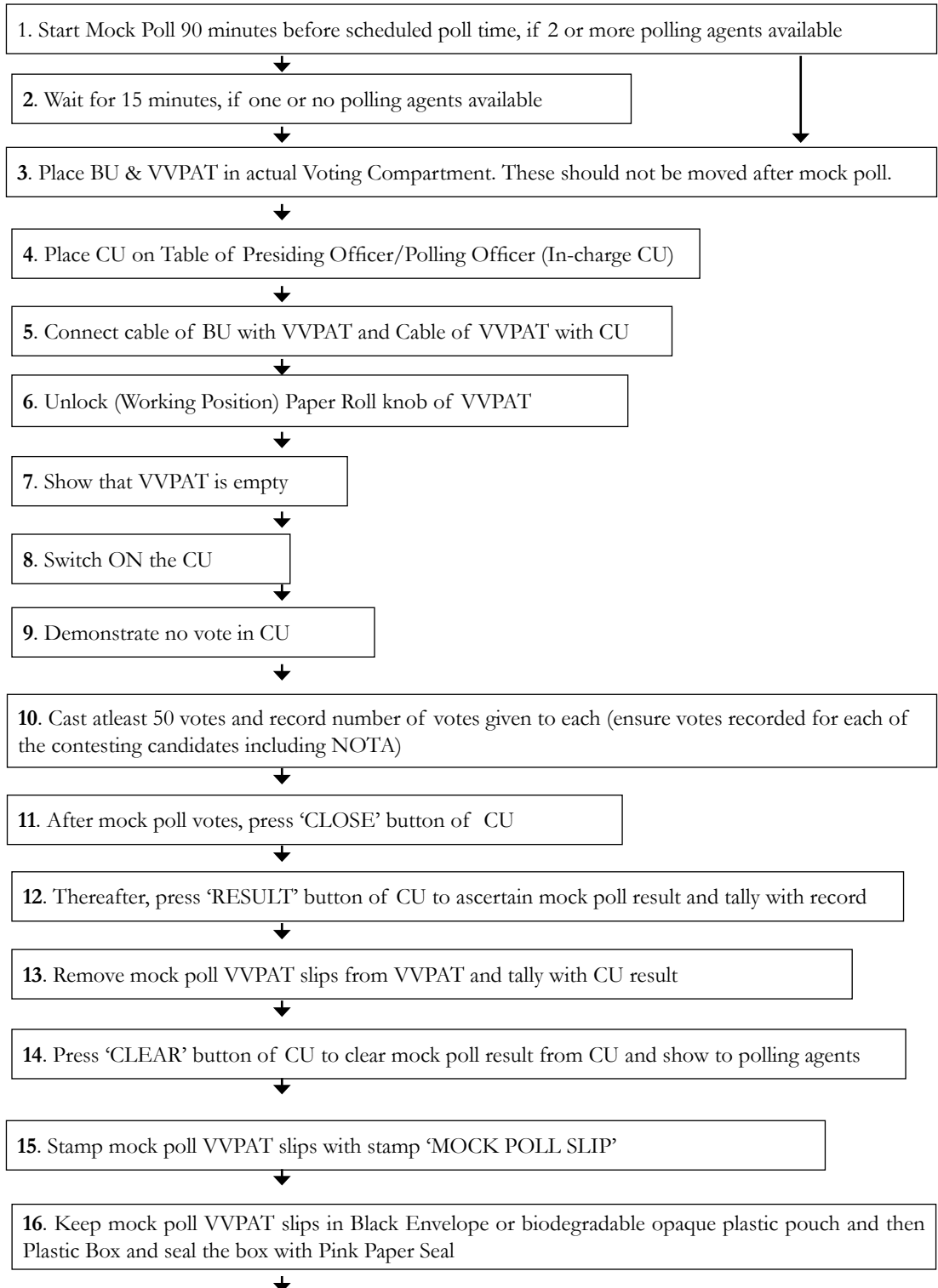
Presiding Officers are responsible for the conduct of the poll in the polling station and they must have a sound knowledge of the voting procedures.

- a) Whenever any voter asks for help or expresses inability to vote using EVM, explain to the voter the voting process using the cardboard model of the EVM ballot in such a manner that the voter is able to understand. This shall be done outside the voting compartment only in the presence of polling agents.
- b) Ensure inspection of BU in the presence of polling agents from time to time when there is no voter inside the voting compartment.
- c) All the CUs/BUs/VVPATs allotted to Polling Stations as well as the reserve machines shall be kept in the strong room in the presence of candidates/agents.
- d) Enquire all the complaint about the conduct of the polling staff at the polling station. The Observers are being instructed to take serious note of such complaints and conduct or cause enquiry into such allegations and submit reports to the Commission.
- e) If any voter alleges about the wrong printing of particulars of a candidate and/or symbol of that candidate on VVPAT paper slip printed by the printer on pressing of concerned blue (candidate) button on the Balloting Unit to which the printer is connected, provide him a ‘Form of Declaration’ (**Annexure-23**) and take action in accordance with rule 49MA of the Conduct of Elections Rules 1961.

11.3.3. RESPONSIBILITIES OF POLLING OFFICER-I

Before the first voter signs in Form 17A (Register of Voters), the Polling Officer-I shall check with the Presiding Officer and record in **INK** in Form 17A that **“Total in the Control Unit checked and found to be Zero”**.

11.4. MOCK POLL ON THE DAY OF POLL



17. Switch OFF the CU and Seal the CU with Green Paper Seal, Special Tag, Address Tag and Outer Paper Strip Seal



18. Show empty drop box of VVPAT and then seal the drop box with Address Tag



19. Fill Mock Poll Certificate Part-I of Presiding Officer's report – **Annexure - 21** carefully



20. Switch ON the CU for Actual Poll and press "Total" button to confirm Zero votes.



21. Switch ON the CU for Actual Poll

11.5. Mock poll in case of replacement of EVM/VVPAT

- In case the CU or BU or VVPAT does not work properly during **mock poll**, replace the respective unit only.
- In case the CU or the BU does not work properly during **actual poll**, replace entire set of CU, BU and VVPAT. In such case cast only one vote to each contesting candidate including NOTA should be polled in the Mock Poll and follow other instructions of mock poll.
- In case the VVPAT does not work properly during actual poll, replace only VVPAT. **NO MOCK POLL** is required in case of replacement of VVPAT only.

11.6. Recording of Poll Start and Poll End Date and Time

The Presiding Officer, at the end of Mock Poll at the Polling Station, shall check and note the date and time shown in the display of the CU and also the actual date and time as well as any discrepancy between the two, if any, in the mock Poll certificate (Annexure-21) and also in the Presiding Officer Diary.

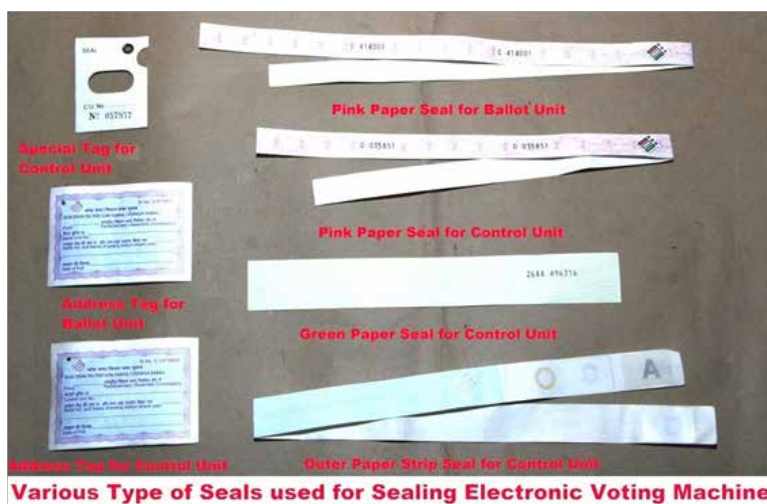
11.7. CRITICAL MISTAKES

- Not pressing the CLOSE button of CU after mock-poll
- Not matching the mock-poll result of the CU with the VVPAT Paper Slips.
- Not removing the mock-poll paper slips from VVPAT
- Non-deletion of mock-poll data from the Control Unit.
- When setting up the EVMs and VVPATs in the polling station, the VVPAT to be positioned so as to avoid direct light from falling on it.
- Do not position the VVPAT near an open window or directly under a bulb or halogen lamp

Note:

- Advise the Presiding Officer to show the Machine Numbers to the agents present before the commencement of the mock Poll.
- The Presiding Officer will note the number and Serial Number of CU, BU and VVPAT used at the Polling Station in his/her Diary.

11.8. VARIOUS TYPES OF SEALS USED FOR SEALING EVMs & VVPATs



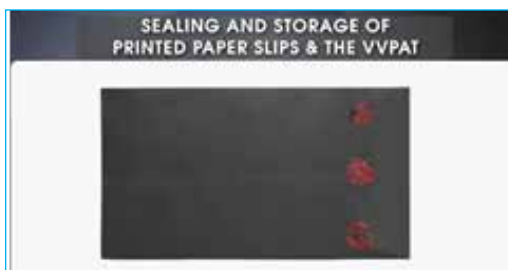
Common Address Tag for BU/CU/VVPAT



11.9. SEALING OF EVMs & VVPATs ON POLL DAY

A. AT THE POLLING STATIONS ON POLL DAY AFTER MOCK POLL

- (i) Sealing of plastic box having mock poll printed ballot slips with Pink Paper Seal



After the mock poll, Presiding Officer removes all the printed paper (ballot) slips from the drop box in the VVPAT unit, stamps the printed paper slips of the mock poll on their back side with rubber stamp having inscription **“MOCK POLL SLIP”** before keeping and sealing these printed paper slips in the thick black envelope supplied for the purpose. The envelope is sealed with the seal of the PO.



Then, keep the envelope in the special plastic box provided for the purpose. Seal the plastic box with a **Pink Paper Seal** placed all around in such a manner that opening of the box shall not be possible without breaking the seal.

(ii) Sealing of EVMs after Mock poll and before starting actual poll on poll day

After mock poll and clearing mock poll data, switch off the Control Unit for sealing Result Section of the CU.



Fixing of Green Paper Seal and closing of inner compartment

Affix Green paper seal on the inner side of door of Result Section and close the door in such a manner that the two ends of the paper seal project outwards from the sides of the inner compartment.

(iii) Sealing of inner door compartment (inner Result Section) with Special Tag



Seal the inner door of the Result Section by passing a thread through hole provided on the left side using Special Tag showing the particulars of the election with the seal of the Presiding Officer.



(iv) Sealing of outer door Result Section of CU with thread seal using Address Tag and Outer Paper Strip Seal (or ABCD Seal)



Press the outer cover of the CU and seal by passing a thread through hole provided on the left side using Address Tag showing the particulars of the election with the seal of the Presiding Officer.

Thereafter, Outer Paper Strip Seal (ABCD seal) is used to get glued to the **Green paper seal**.

(v) Sealing of drop box of VVPAT with thread using Address Tag



Thereafter, seal the drop box with the thread and Address Tag before actual poll starts.

B. Sealing of carrying case of EVM and VVPAT after poll



- After completion of poll, keep BU, CU and VVPA in the respective carrying case and seal these carrying cases by passing a thread through holes provided using Address Tags showing the particulars of the election with the seal of the Presiding Officer.

NOTE : All seals used on the poll day for sealing of EVMs & VVPATs shall be signed by the Presiding officer and polling agents.

11.10. HANDLING CONTINGENCIES DURING POLL

11.10.1 REPLACEMENT OF UNITS DURING ACTUAL POLLS

(Switch OFF CU before any sort of replacement)

1. If CU or the BU does not work properly. Replace full set (BU + CU + VVPAT). When full set is replaced then conduct Mock Poll by casting one vote to each contesting candidate including NOTA.
2. If CU shows “Low Battery” for VVPAT, then replace power pack of VVPAT
3. If VVPAT does not work properly, replace VVPAT only. In this case **No mock-poll** is required to be under taken.
4. Replacement of Power Pack of the Control Unit : In case the Power Pack of CU does not function properly or show low Battery replace Power Pack of CU. For this purpose Presiding Officer shall replace the Power Pack of CU in presence of polling agents and Sector Officer

and again seal the Battery Section of CU with Address Tag and obtain their signatures :
Presiding Officer shall submit a report in Format prescribed by the Commission (Part - III of Presiding Officer's report **Annexure - 21**

5. If VVPAT has not printed the paper slip, or the printed paper slip remains uncut, then
 - i. **Do not try to remove/cut hanging slip** from the paper roll, **no effort should be made to make it fall into the drop box**. It should be allowed to remain hanging as it means that the vote has not been recorded in Control Unit and as it is not to be counted at the time of counting of the printed-paper slips. The details of such an occurrence should be clearly recorded in the Presiding Officer's diary in the following format: -.0
 - a. The date and time of the occurrence.
 - b. The name of the voter and his serial number in the part in the electoral roll, who was allowed to cast his vote after replacement of VVPAT.
 - c. Whether the voter cast his vote after replacement of VVPAT or went away without casting his vote.
 - d. The Total number of votes cast before the occurrence.
 - ii. The last voter is allowed to cast his vote after the replacement of VVPAT.

In case of contingencies, the Presiding Officers may also refer to **Annexure-22** for solutions.

11.10.2. WRONG PRINTING COMPLAINT

1. If any voter alleges about the wrong printing of particulars of a candidate and/or symbol of that candidate on VVPAT paper slip printed by the printer on pressing of concerned blue (candidate) button on the Balloting Unit to which the printer is connected, the Presiding Officer of the polling station should provide her a 'Form of Declaration' (**Annexure-23**) to lodge a complaint and follow the procedure prescribed under rule 49MA, which reads as under:
 - **"49MA. Procedure in case of complaint about particulars printed on paper slip-** Where printer for paper trail is used, if an elector after having recorded his vote under rule 49M alleges that the paper slip generated by the printer has shown the name or symbol of a candidate other than the one he voted for, obtain a written declaration from the elector as to the allegation, after warning the elector about the consequence of making a false declaration.
 - **If the elector gives the written declaration referred to in sub-rule (1) -** make a second entry related to that elector in Form 17A, and permit the elector to record a test vote in the voting machine in her presence and in the presence of the candidates or polling agents who may be present in the polling station, and observe the paper slip generated by the printer.
 - **If the allegation is found true -** report the facts immediately to the RO to stop further recording of votes in that voting machine and act as per the direction that may be given by the RO.

- **If, however, the allegation is found to be false** and the paper slip so generated under sub-rule (1) matches with the test vote recorded by the elector under sub-rule (2), then-
 - a) Make a remark to that effect against the second entry relating to that elector in Form 17A mentioning the serial number and name of the candidate for whom such test vote has been recorded;
 - b) Obtain the signature or thumb impression of that elector against such remarks; and make necessary entries regarding such test vote in item 5 in Part I of Form 17C.”.

11.11. CLOSURE OF POLL

1. Close the poll at the time fixed for the purpose, even if it had commenced somewhat later than the hour appointed for the commencement of poll owing to some unavoidable reason.
2. Presiding Officer will ensure that after the **last voter** has voted, the ‘CLOSE’ button is pressed on the Control Unit. **Note the total number of votes recorded in the EVM in Item 6 of Part I of Form 17C.**
4. Note of the Poll end date and time displayed on the CU in the Presiding Officer’s diary.
5. After prescribed Forms have been carefully and duly filled for the election, disconnect the Balloting Units and VVPATs from the Control Units and seal them in their respective carrying cases. In the case of simultaneous election, the papers should be prepared and sealed separately.

11.12. SEALING OF EVM AND VVPAT AFTER THE CLOSE OF POLL

2. First **Switch off** the CU and then disconnect BU, CU and VVPAT. Put back BU and CU in their respective carrying cases.
3. Presiding Officer will remove the power pack (battery) from VVPAT in the presence of polling agents. Only after removal of power pack (battery) from VVPAT, seal the carrying case of VVPAT in the presence of polling agents.
4. Seal each carrying case at both ends by passing a thread through the two holes provided for the purpose on both sides of the carrying case and putting thread seal with an address tag.
5. Presiding Officer shall put his/her signature on address tags and also obtain the signatures of polling agents.
6. Deposit all the sealed EVMs and VVPATs and election records to the Returning Officer, at the reception/collection centre, as per the prescribed procedure.

CHAPTER- 12

STORAGE OF POLLED AND UN-POLLED EVMS & VVPATS AFTER POLL

Four categories of EVMs and VVPATs

1. Category 'A' - Polled EVMs & VVPATs
2. Category 'B' - Defective Polled EVMs & VVPATs
3. Category 'C' - Defective Un-polled EVMs & VVPATs
4. Category 'D' - Unused Reserve EVMs & VVPATs

Three categories of strong rooms:

1. Polled strong room (Store category 'A' & 'B')
2. Defective un-polled strong room (Store category 'C'), not in the vicinity of AC/AS strong room
3. Reserve strong room (Store category 'D'), not in the vicinity of AC/AS strong room

Common Instructions for Safe Storage and Safety of all 04 Categories of EVMs & VVPATs

1. Advance identification of storage space & earmark as per Category A, B, C & D intimate to all contesting candidates in writing with acknowledgement.
2. Under any circumstances don't store C & D category machines in strong room having category A & B machines to ensure unused machines are not blocked with the polled machines till the EP period is over.
3. Armed Police cover for all Polling parties or authorized officials at all times.
4. After the Polls also follow the same protocol for all categories of EVMs/VVPATs.
5. After the Polls safely deposit all categories of EVMs/VVPATs at the pre-designated receipt centre on the same day.
6. Do not keep any election related material in EVM/VVPAT warehouses/strong rooms.
7. Security arrangements for all categories of machines as per ECI instructions.

Store Category 'A' & 'B' in Polled Strong Room

1. Store Polled and Defective Polled EVMs & VVPATs in the same strong room as per procedure.
2. Ensure not to store 2 or more than 2 ACs machines in the same strong room after completion of poll and counting of votes till the completion of the EP period.
3. Safely keep the machines in demarcated space or the racks for safe storage as per ECI guidelines with prior intimation to the candidate & under proper Videography.

Store Category 'C' in Un-polled Strong Room

1. Paste un-polled sticker on defective Machines carrying cases for technical evaluation and repair of the same by the manufacturer, after completion of election.
2. Store category 'C' separately in a separate room other than the polled strong room.

Store Category 'D' in unused Reserve Strong Room

1. Store unused Reserve EVMs & VVPATs in a separate room other than Polled Strong room so that these are made available for the purpose of any Re-Polls.
2. Paste an 'Unused EVMs' on the carrying cases of such category of BUs, CUs and VVPATs.
3. Sector Officers shall submit a detailed account of the Reserve EVMs/VVPATs in **Annexure-36** at the time of deposition of the Reserve EVMs/VVPATs after the close of poll on the same day.
4. The RO shall furnish a Certificate in the prescribed format (**Annexure-37**).

Storage of Defective un-polled EVM-VVPAT (Category-C) and Un-used reserve (Category-D)

- In case of State Legislative Assembly Election
 - (a) Store Category-C EVMs-VVPATs of all Assembly Constituencies in respective District Headquarters.
 - (b) Store Category-D EVMs-VVPATs of all Assembly Constituencies in a single warehouse with proper categorization of AC with temporary partition.
- In case of election(s) to the Parliamentary Constituency (ies)/Lok Sabha
 - (a) Store Category-C EVMs-VVPATs of all Assembly Segments at District warehouse.
 - (b) Store Category-D EVMs-VVPATs of all Assembly Segments in a single warehouse with proper categorization of AS within Parliamentary Constituency.
- Categories C & D EVMs-VVPATs are deposited at the same time when all polled EVMs-VVPATs (Category-A) and polled defective EVMs-VVPATs (Category-B) are stored in the strong room under written intimation to candidates and proper videography. Candidates may depute their representatives.
- Minimum 1/2 Section security to warehouse/strong room, where Categories C & D EVMs-VVPATs are stored.

CHAPTER – 13

USE OF EVM/VVPAT IN CASE OF RE-POLL

In case of re-poll:

1. Draw EVMs/VVPATs from the reserve list and inform their numbers to the candidates/ agents in writing.
2. Ensure that the address tag on the EVMs/VVPATs clearly mentions that EVMs/VVPATs are for use in the re-poll indicating the date and PS number.
3. Paste **“Re-poll EVM/VVPAT”** pre-printed sticker on the EVMs/VVPATs and on their carrying cases.
4. After re-poll, re-open the strong room in presence of the candidates/ their agents and observer for storage of the re-poll EVMs.
5. Place re-poll EVMs/VVPATs together with the old EVMs/VVPATs which were used earlier in the original poll. Paste **“TO BE COUNTED”** sticker with bold print at the time of placing the **‘Re-poll EVM’** in the strong room
6. Paste **‘NOT TO BE COUNTED’** sticker with bold print on the old EVMs/VVPATs, to remove any confusion at the time of counting.
7. Enter the unique ID number of the EVMs/VVPATs used in re-poll in EMS.

CHAPTER – 14

COUNTING OF VOTES

14.1 General Instructions

- 14.1.1 At the time of counting, only bring CUs in Counting Hall.
- 14.1.2 Verify the unique ID of the CU, the Pink Paper Seal and the green paper seal and show to the counting agents before starting the counting.
- 14.1.3 Verify the poll start date & time and poll end date & time displayed on the CU and show to the counting agents.
- 14.1.4 Before taking signature of candidates/their agents/counting agents in Part II of Form 17C, in space between counting supervisor signature and signature of candidates/their agents/counting agents, write in pen – **“We, hereby certify that CU No(s)..... is/are the same which were used in the Polling Station No.”**

14.2 Procedure in case of discrepancy in the date & time of start and end of poll

- 14.2.1 Compare the difference with the date & time noted in the mock poll certificate.
- 14.2.2 If the difference does not match with the date & time difference of start and end of poll at the time of counting, keep the EVMs/VVPATs aside and refer the matter to the Commission.
- 14.2.3 If matches with the difference of date & time of start and end of poll noticed at the time of counting, explain the discrepancy to the candidates and their representatives.
- 14.2.4 Count the votes polled in the EVM in the usual manner.

14.3 Procedure in case the close button is not pressed at the end of the poll – Take the following action during counting of votes, in the presence of candidates/their authorized agents, under videography: -

- 14.3.1 Keep the CU back inside its carrying case and then under Returning Officer's custody in the counting hall. Count the votes in other machines as usual.
- 14.3.2 When counting of votes in other machines is completed, the Returning Officer and the Observer must see the margin of votes between the first candidate and the runner up against the votes polled in such machine(s).
- 14.3.3 In both the cases where the margin of votes is more or less than the total votes polled in that machine(s), the Returning Officer/Counting Supervisor should press the “Total” button of the Control Unit to see the total votes polled in that machine(s).
- 14.3.4 In case, total votes polled in the machine(s) tallies with the total votes polled mentioned in the Form-17 C, the Returning Officer/Counting Supervisor should press the “Close” button of the Control Unit(s) so that “Result” button can be pressed for getting result data.

14.3.5 Explain the entire issue to the candidates and/or their authorized agents and recording a proceeding in this behalf with the signatures of the candidates/their authorized agents. Returning Officer and Observer should send a detailed report to the Commission in the format mentioned at **Annexure-25**.

14.3.6 In case, total votes polled in the machine(s) does not tally with the total votes polled mentioned in the Form-17 C, Returning Officer should refer the matter to the Commission and action to be taken as per the direction of the Commission. In such a case, the Returning Officer and Observer should also send a detailed report to the Commission in the format mentioned at **Annexure-26**, where the margin of votes between the candidates having highest vote and the runner up is more than the votes polled in the Control Unit in question, and in **Annexure-27**, where such margin is less.

14.4 Instructions in case of Control Unit does not display result at the time of Counting.

- First install new power packs in CU to obtain Result. Even then CU does not display result, keep the CU inside its carrying case and then under the Returning Officer's custody in the counting hall. Counting of votes in other machines should continue as usual.
- Corresponding VVPAT shall be counted as per 14.10
- A report regarding counting of printed ballot slips of VVPAT should be sent to the Commission in the following format through Chief Electoral Officer concerned for information.

S. No.	No. & Name of Assembly Constituency	Polling Station No.	Unit ID of VVPAT	Unit ID of Control Unit for which VVPAT paper slips counted	
				Non-retrieval of result from CU	Under Rule 56D of the Conduct of Elections Rules, 1961

14.5 Issues regarding counting of VVPAT slips: non-deletion of mock poll data from the Control Unit or non-removal of mock poll slips from VVPAT-

14.5.1 In case Presiding Officers either fails to delete the data of mock poll from the Control Unit or remove the VVPAT paper slips pertaining to mock poll from the drop box of the VVPAT, the following procedure to be adopted during counting in all such cases:

- Keep the concerned CU(s) aside during counting of votes i.e. these polling stations will not be part of regular round-wise counting of the CU(s). Keep the Table allocated to such polling stations vacant during the relevant round of counting.
- In all pre-identified cases (on poll day, during scrutiny of documents on P+1 day etc), share the list of all such polling stations with the contesting candidates before the commencement of process of counting.

- c) During the round-wise counting of EVMs, if there is any case in which the total votes polled in CU does not match the record of votes in Form 17-C, it is an indication that the Close-Result-Clear (CRC) protocol after mock poll was not followed in this polling station during the actual poll.
- d) RO/ARO must explain the exact details and reasons for such a scenario to the contesting candidates/election agents/counting agents present in the counting hall.
- e) In all cases falling under (b) and (c) above, Count the corresponding VVPATs for these polling stations after completing all counting rounds with CUs.

14.5.2 After the completion of all regular rounds of Control Unit counting, the following procedure to be followed:

A. For State Assembly Elections:

- i. If the winning margin is more than the total votes polled in all such polling stations, declare the result without these polling stations as these polling stations will not be considered for the counting.
- ii. If the winning margin is equal to or less than total votes polled in these polling stations, count the respective VVPAT paper slips only and discard the Control Units.
- iii. Even in cases where VVPAT paper slips pertaining to mock poll have not been taken out from the drop box of the VVPAT, count the VVPAT slips deducting the candidate wise votes from mock poll certificate to arrive at correct count of candidate wise votes polled.

B. For Lok Sabha Elections:

- i. For all the polling stations where EVM and VVPAT has been kept aside, count the respective VVPAT paper slips only and discard the Control Units.
- ii. Even in cases where VVPAT paper slips pertaining mock poll have not been taken out from the drop box of the VVPAT, still count the VVPAT Slips deducting the candidate wise votes from mock poll certificate to arrive at correct count of candidate wise votes polled.
- iii. For both (A) and (B), add the VVPAT slip count result of all these polling stations to the candidate-wise tally and compile the final result.

14.5.3. Since, in the aforesaid cases the Control Units(s) to be discarded/not used for counting of votes, these polling stations will be excluded from the random selection of 5 (five) Polling stations for mandatory verification of VVPAT paper slips count.

14.5.4 Mandatory Verification of VVPAT Slips:

- a) The purpose of mandatory counting and matching result of VVPATs and CUs from 5 randomly selected polling stations is to audit and test if any EVM records votes differently vis-a-vis the slips printed by the corresponding VVPAT attached to it. However, there are multiple scenarios where VVPAT slips are not fully removed

from the VVPAT after mock poll or CRC not done in CU after mock poll or other such cases of human error.

- b) In case there is any mismatch between electronic candidate-wise result of the Control Unit and the candidate-wise VVPAT slips manual count, recount the VVPAT slips of that particular VVPAT till it tallies with the EVM count or one of the previous VVPAT slips count. However, in all such cases before taking up the recount, VVPAT slips
- c) pertaining to the candidates whose result of CU count and VVPAT count is not tallying, counting supervisor must recheck the election symbols of each VVPAT slip carefully of each bundle one-by-one and ensure that all bundles contain the VVPAT slip of the candidate concerned only. Recount to be done, only after following the above process.
- d) Even after following the above process, if the electronic count of the Control Unit and VVPAT slips manual count still do not tally, the VVPAT slip count will prevail as per Rule 56D(4)(b) of the Conduct of Elections Rules, 1961. Amend the result sheet and announce final result accordingly.
- e) A thorough analysis/enquiry will be conducted in due course in all cases where the VVPAT slip count failed to tally with the electronic result of the CU and determine the exact reasons- technological, procedural, systemic, human error or lapses in compliance.
- f) The serial no. of all EVMs used for polling must be counter checked by counting agents and a certificate to this extent to be obtained from them at the time of counting.

14.6 Candidate Demanding VVPAT PAPER SLIPS COUNTING under Rule 56D

After announcement of result sheet entries, any candidate, their election agent or their counting agents may apply in writing to the RO for counting the printed VVPAT paper slips in any or all polling stations. If such application is received, the RO should pass a speaking order on whether the VVPAT paper slips should be counted. If the RO decides to allow the counting of the VVPAT paper slips of any or all polling stations, such decision of the RO must be recorded in writing along with the reasons thereof. The RO should give due consideration to the following:

- 14.6.1 Whether the total number of votes polled in that polling station is greater or lesser than the margin of votes between winning candidate and candidate demanding the counting.
- 14.6.2 Whether EVM had a problem and was replaced at that polling station during poll
- 14.6.3 Whether there was any complaint about VVPAT not printing or complaints by any voter under Rule 49MA in that polling station during the poll.

14.7 MANDATORY VERIFICATION OF VVPAT PAPERSLIPS:

Mandatory verification of VVPAT paper slips of randomly selected 05 (five) polling stations must be conducted in all General and Bye Elections to the House of the People and State Legislative

Assemblies, **in addition** to the provisions of Rule 56D of the Conduct of Elections Rules, 1961, after the completion of the last round of counting of votes recorded in the EVMs, as under:

- i. In case of General and Bye elections to State Legislative Assemblies, verification of VVPAT paper slips of randomly selected **05 (five) polling stations per Assembly Constituency**.
- ii. In case of General and Bye elections to the House of the People, verification of VVPAT paper slips of randomly selected **05 (five) polling stations of each Assembly Segment of the Parliamentary Constituency concerned**. For this mandatory verification of VVPAT paper slips, the following procedure to be followed:

14.7.1 The verification of VVPAT paper slips of randomly selected 05 (five) polling stations for each Assembly Constituency/Segment should be done after the completion of the last round of counting of votes recorded in the EVMs and VVPAT paper slips count due to non-display of result from the Control Unit(s) or under Rule 56(D) of the Conduct of Elections Rules 1961 or whatsoever the reason.

14.7.2 The random selection of 05 (five) polling stations per Assembly Constituency/Segment to be done by Draw of lots, by the Returning Officer concerned, in the presence of candidates/their agents and the General Observer appointed by the Commission for that Constituency.

14.7.3 The draw of lots must be conducted immediately after the completion of the last round of counting of votes mentioned at para 14.7.1. above, in the designated Counting Hall for the particular Assembly Constituency/Assembly Segment.

14.7.4 A written intimation regarding the conduct of draw of lots for the random selection of 05 (five) polling stations for verification of VVPAT Slips should be given by the Returning Officer to the Candidates/their election agents well in advance.

14.7.5 The following procedure to be followed for the conduct of draw of lots:

- a) Use White color paper cards of postcard size for conducting the draw of lots.
- b) Total number of such paper cards must be equal to total number of polling stations in the Assembly Constituency.
- c) Do not include the polling stations where VVPAT paper slips have been counted due to non-display of result from the Control Unit(s) or under Rule 56(D) of the Conduct of Elections Rules 1961 or whatsoever the reason in the draw of lots by mandatory verification of VVPAT slips count.
- d) The paper cards to have pre-printed Assembly Constituency/Assembly Segment number, AC/AS name and date of polling on the top, and the polling station number in the Centre.
- e) Each digit of the polling station number should be atleast 1" x 1"(1 inch by 1 inch) size and printed in black ink.

- f) The paper cards to be used for draw of lots should be four-folded in such a way that polling station number is not visible.
 - g) Show each paper card to the candidates/their agents before folding and dropping in the container.
 - h) Keep the paper cards in a big container and shake well before picking up 01 (one) slip by the Returning Officer.
- 14.7.6 The verification of VVPAT paper slips should be done in a 'VVPAT Counting Booth' (VCB), specially prepared for this purpose inside the Counting Hall. The booth should be enclosed in a wire mesh just like a bank cashier's cabin so that no VVPAT paper slip can be accessed by any unauthorized person. One of the Counting tables in the Counting Hall can be converted into the VCB and can be used for normal counting of round-wise EVM votes before the count of VVPAT slips as per random selection after the completion of round- wise EVM counting.
- 14.7.7 Conduct the Verification count of the VVPAT paper slips of the randomly selected 5 (five) polling stations sequentially i.e. **one after another**.
- 14.7.8 Strictly conduct the verification count of the VVPAT paper slips of randomly selected 05 (five) polling stations in accordance with the instructions of the Commission on counting of printed paper slips.
- 14.7.9 The Returning Officer and the Assistant Returning Officer, as the case may be, should personally supervise the counting of VVPAT paper slips at the VCB. The Observer concerned should maintain close and direct oversight on the entire exercise and ensure strict compliance of the Commission's instructions.
- 14.7.10 In case there is any mismatch between electronic count of the Control Unit and VVPAT slips manual count, recounting of the VVPAT slips of that particular EVM to be counted till it tallies either with the EVM count or one of the previous VVPAT slips counts.
- 14.7.11 After completing the process as specified in para 14.7.10. above, if there is any discrepancy between EVM count and VVPAT paper slips count, as per Rule 56(D)(4)(b) of the Conduct of Elections Rules 1961, the VVPAT paper slips count should prevail. Hence, if there is any discrepancy between the count of votes displayed on the Control Unit and the count of printed paper slips in respect of that polling station, amend the result sheet as per the printed paper slips count.
- 14.7.12 The above process must be fully video recorded.
- 14.7.13 After completion of the above process, the Returning Officer should give a certificate in the annexed format (**Annexure-28**) separately for each polling station to the Chief Electoral Officer concerned. The CEO should compile the reports for the entire State/ UT and submit a consolidated summarized report to the Commission within 7 days from the end of counting process.

14.7.14 The Observer appointed by the Commission should also submit their report to the Commission in the annexed format **(Annexure-29)**

14.8 SEQUENCE OF VVPAT SLIPS COUNT

- a) Count the VVPAT slips of polling station(s) for which result is not displayed on the Display Panel of the Control Unit.
- b) Count the VVPAT slips of polling station(s) ordered/instructions issued by the Commission due to improper conduct of mock poll procedure by non-clearance of mock poll data/slips.
- c) Counting of VVPAT slips under Rule 56D of the Conduct of Elections Rules 1961, if any.
- d) Mandatory verification of VVPAT slips of randomly selected 05 polling stations per Assembly Constituency/each Assembly Segment of Parliamentary Constituency.
- e) Further, count the VVPAT paper slips one by one not simultaneously.
- f) Every one VVPAT paper slips count mentioned at Step 1 & 2 to be considered as a separate round.
- g) In respect of Step c & d, amend the result sheet as per the printed paper slips count, if the paper counts differ from electronic count (CUs) to VVPAT paper slips count in terms of Rule 56D of the Conduct of Elections Rules 1961.

14.9 ARRANGEMENTS FOR COUNTING OF VVPAT PAPER SLIPS:

- a) Returning Officer should earmark one of the Counting Tables inside the Counting Hall as VVPAT Counting Booth (VCB) for Counting of VVPAT Paper Slips.
- a) VCB should have minimum length 6 ft, breadth 6 ft and height 8 ft.
- a) All four sides and ceiling should be covered with narrow wire mesh and a circular hole of 5 cm radius at suitable height for the counting agents' transactions.
- a) Installation of CCTV on ceiling just above the counting table for monitoring and recording purpose.
- a) Seating arrangements for atleast 4 persons inside the VCB.

14.10 PROCEDURE TO COUNT VVPAT PAPER SLIPS:

If the RO decides to count the printed paper slips of any polling station(s) on an appeal for recounting of any polling station(s), the following procedures to be strictly followed:

Step-1:

- a) For keeping VVPAT Paper Slips taken out from the Drop Box of the VVPAT, a sufficiently

sized container with lid, of dimensions 14 inch X 10 inch X 5 inch (length x breadth x height), to easily accommodate around 1400 Printed Paper Slips, to be kept on the table of VCB. This Container should be made of sturdy transparent material like plastic etc. Sample images of the Container are available in **Annexure-30**.

- b) For keeping VVPAT paper slips of the respective candidates, a Pigeonhole Framework should be prepared in advance according to the number of candidates including NOTA, with one additional pigeonhole for keeping self-test slips of the VVPAT, and to be kept on the table of VCB.
 - i. The minimum number of Pigeonholes in the Framework must be equal to the number of candidates plus 2 (two).
 - ii. The size of each compartment (Pigeonhole) must be atleast 6 inch X 4 inch X 4 inch (length x breadth x height).
 - iii. The pigeonhole structure should be made of sturdy transparent material like plastic etc, having a fixed base, to prevent any VVPAT paper slip from slipping underneath.
 - iv. The symbol of each contesting candidate as per the Ballot Paper should be affixed on the wall of the pigeonhole allotted to the particular candidates. The symbol should be printed in black and white on a plain paper of minimum size 4inch X 3 inch. Sample images of the Pigeonhole Framework are placed in **Annexure-30**.
- c) At least 100 Rubber bands for making bundles of 25 VVPAT paper slips.

Step-2

- a) Bring the VVPAT unit(s) of the respective polling station(s) to the VCB one by one.
- b) In case a VVPAT unit was replaced during poll at that polling station, bring all the VVPAT units used at that polling station to the VCB.

Step-3

- a) Take out the printed paper slips from VVPAT used at the polling station, before beginning the counting of VVPAT paper slips for that polling station. In case more than one VVPAT were used, count slips of each VVPATs separately, one by one and enter the result of each VVPAT in the **Annexure-31** (separate for each VVPAT). Thereafter, prepare the Final Result sheet by combining all results of that particular polling station and attach the same to Form-17C.

Before taking out the VVPAT Paper Slips from the drop box, cross check the address tag(s) of the drop box to ascertain that the VVPAT pertains to the respective polling station.

- i. Keep the VVPAT Paper Slips taken out from the Drop Box of the VVPAT first in the container as per specification at Step 1(a).

- ii. After taking out the VVPAT paper slips from Drop Box, the Counting Supervisor must ensure that no VVPAT paper slip is left inside the VVPAT drop box and show the empty drop box to the counting agents.
- iii. In case a VVPAT unit was replaced, it may so happen that an uncut fully or partially VVPAT paper slip is hanging and has not got cut and dropped in the drop box and still connected to the paper roll. This uncut VVPAT paper slip should not be torn and counted because the vote is not recorded electronically in the CU unless the VVPAT paper slip is cut. In such an event, the last voter whose VVPAT paper slip was not cut would have been given an opportunity to cast his vote after replacement of VVPAT and the VVPAT paper slip of the vote cast by him will be in the next VVPAT used in that polling station.
- iv. The drop box of the VVPAT should also have VVPAT slips of self-test report. These are easily identified, as they do not have either the name or the symbol of any candidate. These self-test report slips are to be preserved along with the VVPAT paper slips as part of the record but they are not to be counted.

Step-4

- a) Segregate the VVPAT paper slips one-by-one and put in respective pigeon holes after showing each slip to the Counting Agents. The paper slips bearing self-tests report should also be segregated and put in a separate pigeonhole provided for the purpose.
- b) Prepare bundles of 25 VVPAT paper slips of respective candidates for counting purpose.
- c) Counting staff should then count VVPAT Paper Slips.
- d) Prepare result of the VVPAT paper slips count in the format as per **Annexure-31** and attach to Part-II of Form 17-C (**Annexure-32**).
- e) Announce the result of the count of VVPAT paper slips in the counting hall and show it to the counting agents.
- f) As per Rule 56D (4) (b) of the Conduct of Elections Rules 1961, if there is any discrepancy between EVM count and paper slip count, the paper slip count should prevail. Hence, if there is discrepancy between the counts of votes displayed on the Control Unit and the count of printed-paper slips in respect of that Polling Station, amend the result sheet as per the printed-paper slips count.

Step-5

- a) After completion of counting of VVPAT paper slips, keep the bundles of all the VVPAT Paper Slips back in the Drop Box of the respective VVPAT and seal the door of the Drop Box using address tags.
- b) Allow the candidate(s)/their agents to affix their signature with party abbreviation on the Address Tags.

14.11 Sealing of EVMs after counting of votes

After completion of counting, keep all Control Units whether result has been retrieved from it or not back inside its carrying case and seal the carrying cases once again. The Returning Officer and Observer should put their signatures on the seal. Allow all candidates and their election agents to put their signature on the seal. Then keep the Control Unit in the strong room(s).

SEALING OF EVMs AFTER COUNTING OF VOTES

After the counts completion, keep all CU's used inside the carrying cases and seal the cases once again by passing a thread through hole provided on the carrying cases using Address Tag showing the particulars of the election with the seal of the Returning Officer.



NOTE : *All seals used on the counting day for sealing of EVMs & VVPATs shall be signed by the RO, ARO and candidate / Counting agents.*

After the counting is over: - EVMs/VVPATs are to be kept AC-wise in Strong Room till the period of Election petition is over. The Strong room will have:

- Double Lock System
- One key with DEO and other with Dy. DEO

14.12 STORAGE of EVMs & VVPATs after counting of votes:

After completing counting of votes, keep the EVMs and VVPATs containing printed paper slips in its Drop box in the same strong room. Do not open the Strong room till the completion of Election Petition (EP) period i.e. till EP list is received from respective High Court.

14.13 STORAGE OF VVPAT PAPER SLIPS AFTER EXPIRY OF PERIOD OF FILING OF ELECTION PETITIONS:

Every VVPAT used in elections and kept in the custody of the District Election Officer should be kept untouched, under the standard protocol of security, till confirmation of Election petition position from the High Court concerned.

After expiry of the period of filing of Election Petitions (EPs) i.e. 45-days from the date of declaration of result, within 7 days CEO/DEO should ascertain the position of EP from the concerned High Court and after obtaining the status of EP following action to be taken:

- A. In the case of elections, where no election petition has been filed or no other court cases are pending, after the aforesaid period, the VVPATs to be available for use in any future election or any other purpose like training, awareness, movement, physical verification etc. Before taking out VVPAT slips from the drop box of VVPAT, the following action to be taken:
- a) A Notice informing the opening of Strong Room having VVPATs should be given to the representatives of all political parties in writing at least 48 hours in advance, requesting them to remain present at the time of opening of strong room.
 - b) The strong room to be opened in the presence of the District Election Officer and representatives of Political Parties.
 - c) Remove the Power Packs of Control Units, Paper Rolls of VVPATs.
 - d) VVPAT paper slips pertaining to mock poll and actual poll shall be disposed off as per following procedure:
 - (i) VVPAT paper slips may be disposed off by using Paper Shredding Machine within seven days of the order of District Election Officer..
 - (ii) The above shredding shall be done in the presence of a Gazetted Officer duly nominated by the District Election Officer concerned in the format attached as **Annexure-33**.
 - (iii) The District Election Officers shall submit a certificate in the format attached as **Annexure-34**, to the Chief Electoral Officer concerned in this regard within 15 days of confirmation of Election Petition status.
 - (iv) The Chief Electoral Officers shall submit a consolidate certificate in the format attached as **Annexure-35**, to the Commission within 30 days of confirmation of Election Petition status.
 - e) Ensure thorough checking of officials deputed for the removal of VVPAT paper slips. All pockets must be empty before entering the Sealing Room/Strong Room and thorough checking of officials leaving the sealing room to be done in addition to DFMD/Metal Detector Checking.
 - f) VVPAT should not be kept in the same warehouse where EVMs are stored.
 - g) Conduct videography of the entire process.
- B. In case of any election **where election petition has been filed**, the following action should be taken:-
- If the EVMs or Counting of Votes are the subject of the election petition, the EVMs and VVPATs used at all Polling Stations in the constituency concerned should continue to be kept in the safe custody of the District Election Officer, till such time the Election Petition is finally disposed of by the Courts.

- If the EVMs or counting of votes are not the subject of the election petition, an application may be moved to the concerned Court for allowing the EVMs & VVPATs concerned to be taken out of the strong room for any future election or any other purpose like movement, physical verification etc.
- C. In case VVPATs not involved in any Election Petition/Court Case are stored with the VVPATs involved in Election Petition/Court Case,** the following procedure to be followed for segregating the VVPATs not involved in any election petition/court case from the VVPATs involved in EP/Court case:-
 - A Notice informing the opening of Strong Room having VVPATs involved in EP/Court Case as well as non-EP VVPATs, to be given to the petitioners/respondents of the EP/Court Case and the representatives of all political parties in writing at least 72 hours in advance, requesting them to remain present at the time of opening of strong room.
 - The strong room should be opened in the presence of the District Election Officer, Petitioners/respondents of the EP/Court case and representatives of Political Parties.
 - The VVPATs not involved in any EP/Court Case to be segregated from the VVPATs involved in EP/Court Case for taking out of the strong room. A list of VVPATs being so taken out from the strong room to be prepared.
 - The VVPATs, which are not involved in any EP/Court Case, should only be taken out of the Strong room.
 - The procedure mentioned above to be followed for taking-out, paper rolls and the printed paper slips from all such VVPATs, following which the VVPATs are available for any subsequent deployment/use.
 - Videography of the entire process must be recorded and preserved for record.

14.14 Storage of EVMs and VVPATs in Educational Institutional

- Where EVMs and VVPATs are stored in any School/Educational Institution due to Election Petition and where the educational institution has requested to vacate the same, the Chief Electoral Officers shall immediately file an application before the Court concerned for shifting EVMs and VVPATs from School/Educational Institution to alternate storage place (warehouse). The application should contain the purpose of vacation of School/Educational Institution and also the following protocol to be followed for shifting of EP blocked EVMs/VVPATs:
 - (a) A Notice informing the opening of strong room having EVMs/VVPATs involved in EP shall be given to the petitioner(s) and respondent(s) of the EP in writing atleast 48 hours in advance, requesting them to remain present at the time of opening of the strong room.
 - (b) The strong room shall be opened in the presence of the District Election Officer and Petitioner(s)/Respondent(s) of the EP.

- (c) Petitioner(s) and Respondents(s) of the EP shall be allowed to follow the vehicles carrying EVMs/VVPATs.
- (d) EVMs and VVPATs shall be stored in separate strong room, under double-lock system, in the presence of District Election Officer and Petitioner(s)/Respondent(s) of the EP.
- (f) The strong room shall be sealed in the presence of District Election Officer and Petitioner(s)/Respondent(s) of the EP and Petitioner(s)/Respondent(s) shall also be allowed to put their own seals.
- (g) The entire process shall be videographed.
- Where reason for not vacating education institute cited is lack of space the Chief Electoral Officer shall review and certify that all other warehouses, including the option of hiring warehouses, has been explored and still there is no space available anywhere in the entire district to store these EVMs/VVPATs.

CHAPTER - 15

DOs AND DON'Ts ON USE OF VVPAT

DOs	DON'Ts
Ensure paper roll knob is locked (horizontal position) before transportation.	
In Polling Station, unlock the paper roll knob (vertical position), before switching ON the CU.	Don't switch ON CU before VVPAT paper roll knob is in unlocked condition (vertical position).
Position BU and VVPAT in Voting Compartment. Position CU on PO's Table	
Establish right connection by following the color scheme.	Don't allow direct light or high power illumination over VVPAT.
Ensure the connectors are inserted properly.	Don't remove cables without pressing the clips on the connectors.
Switch 'ON' CU, the Power-On Green LED on VVPAT glows and VVPAT prints all 7 slips.	Don't switch OFF CU unless all 7 slips are printed and cut.
Check for any "ERROR" message on CU. Inform Sector Officer (SO) in case of any "ERROR".	Don't start polling in case of "PRINTER ERROR" message on CU.
Always switch OFF CU before making any connection or disconnection including change of battery.	Don't operate the paper roll knob till the end of the poll.
NOTE: In M3 VVPAT, VVPAT related messages are displayed on the CU's Display.	

CHAPTER - 16

EXAMPLES OF CRITICAL MISTAKES

1. First Level Checking of EVMs and VVPATs

- Non-Updation of FLC-OK or FLC-Reject status in EMS through Mobile-App on day to day basis.
- FLC of VVPATs without using Dummy Ballot Paper on BU.
- Non-Uploading of 16 candidates (including NOTA) Dummy Symbols in the 1% VVPATs used for testing with 4-BUs having 64 dummy symbols (including NOTA)
- Irregularity on use of Dummy Symbols

2. Commissioning of EVMs and VVPATs

- Non-checking of candidate symbols uploaded in VVPAT during commissioning.
- In case of M3 EVMs, M3 VVPATs and all Bus should be connected at the time of commissioning of the EVMs otherwise EVM will not accept a VVPAT or BU at a later stage.

3. Transportation of VVPATs

- Lock paper roll when transporting the VVPAT from one place to another

4. Dispersal

Do not switch on the VVPAT in broad daylight at the time of dispersal as the VVPAT may go into error mode.

5. Mock-Poll on Poll Day

- Not pressing the CLOSE button of CU after mock-poll.
- Not matching the mock-poll result of the CU with the VVPAT Paper Slips.
- Not removing the mock-poll paper slips from VVPAT
- Non-deletion of mock-poll data from the Control Unit.
- When setting up the EVMs and VVPATs in the polling station, the VVPAT should be positioned so as to avoid direct light from falling on it.
- Do not position the VVPAT near an open window or directly under a bulb or halogen lamp.

6. During Poll

- Conducting mock poll, in case of replacement of VVPAT only as Mock poll is not required to be conducted in case of only VVPAT being replaced.
- In case of non-functioning of CU or BU replacing only CU or BU. In such case both BU and CU alongwith VVPAT shall be replaced.
- Non-pressing of CLOSE Button after completion of Poll.
- Damaging any seal of BU/CU/VVPAT.

7. General

- Do not repeatedly switch ON and OFF the VVPAT as it will deplete the battery as well as paper roll.
- Switch OFF the CU when connecting or disconnecting the EVMs/VVPATs and do not pull the cable for disconnecting.
- In case of M3 VVPAT, there is no VSDU and VVPAT status will be displayed on the CU Display Panel.

PART – III

(Introduction of EVM & VVPAT)

INTRODUCTION OF EVMs AND VVPATs			
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CHAPTER – 17

INTRODUCTION

ELECTRONIC VOTING MACHINE (EVM) & VOTER VERIFIABLE PAPER AUDIT TRAIL (VVPAT)



CU

VVPAT

BU

An EVM consists of two units, namely, Control Unit (CU) and Balloting Unit (BU) with a cable (5 mt. long) for connecting the both. A Balloting Unit caters upto 16 candidates. In case of M3-EVMs, 24 (Twenty Four) Balloting Units can be cascaded together for catering to 384 candidates (including NOTA) which can be used with one Control Unit. It runs on a power pack (Battery) having 7.5 volts. In case of M3 EVM, power packs are inserted in 5th, 9th, 13th, 17th & 21st Balloting Units, if more than 4 BUs are connected to a Control Unit. On the right side of the BU along the candidates' vote button, digits 1 to 16 are embossed in Braille signage for guidance of visually impaired electors.

Voter Verifiable Paper Audit Trail is an independent system attached with the Electronic Voting Machines that allows the voters to verify that their votes are cast as intended. When a vote is cast, a slip is printed on the VVPAT printer containing the serial number, name and symbol of the candidate and remains exposed through a transparent window for about 7 seconds. Thereafter, this printed slip automatically gets cut and falls in sealed drop box of the VVPAT.

VVPAT runs on a power pack (Battery) of 22.5 volts. Control Unit is kept with the Presiding Officer/Polling Officer and Balloting Unit and VVPAT are kept in the voting compartment.

For details, kindly read Status Paper on Electronic Voting Machine and Presentation on EVMs & VVPATs available in the ECI's website.

FLOW CHART USE OF EVMS/VVPATS IN ELECTIONS

District Election Officer

(Testing Checking & Allocation of EVMs & VVPATs Assembly Constituency/Segment wise)

- Custodian of EVMs & VVPATs
- First Level Checking (FLC) of EVMs & VVPATs done at his level by the Manufacturers
- Representatives of Recognized National & State Political Parties participate in the FLC process.
- First Randomization of EVMs & VVPATs done after FLC to allocate EVMs assembly constituency/segment wise.



Returning Officer

(Commissioning of EVMs/VVPATs & Allocation of EVMs Polling Station wise)

- Store first randomized EVMs/VVPATs in Strong Rooms
- After finalization of List of contesting Candidates Second randomization of EVMs/VVPATs is done to allocate EVMs/VVPATs Polling Station wise before preparation of EVMs/VVPATs.
- Commissioning of EVMs/VVPATs is done in the presence of Candidates/their Agents.
- Prepared EVMs/VVPATs are again stored in Strong Room in the presence of Candidates/their Agents.
- On day of dispersal of polling parties, Strong rooms are reopened and EVMs/VVPATs with election material handed over to polling parties in the presence of Candidates/their agents



Polling Parties

(Conduct of Poll)

- After receiving EVMs/VVPATs & election materials, polling parties move to their designated polling stations under security
- Before actual poll, Mock-poll is conducted by Presiding Officer in the polling station in the presence of polling agents of the contesting candidates.
- After Mock-poll, data of mock poll is cleared and Result section and drop box of VVPAT are sealed with paper & thread seals.
- After completion of poll, EVMs/VVPATs are escorted back to strong room.
- Polled EVMs/VVPATs are stored under 24 X 7 security of Returning Officer.



Returning Officer (Counting of Votes)

- On counting day, Strong Rooms are opened in the presence of Candidates/their Agents and Observers of the ECI.
- Counting of Votes is done in the presence of Candidates/their Agents and Observers of the ECI.
- After counting of votes EVMs/VVPATs are sealed and stored in Strong Rooms.



Retention of Polled Data in EVMs

- Period for filing Election Petition(EP) is 45-days from the date of declaration of result.
- Data Retention period for EVMs/VVPATs involved in EP is till the final disposal of EP including Appeal, if any.
- DEOs can clear data/slips from the EVMs/VVPATs involved in any EP, but where use of EVMs is not in question, after obtaining permission from the concerned High Court, for using in any subsequent election.
- DEOs can clear data from EVMs where no EP is filed, after verifying the position from the High Court after period for filing EPs is over.

STANDARD SCHEDULE FOR UPCOMING/POLL GOING STATES

PROCESS	TIME SCHEDULE
1	2
Allocation of EVMs/VVPATs by ECI	P-200
Ordering of consumables LOI	P-200
Dispatch from Donor States	P-180
Receipt at Borrower States	P-150
FLC start	P-120
FLC completion	P-50
Dispatch of FLC not ok to BEL/ECIL	P-45
1 st Randomization of EVMs/VVPATs	P-21
2 nd Randomization of EVMs/VVPATs	P-14
Handing over of unused Defective EVMs/VVPAT to manufacturers for repair	C+7
Completion of Repairs	C+90

P = Poll day

C = Counting day

STANDARD SCHEDULE FOR BYE-ELECTION

PROCESS	TIME SCHEDULE
1	2
Assessment of EVMs/VVPATs by CEO	V+1
Ordering of consumables LOI	V+1
FLC start	V+15
FLC completion	V+30

V= Vacancy date

CHAPTER – 18

LEGAL PROVISION FOR THE USE OF EVMs & VVPATs

18.1 The Electronic Voting Machines were used for the first time during the General Election to the Kerala Legislative Assembly held from Parur Assembly Constituency in May, 1982 at 50 polling stations. Thereafter, these machines were used in ten other constituencies in 1982-83.

After 1983, the EVMs could not be used, as in the Election Appeal arising out of the election petition relating to the use of the machines in the election from Parur Assembly Constituency in Kerala, the Supreme Court ruled that there should be specific provision in the law providing for use of EVMs in elections.

Thereupon, the Election Commission of India recommended to the Government of India to amend the law suitably to provide legal sanction for the use of EVMs.

In December, 1988 a new section 61A was inserted in the Representation of the People Act, 1951, empowering the Election Commission of India to use Electronic Voting Machines in elections, which reads as under -

“61A. Voting machines at elections.—Notwithstanding anything contained in this Act or the rules made there under, the giving and recording of votes by voting machines in such manner as may be prescribed, may be adopted in such constituency or constituencies as the Election Commission may, having regard to the circumstances of each case, specify.”

Explanation.—*For the purpose of this section, “voting machine” means any machine or apparatus whether operated electronically or otherwise used for giving or recording of votes and any reference to a ballot box or ballot paper in this Act or the rules made there under shall, save as otherwise provided, be construed as including a reference to such voting machine wherever such voting machine is used at any election.*

The Supreme Court upheld the validity of the above provision in All India Anna Dravida Munnetra Kazhagam v/s. Chief Election Commissioner and others [2002(UJ)(1)387]

[NOTE: In case of any discrepancy kindly refer Manual of Election Laws] THE REPRESENTATION OF THE PEOPLE ACT, 1951 – 58 Fresh poll in the case of destruction, etc., of ballot boxes.—

- 1) If at any election,—
 - a) any ballot box used at a polling station or at a place fixed for the poll is unlawfully taken out of the custody of the presiding officer or the returning officer, or is accidentally or intentionally destroyed or lost, or is damaged or tampered with, to such an extent, that the result of the poll at that polling station or place cannot be ascertained; or
 - b) any voting machine develops a mechanical failure during the course of the recording of votes; or]
 - c) any such error or irregularity in procedure as is likely to vitiate the poll is committed at a

polling station or at a place fixed for the poll, the returning officer shall forthwith report the matter to the ECI.

- 2) Thereupon the Election Commission shall, after taking all material Circumstances into account; either—
- a) declare the poll at that polling station or place to be void, appoint a day, and fix the hours, for taking a fresh poll at that polling station or place and notify the day so appointed and the hours so fixed in such manner as it may deem fit, or
 - b) if satisfied that the result of a fresh poll at that polling station or place will not, in any way, affect the result of the election or that 5[the mechanical failure of the voting machine or] the error or irregularity in procedure is not material, issue such directions to the returning officer as it may deem proper for the further conduct and completion of the election.

The provisions of this Act and of any rules or orders made there under shall apply to every such fresh poll as they apply to the original poll.]

135A. Offence of booth capturing.—

- [(1)] Whoever commits an offence of booth capturing shall be punishable with imprisonment for a term which [shall not be less than one year but which may extend to three years and with fine, and where such offence is committed by a person in the service of the Government, he shall be punishable with imprisonment for a term which shall not be less than three years but which may extend to five years and with fine].

Explanation.— For the purposes of [this sub-section and section 20B], “booth capturing” includes, among other things, all or any of the following activities, namely:—

- (a) seizure of a polling station or a place fixed for the poll by any person or persons, making polling authorities surrender the ballot papers or voting machines and doing of any other act which affects the orderly conduct of elections;
- (b) taking possession of a polling station or a place fixed for the poll by any person or persons and allowing only his or their own supporters to exercise their right to vote and [prevent others from free exercise of their right to vote];
- (c) [coercing or intimidating or threatening directly or indirectly] any elector and preventing him from going to the polling station or a place fixed for the poll to cast his vote;
- (d) seizure of a place for counting of votes by any person or persons, making the counting authorities surrender the ballot papers or voting machines and the doing of anything which affects the orderly counting of votes;
- (e) doing by any person in the service of Government, of all or any of the aforesaid activities or aiding or conniving at, any such activity in the furtherance of the prospects of the election of a candidate.]

(2) An offence punishable under sub-section (1) shall be cognizable.]

169. Power to make rules—

(1) The Central Government may, after consulting the Election Commission, by notification in the Official Gazette, make rules¹ for carrying out the purposes of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely—

[(a) the form of affidavit under sub-section (2) of section 33A;]

[(aa)]the duties of presiding officers and polling officers at polling stations;

[(aaa) the form of contribution report;]

(b) the checking of voters by reference to the electoral roll;

[(bb) the manner of allocation of equitable sharing of time on the cable television network and other electronic media;];

(c) the manner in which votes are to be given both generally and in the case of illiterate voters or voters under physical or other disability;

(d) the manner in which votes are to be given by a presiding officer, polling officer, polling agent or any other person, who being an elector for a constituency is authorised or appointed for duty at a polling station at which he is not entitled to vote;

(e) the procedure to be followed in respect of the tender of vote by a person representing himself to be an elector after another person has voted as such elector;

[(ee) the manner of giving and recording of votes by means of voting machines and the procedure as to voting to be followed at polling stations where such machines are used;]

(f) the procedure as to voting to be followed at elections held in accordance with the system of proportional representation by means of the single transferable vote;

(g) the scrutiny and counting of votes including cases in which a recount of the votes may be made before the declaration of the result of the election;

[(gg) the procedure as to counting of votes recorded by means of voting machines;]

(h) the safe custody of 3[ballot boxes, voting machines], ballot papers and other election papers, the period for which such papers shall be preserved and the inspection and production of such papers;

[(hh) the material to be supplied by the Government to the candidates of recognised political parties at any election to be held for the purposes of constituting the House of the People or the Legislative Assembly of a State;]

- (1) any other matter required to be prescribed by this Act.
- [(3) Every rule made under this Act shall be laid as soon as may be after it is made before each House of Parliament while it is in session for a total period of thirty days which may be comprised in one session or [in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made,] the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.]

18.2 Conduct of Elections Rules, 1961 (Statutory Rules and Order) with Conduct of Elections (Amendment) Rules, 2013

Voting by Electronic Voting Machines & EVMs with VVPATs 49A. Design of Electronic Voting Machines—

Every electronic voting machine (hereinafter referred to as the voting machine) shall have a control unit and a balloting unit and shall be of such designs as may be approved by the Election Commission.

Provided that a printer with a drop box of such design as may be approved by the Election Commission may also be attached to a voting machine for printing a paper trail of the vote, in such constituency or constituencies or parts thereof as the Election Commission may direct.

49B. Preparation of voting machine by the returning Officer.—

- (1) The balloting unit of the voting machine shall contain such particulars and in such language or languages as the Election Commission may specify.
- (2) The names of the candidates shall be arranged on the balloting unit in the same order in which they appear in the list of the contesting candidates.
- (3) If two or more candidates bear the same name, they shall be distinguished by the addition of their occupation or residence or in some other manner.
- (4) Subject to the foregoing provisions of this rule, the returning officer shall—
 - (a) fix the label containing the names and symbol of the contesting candidates in the balloting unit and secure that unit with his seal and the seals of such of the contesting candidates or their election agents present as are desirous of affixing the same;
 - (b) set the number of contesting candidates and close the candidate set section in the control unit and secure it with his seal and the seals of such of the contesting candidates or their election agents present as are desirous of affixing the same;

- (c) **where the printer for paper trail is used under the proviso to rule 49A, set the printer as per the number of contesting candidates set in the Control Unit by –**
 - i) *loading in the printer the serial numbers and names of candidates and symbols allotted to them as given on the balloting units under clause (a);*
 - ii) *loading paper in the printer; and*
 - iii) *sealing the printer in such manner as may be directed by the Election Commission”.*

49C.Arrangements at the polling stations—

- (1) Outside each polling station there shall be displayed prominently—
 - (a) a notice specifying the polling area, the electors of which are entitled to vote at the polling station and, when the polling area has more than one polling station, the particulars of the electors so entitled; and
 - (b) a copy of the list of contesting candidates.
- (2) At each polling station there shall be set up one or more voting compartments in which the electors can record their votes free from observation.
- (3) The returning officer shall provide at each polling station one voting machine and copies of relevant part of the electoral roll and such other election material as may be necessary for taking the poll.
- (4) Without prejudice to the provisions of sub-rule (3), the returning officer may, with the previous approval of the Election Commission, provide one common voting machine for two or more polling stations located in the same premises.

49E.Preparation of voting machine for poll—

- (1) The control unit and balloting unit of every voting machine used at polling station **and the printer for paper trail where used**, shall bear a label marked with—
 - (a) the serial number, if any, and the name of the constituency;
 - (b) the serial number and name of the polling station or stations as the case may be;
 - (c) the serial number of the unit; and
 - (d) the date of poll.
- (2) Immediately before the commencement of the poll, the presiding officer shall demonstrate to the polling agents and other persons present that no vote has been already recorded in the voting machine and it bears the label referred to in sub-rule (1), **and where the printer for paper trail is used that the drop box of the printer is empty.**
- (3) A paper seal shall be used for securing the control unit of the voting machine, and the

presiding officer shall affix his own signature on the paper seal and obtain thereon the signature of such of the polling agents present as the desirous of affixing the same.

- (4) The presiding officer shall thereafter fix the paper seal so signed in the space meant therefore in the control unit of the voting machine and shall secure and seal the same.
- (5) The seal used for securing the control unit shall be fixed in such manner that after the unit has been sealed, it is not possible to press the “result button” without breaking the seal.
- (6) The control unit shall be closed and secured and placed in full view of the presiding officer and the polling agents and the balloting unit placed in the voting compartment.
- (7) **Where the printer for paper trail is used, the printer shall also be kept along with the balloting unit in the voting compartment and shall be connected to the EVM in the manner as directed by the Election Commission.**

49L. Procedure for voting by voting machines. —

- (1) Before permitting an elector to vote, the polling officer shall—
 - (a) Record the electoral roll number of the elector as entered in the marked copy of the electoral roll in a register of voters in Form 17A.
 - (b) Obtain the signature or the thumb impression of the elector on the said register of votes; and
 - (c) Mark the name of the elector in the marked copy of the electoral roll to indicate that he has been allowed to vote:
 - (d) Give details of the document produced by the elector in proof of his/her identification.]

Provided that no elector shall be allowed to vote unless he has his signature or thumb impression on the register of voters.
- (2) Notwithstanding anything contained in sub-rule (2) of rule 2, it shall be necessary for any presiding officer or polling officer or any other officer to attest the thumb impression of the elector on the register of voters.

49M. Maintenance of secrecy of voting by electors within the polling station and voting procedures. —

- (1) Every elector who has been permitted to vote under rule 49L shall maintain secrecy of voting within the polling station and for that purpose observe the voting procedure hereinafter laid down.
- (2) Immediately on being permitted to vote the elector shall proceed to the presiding officer or the polling officer in-charge of the control unit of the voting machine who shall, by pressing the appropriate button on the control unit, activate the balloting unit; for recording of elector's vote.

- (3) The elector shall thereafter forthwith—
 - (a) proceed to the voting compartment;
 - (b) record his vote by pressing the button on the balloting unit against the name and symbol of the candidate for whom he intends to vote; and
 - (c) come out of the voting compartment and leave the polling station:

Provided that where printer for paper trail is used, upon casting the vote by pressing the button under clause (b), the elector shall be able to view through the transparent window of the printer, kept along with the balloting unit inside the voting compartment, the printed paper slip showing the serial no, name and the symbol of the candidate for whom he has cast his vote before such paper slip gets cut and drops in the drop box of the printer”.

- (4) Every elector shall vote without undue delay.
- (5) No elector shall be allowed to enter the voting compartment when another elector is inside it.
- (6) If an elector who has been permitted to vote under rule 49L or rule 49P refuses after warning given by the presiding officer to observe the procedure laid down in sub-rule (3) of the said rules, the presiding officer or a polling officer under the direction of the presiding officer shall not allow such elector to vote.
- (7) Where an elector is not allowed to vote under sub-rule (6), a remark to the effect that voting procedure has been violated shall be made against the elector's name in the register of voters in Form 17A by the presiding officer under his signature.

49MA Procedure in case of complaint about particulars printed on paper slip-

- (1) Where printer for paper trail is used, if an elector after having recorded his vote under rule 49M alleges that the paper slip generated by the printer has shown the name or symbol of a candidate other than the one he voted for, the presiding officer shall obtain a written declaration from the elector as to the allegation, after warning the elector about the consequence of making a false declaration.
- (2) If the elector gives the written declaration referred to in sub-rule (1), the presiding officer shall make a second entry related to that elector in Form 17A, and permit the elector to record a test vote in the voting machine in his presence and in the presence of the candidates or polling agents who may be present in the polling station, and observe the paper slip generated by the printer.
- (3) If the allegation is found true, the presiding officer shall report the facts immediately to the returning officer, stop further recording of votes in that voting machine and act as per the direction that may be given by the Returning Officer.
- (4) If, however, the allegation is found to be false and the paper slip so generated under

sub-rule (1) matches with the test vote recorded by the elector under sub-rule (2), then, the presiding officer shall-

- (i) make a remark to that effect against the second entry relating to that elector in Form 17A mentioning the serial number and name of the candidate for whom such test votes has been recorded;
- (ii) obtain the signature or thumb impression of that elector against such remarks; and
- (iii) make necessary entries regarding such test vote in item 5 in Part I of Form 17C.

49N. Recording of votes of blind or infirm electors.—

- (1) If the presiding officer is satisfied that owing to blindness or other physical infirmities an elector is unable to recognise the symbol on the balloting unit of the voting machine or unable to record his vote by pressing the appropriate button thereon without assistance the presiding officer shall permit the elector to take with him a companion of not less than eighteen years of age to the voting compartment for recording the vote on his behalf and in accordance with his wishes: Provided that no person shall be permitted to act as the companion of more than one elector at any polling station on the same day: Provided further that before any person is permitted to act as the companion of an elector on any day under this rule that person shall be required to declare that he will keep secret the vote recorded by him on behalf of the elector and that he has not already acted as the companion of any other elector at any other polling station on that day
- (2) The presiding officer shall keep a record in Form 14A of all cases under this rule.

49Q. Presiding Officer's entry in the voting compartment during poll.—

- (1) The presiding officer may whenever he considers it necessary so to do, enter the voting compartment during poll and take such steps as may be necessary to ensure that the balloting unit is not tampered or interfered with in any way.
- (2) If the presiding officer has reason to suspect that an elector who has entered the voting compartment is tampering or otherwise interfering with the balloting unit or has remained inside the voting compartment for unduly long period, he shall enter the voting compartment and take such steps as may be necessary to ensure the smooth and orderly progress of the poll.
- (3) Whenever the presiding officer enters the voting compartment under this rule, he shall permit the polling agents present to accompany him if they so desire.

49R. Closing of poll.—

- (1) The presiding officer shall close a polling station at the hour fixed in that behalf under section 56 and shall not thereafter admit any elector into the polling station:

Provided that all electors present at the polling station before it is closed shall be allowed to cast their votes.

- (2) If any question arises whether an elector was present at the polling station before it was closed it shall be decided by the presiding officer and his decision shall be final.

49S. Account of votes recorded.—

- (1) The presiding officer shall at the close of the poll prepare an account of votes recorded in Form 17C and enclose it in a separate cover with the words 'Account of Votes Recorded' superscribed thereon.
- (2) The presiding officer shall furnish to every polling agent present at the close of the poll a true copy of the entries made in Form 17C after obtaining a receipt from the said polling agent therefore and shall attest it as a true copy.

49T. Sealing of voting machine after poll.—

- (1) As soon as practicable after the closing of the poll, the presiding officer shall close the control unit to ensure that no further votes can be recorded and shall detach the balloting unit from the control unit **and from the printer, where printer is also used, so however, that the paper slips contained in the drop box of the printer shall remain intact.**
- (2) The control unit and the balloting unit **and the printer, where it is used,** shall thereafter be sealed, and secured separately in such manner as the Election Commission may direct and the seal used for securing them shall be so affixed that it will not be possible to open the units without breaking the seals.
- (3) The polling agents present at the polling station, who desire to affix their seals, shall also be permitted to do so.

49U. Sealing of other packets.—

- (1) The presiding officer shall then make into separate packet,—
 - (a) the marked copy of the electoral roll;
 - (b) the register of voters in Form 17A;
 - (c) the cover containing the tendered ballot papers and the list in Form 17B;
 - (d) the list of challenged votes; and
 - (e) any other papers directed by the Election Commission to be kept in a sealed packet.
- (2) Each packet shall be sealed with the seal of the presiding officer and with the seal either of the candidate or of his election agent or of his polling agent who may be present at the polling station and may desire to affix his seal thereon.

49V. Transmission of voting machines, etc., to the returning officer.—

- (1) The presiding officer shall then deliver or cause to be delivered to the returning officer at such place as the returning officer may direct,—
 - (a) the voting machine;
 - (b) the account of votes recorded in Form 17C;
 - (c) the sealed packets referred to in rule 49U; and
 - (d) all other papers used at the poll. 80
- (2) The returning officer shall make adequate arrangements for the safe transport of the voting machine, packets and other papers for their safe custody until the commencement of the counting of votes.

49X. Closing of voting machine in case of booth capturing.—Where the presiding officer is of opinion that booth capturing is taking place at a polling station or at a place fixed for the poll, he shall immediately close the control unit of the voting machine to ensure that no further votes can be recorded and shall detach the balloting that from the control unit.]

49W. Procedure on adjournment of poll.—

- (1) If the poll at any polling station is adjourned under sub-section (1) of section 57, the provision of rules 49S to 49V shall, as far as practicable, apply as if the poll was closed at the hour fixed in that behalf under section 56.
- (2) When an adjourned poll is recommended under sub-section (2) of section 57, the electors who have already voted at the poll so adjourned shall not be allowed to vote again.
- (3) The returning officer shall provide the presiding officer of the polling station at which such adjourned poll is held, with the sealed packet containing the marked copy of the electoral roll, register of voters in Form 17A and a new voting machine.
- (4) The presiding officer shall open the sealed packet in the presence of the polling agents present and use the marked copy of the electoral roll for marking the names of the electors who are allowed to vote at the adjourned poll.
- (5) The provisions of rule 28 and rules 49A to 49V shall apply in relation to the conduct of an adjourned poll before it was so adjourned.

66A. Counting of votes where electronic voting machines have been used.—

In relation to the counting of votes at a polling station, where voting machine has been used,—

- (i) the provisions of rules 50 to 54 and in lieu of rules 55, 56 and 57, the following rules shall respectively apply, namely:—

55C. Scrutiny and inspection of voting machines.—

- (1) The returning officer may have the control units of the voting machines used at more than one polling station taken up for scrutiny and inspection and votes recorded in such units counted simultaneously.
- (2) Before the votes recorded in any control unit of voting machine are counted under sub-rule (1), the candidate or his election agent or his counting agent present at the counting table shall be allowed to inspect the paper seal and such other vital seals as might have been affixed on the unit and to satisfy themselves that the seals are intact.
- (3) The returning officer shall satisfy himself that none of the voting machines has in fact been tampered with.
- (4) If the returning officer is satisfied that any voting machine has in fact been tampered with, he shall not count the votes recorded in that machine and shall follow the procedure laid down in section 58, or section 58A or section 64A, as may be applicable in respect of the polling station or stations where that machine was used.

56C. Counting of votes.—

- (1) After the returning officer is satisfied that a voting machine has in fact not been
- (2) tampered with, he shall have the votes recorded therein counted by pressing the appropriate button marked “Result” provided in the control unit whereby the total votes polled and votes polled by each candidate shall be displayed in respect of each such candidate on the display panel provided for the purpose in the unit.
- (3) As the votes polled by each candidate are displayed on the control unit, the returning officer shall have,—
 - (a) the number of such votes recorded separately in respect of each candidate in Part II on Form 17C;

Provided that the test vote recorded, if any, for a candidate, as per item 5 in Part I of Form 17C, shall be subtracted from the number of votes recorded for such candidate as displayed on the control unit.

- (b) Part II of Form 17C completed in other respects and signed by the counting supervisor and also by the candidates or their election agents or their counting agents present; and
- (c) corresponding entries made in a result sheet in Form 20 and the particulars so entered in the result sheet announced.

“56D Scrutiny of paper trail-

- (1) **Where printer for paper trail is used, after the entries made in the result sheet are announced, any candidate, or in his absence, his election agent or any of his counting**

agents may apply in writing to the returning officer to count the printed paper slips in the drop box of the printer in respect of any polling station or polling stations.

- (2) On such application being made, the returning officer shall, subject to such general or special guidelines, as may be issued by the Election Commission, decide the matter and may allow the application in whole or in part or may reject in whole, if it appears to him to be frivolous or unreasonable.
- (3) Every decision of the returning officer under sub-rule (2) shall be in writing and shall contain the reasons there for.
- (4) If the returning officer decides under sub-rule (2) to allow counting of the paper slips either wholly or in part or parts, he shall-
 - (a) do the counting in the manner as may be directed by the Election Commission;
 - (b) if there is discrepancy between the votes displayed on the control unit and the counting of the paper slips, amend the result sheet in Form 20 as per the paper slips count;
 - (c) announce the amendments so made by him; and
 - (d) complete and sign the result sheet.”

57C. *Sealing of voting machines.*—

- (1) After the result of voting recorded in a control unit has been ascertained candidate-wise and entered in Part II of Form 17C and Form 20 under rule 56C, the returning officer shall reseal the unit with his seal and the seals of such of the candidates or their election agents present who may desire to affix the seals thereon so however that the result of voting recorded in the unit is not obliterated and the unit retains the memory of such result **and where printer for paper trail is used, the returning officer shall seal the paper slips in such manner, as may be directed by the Election Commission.**
- (2) The control unit **and the paper slips** so sealed shall be kept in specially prepared boxes on which the returning officer shall record the following particulars, namely:—
 - (a) the name of the constituency;
 - (b) the particulars of polling station or stations where the control unit has been used;
 - (c) serial number of the control unit **and printer wherever used;**
 - (d) date of poll; and
 - (e) date of counting;’;
- (ii) the provisions of rules 60 to 66 shall, so far as may be, apply in relation to voting by voting machines and any reference in those rules to,—

- (a) ballot paper shall be construed as including a reference to such voting machine; 91
- (b) any rule shall be construed as a reference to the corresponding rule in Chapter II of Part IV or, as the case may be, to rule 55C or 56C or 57C].

92. Custody of ballot boxes and papers relating to election-

(1A) All voting machines used at an election shall be kept in the custody of the concerned district election officer.

(2) The district election officer shall keep in safe custody-

(cc) the printed paper slips sealed under the provisions of rule 57C.

(dd) The packets containing registers of voters in Form 17A

[93. Production and inspection of election papers.—

- (1) While in the custody of the district election officer or, as the case may be, the returning officer—
 - (a) the packets of unused ballot papers with counterfoils attached thereto;
 - (b) the packets of used ballot papers whether valid, tendered or rejected;
 - (c) the packets of the counterfoils of used ballot papers;

(cc) the printed paper slips sealed under the provisions of rule 57C.

- (d) the packets of the marked copy of the electoral roll or, as the case may be, the list maintained under sub-section (1) or sub-section (2) of section 152; and

[(dd) the packets containing registers of voters in form 17-A;]

- (e) the packets of the declarations by electors and the attestation of their signatures; shall not be opened and their contents shall not be inspected by, or produced before, any person or authority except under the order of a competent court.

[14) The control units sealed under the provisions of rule 57C and kept in the custody of the district election officer shall not be opened and shall not be inspected by, or produced before, any person or authority except under the orders of a competent court.]

- (2) Subject to such conditions and to the payment of such fee as the Election Commission may direct, —
 - (a) all other papers relating to the election shall be open to public inspection; and
 - (b) copies thereof shall on application be furnished.
- (3) copies of the returns by the returning officer forwarded under rule 64, or as the case may be, under clause (b) of sub-rule (1) of rule 84 shall be furnished by the returning officer, district

election officer, chief electoral officer or the Election Commission on payment of a fee of two rupees for each copy.]

94. Disposal of election papers.—

Subject to any direction to the contrary given by the Election Commission or by a competent court or tribunal—

[(a) the packets of unused ballot papers shall be retained for a period of six months and shall thereafter be destroyed in such manner as the Election Commission may direct;]

[(aa) the voting machines kept in the custody of the district election officer under sub-rule (1A) of rule 92 shall be retained intact for such period as the Election Commission may direct and shall not be used at any subsequent election without the previous approval of the Election Commission;]

(b) the other packets referred to in sub-rule (1) of rule 93 shall be retained for a period of one year and shall thereafter be destroyed:

[Provided that packets containing the counterfoils of used ballot papers **and the printer paper slips, if any**, shall not be destroyed except with the previous approval of the Election Commission;]

(c) all other papers relating to the election shall be retained for such period as the Election Commission may direct.

95. Power of the Election Commission to issue directions.—

Subject to the other provisions of these rules, the Election Commission may issue such directions as it may consider necessary to facilitate the proper use and operation of the voting machines.

[For provisions regarding use of VVPAT system please refer to the Conduct of Elections (Amendment) Rules, 2013]

CHAPTER – 19

EVM MANAGEMENT SYSTEM (EMS)

EVM Management System (EMS) is an application developed by ECI for managing a centralized database of EVM machines of all 36 States and UTs of India. It allows Tracking inventories of Control Units, Balloting Units and VVPATs with their locations. This application comprises of Web based module and an android based mobile application. All the official from ECI, Manufacturer, CEO, DEO, Warehouse in-charge, AC and PC user are the stakeholders of the application. The Mobile application is only meant for the Temporary users for scanning the machines. New Stock entry will be done at manufacturer level only. Web- based application having core functionalities related to EVMs/VVPATs. EMS Application has six user modules i.e. (ECI Admin, Manufacturer, CEO /CEO office, DEO /DDEO, Warehouse-in- charge (States/UTs & Manufacturer both) and Temp User (Mobile App User – ECI User's & Manufacturer's User Both).

In EMS Application an email-id and one Mobile number is used only for one user. User for CEO of States is created by ECI Admin. After creating CEO user, he can create their CEO Office/DEO users and DEO can create Warehouse users.

After creating user, a link will be sent to their registered email id and OTP on registered mobile number. User has to click on that link after that he has to enter the OTP received on registered mobile numbers, after submitting user can create their own password. In EMS there is no restriction for creation of Temporary users; DEO can create as number of temporary users to work at warehouse level. EMS application covers the following functional modules in web:

- i. User & Entity Management
- ii. Production of new units
- iii. Shifting of Units
- iv. First Level Check (FLC)
- v. Awareness
- vi. Randomization
- vii. Supplementary Randomization
- viii. Replacement Units
- ix. Election Petition & Reserve Unit Handling
- x. Conflict Handling

Various reports are made available in the EMS for its users at the level of ECI Admin/ CEO/ DEO/WH Manager / Manufacturer to check the status of work allocated and to identify pending issues. For detailed application User Manual kindly see at <https://supports.ecitech.in>. Users can also raise queries/tickets for any issue related to EMS through the user created for them at <https://supports.ecitech.in>

Mobile Applications

Android based Mobile Applications interfaced with the EMS application, developed for supporting application which will be used by temporary users for mainly scanning at warehouse level during sending and receiving and temp user will be able to access following modules to corresponding warehouses.

- i. Dashboard
- ii. Send/ Receive
- iii. First Level Check
- iv. Awareness
- v. Assembly Constituency(AC) Level Randomization
- vi. Polling Station(PS) Randomization
- vii. Receiving of reserve units
- viii. Conflict handling
- ix. Pending Uploads

Only the work assign to the user will be displayed in their login, user will not be able to operate other features of application if the work is not assign to him. Download of the Mobile Application is available on top of Home Page of EVM Management System Application.

EVM Management System (EMS)

Salient Feature EMS Life Cycle

- ✓ EVM units (BU /CU /VVPAT) lifecycle management from production to destruction
- ✓ EVM order management from Intra-State, Intra-District and Inter-State.

Management

- ✓ To provide order modification & order cancellation facilities
- ✓ Make easy to search details of units by providing unit ID or few basic details
- ✓ Capture information of replaced units during commissioning, dispersal, mock poll & actual poll
- ✓ Capture defect description of units during marking unit as a defective
- ✓ Blocking & Unblocking of Units

Tracking and Reporting

- ✓ To make smooth flow of order generation & real time order tracking
- ✓ To keep record of status of each and every EVM units
- ✓ To generate real time reports of EVM units regarding warehouse, availability, etc.
- ✓ To keep track of status EVM units during on-going election process activities; from FLC to poll day EVM unit's deployment
- ✓ Various types of real time reports can be generated; filter basis search

Uniqueness of Records

- ✓ Prevent manual entry of EVM units to avoid error / duplication of units across the warehouses, etc.
- ✓ New produced units can be entered into system only by scanning
- ✓ Generated orders can be cancelled if sender has not started scanning of the units

Security

- ✓ Two Factor Authentication email & SMS Notification will be sent on every action to every affected users
- ✓ Auto expired validation of temp users (Mobile Users)
- ✓ Whole website is encrypted and SSL is used across all the modules.

CHAPTER – 20

DISPOSAL OF EVMs

Guidelines to follow for destruction of EVMs/VVPATs by the manufacturer:

1. Separate PCBs from Plastic Housings.
2. Remove/chop off all components mounted on PCBs of CU, BU & Display and crush.
3. Cut the bare PCBs into minimum 4 pieces and crush and the remaining plastic assemblies/housing cut into 4 to 6 pieces.
4. Recycle Plastic waste to ensure that environment is protected.
5. Videography the entire process of the disposal/destruction of EVMs.
6. Send a copy of the video of disposal/destruction of EVMs to the CEO concerned and ECI to ensure that the whole process is viewed by both of them to certify that nothing adverse is noticed.
7. Follow the guidelines/safeguards for destruction of electronic items, issued by the Pollution Control Board/Ministry of Environment and Forests etc. or any other law for the time being in force and ensure that e-wastes are channelized to registered dismantler or recycler
8. Maintain a register for proper record of each destroyed/destroyed BU and CU–
 - Serial number/ID of each BU and CU destroyed, date-wise, shall be entered in a register (maintain separate registers for BU & CU);
 - On the close of the day, record a certificate after the last entry to the effect **that “today on.....(date) number of BU/CU (as the case may be) has been destructed in my presence”** and obtain signatures of the officer of the manufacturer nominated for the purpose and signatures of the representative of the CEO concerned and e-waste agency.

PART – IV

(Annexures)

ANNEXURES			
Sl. No.	Chapter No	Contents	Page No.
1	ANNEXURES	ANNEXURES	100-154

(Master Stock Register)
Part- A (Control Unit)

Name of State/Union Territory:

Name of District:

Name of sub-division/taluka:

Address of Warehouse:

Box No.	CU ID No.	Name of Manufacturer	Year of Manufacture	Date of Receipt	Receipt Challan No.	Date on receipt challan	Name and designation of receiver	Signature of receiver	Signature of Warehouse-in-charge	Remarks
1	2	3	4	5	6	7	8	9	10	11

Part-B (Balloting Unit)

Box No.	BU ID No	Name of Manufacturer	Year of Manufacture	Date of Receipt	Receipt Challan No.	Date on receipt challan	Name and designation of receiver	Signature of receiver	Signature of Warehouse-in-charge	Remarks
1	2	3	4	5	6	7	8	9	10	11

(Similar for VVPAT)

Form No. ECI/EVM/WH/INSP/01

Certificate of monthly/quarterly inspection of EVM-VVPAT Warehouse(s)

I, hereby, certify that as per the Commission's instruction, I personally visited the EVM-VVPAT warehouse(s) and I am satisfied with the arrangements as under:

S.No.	Particulars	Inspection Report
1	EVM-VVPAT warehouse is at	(a) District Headquarters (b) Tehsil Headquarters (c) Other (specify the same)
2	How many entry point(s) is/are there in EVM-VVPAT warehouse?	
3	What type of lock system is observed in EVM-VVPAT warehouse	
4	Other doors and windows, if any, in the warehouse, are sealed with which material	
5	(a) Number of CCTV installed	
	(b) Whether DVR was connected with laptop to inspect the activities in WH? What was the observation?	
6	(a) Whether log-book showing the duty of the security personnel was inspected?	Yes/No
	(b) How many security personnel were deployed in each shift?	
	(c) When was the warehouse opened last time?	
	(d) Kindly mention reason for opening of warehouse and who authorized the opening of warehouse.	
7	Where is the main switch of the warehouse installed?	
8	(a) How many fire- fighting equipments are installed?	
	(b) Kindly mention the date of expiry.	
9	Kindly attach Photographs of inspection of warehouse(s)	
10	Check for dampness/water logging/rodents/any other abnormality etc. during quarterly inspection.	

Date of Inspection:

--Signature--
(Name of District Election Officer)
Name of District

Annexure - 3

(Attendance Register for Political Parties-FLC Hall)

Name of State/UT:

Name of District:

Address of FLC hall:

Date:.....

S.No.	Name of National/State Party	Name of representative of political party with party affiliation	Identity document No. with date	Signature of representative	Remarks, if any.

Note: If the representative of a party is absent the proof of due service of notice to the party should be pasted in the register.

(Name and signature of engineers of BEL/ECIL with ID No.)

(Name, designation, signature of officers nominated by District Election Officer)

Part-I (Inspection Report of arrangement for FLC)

Name of State/UT:.....

Name of District:.....

Address of FLC Hall:.....

EVMs/VVPATs of BEL/ECIL:.....

Date:.....

S. No.	Particulars	Report
1.	Total Number of Polling Stations.	
2.	Quantity of units (a) Balloting Units (b) Control Units (c) VVPATs	
3.	Number of engineers deployed by BEL/ECIL.	
4.	Expected FLC start date.	
5.	Whether FLC hall is sufficiently large to accommodate the EVMs and VVPATs to be checked, officials nominated by the DEO, engineers of BEL/ECIL and also representatives of political parties.	
6.	Whether FLC hall well-lighted, well ventilated and dust free.	
7.	Whether adequate arrangement of fire extinguishers and fire alarm has been made inside and outside the FLC hall.	
8.	Whether FLC area has been barricaded and sanitized by police.	
9.	Whether the hall is free from any other electronic device or components of electronic devices.	
10.	Whether facilities of drinking water, toilet, first aid etc. are available.	
11.	Whether there is only one entry and exit point to the hall and guarded by armed police force round the clock.	
12.	Whether Door Frame Metal Detector are installed.	
13.	Whether arrangement for frisking has been made.	
14.	Whether Identity Cards for entry into the FLC hall to the authorised officials/ representatives of political parties have been issued by the DEO.	
15.	Whether webcasting showing FLC tables clearly visible in DEO's chamber.	
16.	Whether log book to record entry of every person has been kept at FLC hall.	
17.	Whether a separate log book (i.e. duty register) to be maintained for armed police force deployed for FLC hall has been kept at FLC hall.	

18.	Whether all required registers and formats mentioned in the Commission's letter No. 51/8/16/4/2017-EMS, dated 30 th August, 2017 are ready and kept in FLC hall.	
19.	Number of Armed Police Personnel planned in each shift.	
20	Whether all National and State Recognized Political Parties at district and State level have been invited in writing and notices duly served.	

(Signature)
Name and Designation

Part-II (Inspection Report of quality of FLC)

Name of State/UT:.....

Name of District:.....

Address of FLC Hall:.....

EVMs/VVPATs of BEL/ECIL:.....

Date:.....

S. No.	Particulars	Report
1.	Total Number of Polling Stations.	
2.	Quantity of units subject to FLC (a) Balloting Units (b) Control Units (c) VVPATs	
3.	Total number of BEL/ECIL authorised engineers present.	
4.	Date of FLC start	
5.	Quantity of units FLC done sofar (a) Balloting Units (b) Control Units (c) VVPATs	
6.	Name and designation of FLC Supervisor appointed by DEO	
7.	Photocopies of attendance register of political parties	
8.	Who is monitoring Webcasting of FLC process in the Control Room?	
9.	SoP to confirm that all components of the EVMs are original is available with authorised engineers of BEL/ECIL.	
10.	SoP mentioning the step-by-step instructions of checking of the machines is pasted prominently at FLC hall.	

11.	PCB and other components of EVMs are shown to the representatives of political parties.	
12.	Whether DEO is conducting a daily inspection of the FLC venue and FLC process.	
13.	Whether ECI instructions on FLC process are being followed in letter and spirit.	
14.	Kindly mention below shortcomings or suggestions for improvement.	

(Signature)

Name and Designation

Annexure - 5

(Certification of EVMs by BEL/ECIL)

Name of State/UT:

Name of District:

Address of hall:

Date:

It is certified that tests prescribed by BEL/ECIL to ascertain that all components are original were carried out on the EVMs listed below on... ..(date).
On the basis of these tests it is certified that all components of the EVMs listed below are original.

CU Identification No.

BU Identification No.

(Name & signature of BEL/ECIL engineers with ID No.)

(Names of Representatives of political parties with their party affiliation and signature)

(Name, designation, signature of officers nominated by District Election Officer)

(Mock Poll certification during FLC of VVPATs)**Date:.....****Name of State/UT:****Name of District:****Address of hall:**

It is certified that the **results of the printed ballot slips of VVPATs (list of unique ID of VVPATs attached)** have been tallied with the electronic result of the respective Control Units. There are no discrepancies between the electronic count of the Control Units and count of printed ballot paper slips of VVPATs.

S.No.	Name of National/State Party	Name of representative of political party with party affiliation	Identity document No. with date	Signature of representative	Remarks, if any.

Name of Engineers of BEL/ECIL

(Signature)

1.

2.

3.

(Signature).....

Name of FLC-Supervisor.....

Designation.....

Annexure - 7**(Mock Poll Random Selection During FLC)****Date:****Name of State/UT:****Name of District:****Address of hall:**

It is certified that I have been allowed to pick machines (EVMs as well as VVPATs) randomly for the purpose of mock-poll.

Sl. No.	Name of National/State Party	Name of representative of political party with party affiliation	Identity document No. with date	Signature of representative	Remarks, if any.

Annexure - 8

(Mock Poll by Representatives of Political Parties during FLC)

Date:.....

Name of State/UT:

Name of District:

Address of hall:

It is certified that I have done mock poll on..... EVMs
along with VVPATs and I am fully satisfied with the functioning of EVMs.

S. No.	Name of National/ State Party	Name of representative of political party with party affiliation	Identity document No. with date	Signature of representative	Remarks, if any.

(Sealing of Control Unit of EVMs using Pink Paper Seal)**Name of State/UT:****Name of District:****Address of FLC hall:****Date:**

It is certified that the sealing of the Control Units using Pink Paper Seals has been done in my presence. I have put my signature on the Pink Paper Seals after sealing of the Control Units and I am satisfied with the sealing of the Control Units.

Sl.No.	Unique ID No. of Control Unit	Pink Paper Seal Number

S. No.	Name of National/State Party	Name of representative of political party with party affiliation	Identity document No. with date	Signature of representative

(Name, designation, signature of officers nominated by District Election Officer)

(Certificate on arrangement for FLC by DEO)

Name of State/UT:

Name of District:

Address of FLC hall:

Date:.....

S.No.	Particulars	(Yes/No)
1	Whether FLC hall is sufficiently large to accommodate the EVMs and VVPATs to be checked, officials nominated by the DEO, engineers of BEL and ECIL and also representatives of political parties.	
2	Whether FLC Hall well-lighted, well ventilated and dust free.	
3	Whether FLC area has been barricaded and sanitized by police	
4	Whether adequate arrangement of fire extinguishers and fire alarm has been made inside and outside the hall.	
5	Whether hall is free from any other electronic device or components of electronic devices	
6	Whether facilities of drinking water, toilet, first aid etc are available	
7	Whether there is only one entry and exit point to the hall and guarded by armed police force round the clock.	
8	Whether door frame, metal detector are installed	
9	Whether arrangement for frisking has been made	
10	Whether Identity Cards for entry into the FLC hall to the authorized officials/ Representatives of political parties have been issued by the District Election Officer	
11	Whether arrangement of webcasting have been made	
12	Whether log book to record entry of every person has been kept at FLC hall	
13	Whether a separate log book (i.e. duty roster) to be maintained for armed police force deployed for FLC hall has been kept at FLC hall	
14	Whether all required registers and formats are ready and kept in FLC hall	
15	Number of Armed Police Personnel in each shift	

I have personally inspected the above arrangements.

(Name and Signature of District Election Officer)

(Certificate on completion of FLC process)**Name of State/UT:****Name of District:****Address of FLC hall:****Date:.....**

It is certified that FLC process has been completed on
(date) as per

instructions of the Commission on First Level Checking of EVMs and VVPATs. I personally inspected FLC on following dates:

The status of EVMs and VVPATs after completion of FLC is as under:

Name of District	Available in the District			FLC Ok Quantity			FLC Reject Quantity		
	BU	CU	VVPAT	BU	CU	VVPAT	BU	CU	VVPAT

The defective EVMs and VVPATs shall be shifted to the manufacturer (BEL/ECIL) on...
i.e. within 7 days from the date of completion of FLC process in the district.

(Name and Signature of District Election Officer)

HOW TO CAST YOUR VOTE

USING EVM & VVPAT



- 1 ENTER THE BOOTH**

The Presiding Officer will enable the ballot Unit while you enter the polling compartment.


- 2 CAST YOUR VOTE**

Press the Blue Button on the Ballot Unit against the name /symbol of candidate of your choice.


- 3 SEE THE LIGHT**

The red light against the name /symbol of candidate chosen will glow.


- 4 SEE THE PRINT**

The Printer will print a ballot slip containing Serial Number, Name and Symbol of the chosen Candidate as shown.



This ballot slip will be visible for seven seconds after which it will be cut and dropped in the printer's drop box and a beep will be heard.

See the print through the glass, as the printout will not be given to you

NOTE!

If you do not see the ballot slip and hear the loud beep please contact the Presiding officer.

ELECTION COMMISSION OF INDIA

www.eci.nic.in

ELECTION COMMISSION OF INDIA

BROCHURE FOR PRESIDING OFFICER (ON USE OF EVM & VVPAT)



Preliminary Checks on Dispersal Day

1. Remove Balloting Unit(s), Control Unit and VVPAT carefully from the respective carrying case
2. **Balloting Unit(s)**

Check:

- o Address Tags of BU to ensure BU(s) is pertaining to your assigned polling station
- o Pink Paper Seal of BU is intact
- o Ballot Paper is installed properly
- o Ballot buttons upto NOTA are unmasked
- o Thumb wheel position is 01 for first BU (If more than 01 BU is used, Thumb wheel position for 2nd BU is 02, for 3rd BU is 03 and so on)

3. **Control Unit**

Check:

- o Address Tags of CU to ensure CU is pertaining to your assigned polling station
- o Pink Paper Seal of CU is intact
- o Switch ON the CU (without connecting to BU and/or VVPAT) to check Battery status and number of contesting candidates
- o Thereafter, Switch OFF the CU

4. **VVPAT**

Check:

- o Address Tags of VVPAT to ensure that VVPAT is pertaining to your assigned polling station
- o Power Pack (Battery) is installed
- o VVPAT knob is horizontal (i.e. Transportation mode)
- o ~~DO NOT~~ connect VVPAT with BU and/or CU

Setting up of BU, CU & VVPAT at Polling Station

1. Place BU and VVPAT in actual Voting Compartment
2. Place CU on Table of Presiding Polling Officer (In-Charge CU), so that these are not moved after setting up or after mock poll.



3. Connect Cable of BU with VVPAT and Cable of VVPAT with CU



4. Un-lock (Working position i.e. Vertical position) paper roll knob of VVPAT



Conduct of Mock Poll

1. Show VVPAT slips compartment is empty
2. Switch ON the CU
3. Press TOTAL button and show '0' vote in CU
4. Cast atleast 50 votes and record manually on paper/register number of votes given to each candidate (ensure votes are recorded for each of the contesting candidates including NOTA)
5. After mock poll votes, press CLOSE button of CU
6. Thereafter, press RESULT button of CU to ascertain mock poll result and tally with manual record
7. Remove mock poll VVPAT slips from VVPAT compartment and tally with votes in CU.
8. Mock poll tallies ONLY if 6 & 7 above are both satisfied.
9. Press CLEAR button of CU to clear mock poll result from CU and show '0' vote to polling agents
10. Stamp mock poll VVPAT slips with stamp 'MOCK POLL SLIP'
11. Keep mock poll VVPAT slips in Black Envelope and then in Plastic Box and seal the box with Pink Paper Seal
12. Switch OFF the CU
13. Show empty drop box of VVPAT to polling agents and seal it. Ask polling agents to sign address tag.
14. Fill Mock Poll Certificate (Presiding Officer's Report- Part-I) carefully. Obtain signatures of all Polling Officers and Polling Agents on it.

Replacement Protocol for Mock Poll:

1. All 'ERROR' messages for BU, CU & VVPAT will be displayed on CU only. Please read message and act accordingly.
2. In case BU or CU or VVPAT not functioning, replace the respective unit only

Sealing of CU and VVPAT after Mock Poll

1. Seal the CU with Green Paper Seal, Special Tag, Address Tag and Outer Paper Strip Seal (ABCD seal) and obtain signatures of polling agents on them.



Fixing Green Paper Seal



Sealing inner Result Section with Special Tag



Sealing outer Result Section with Address Tag



Sealing with Outer Paper Strip Seal (ABCD Seal)



2. Seal the drop box of VVPAT with Address Tag and ask polling agents also to sign it.



Sealing of Drop Box of VVPAT with Address Tag

Start of Actual Poll

1. Switch ON the Control Unit
2. Press TOTAL button of CU to confirm Zero vote and show to polling agents

Replacement Protocol for Actual Poll:

1. All 'ERROR' messages for BU, CU & VVPAT will be displayed on CU only. Please read message and act accordingly.
2. In case CU shows Error "Replace VVPAT", switch OFF the CU and replace VVPAT. No MOCK POLL is required.
3. In case BU or CU not functioning, replace the whole set of BU, CU and VVPAT. In case of replacement of whole set, mock poll shall again be conducted by cast of 01 vote to each contesting candidates including NOTA

Closing of poll procedure

1. Press CLOSE button of CU
2. Press TOTAL button of CU to note total polled votes in CU
3. Switch OFF the CU
4. Disconnect cable of BU from VVPAT and VVPAT cable from CU
5. Remove Power Pack (Battery) from VVPAT
6. Keep BU, CU and VVPAT in the respective carrying case.
7. Seal each carrying case with Address Tag

Report on Arrangement at Strong Room

Name of State:

Name of District:

No. & Name of AC:

Address of Strong Room visited:

We have jointly visited the above mentioned strong room on.....All necessary arrangements at the strong room have been made for storage of polled EVMs & VVPATs pertaining to the ongoing General/Bye-election..... It is also submitted that Commissions instructions on storage of EVMs & VVPATs have been complied with. It is further certified that:

S. No.	Particulars	Status	If No, remarks thereon
1.	Whether strong room is spacious to accommodate all polled EVMs and VVPATs?	Yes/No	
2.	Whether strong room has single entry door and no unsealed window/ventilators?	Yes/No	
3.	Whether main switch of electric connection installed outside of the strong room to avoid electric short circuit?	Yes/No	
4.	Whether strong Room has double lock system?	Yes/No	
5.	Whether there is arrangement for uninterrupted power supply at the strong room locations ?		
6.	Whether keys of the locks of the strong room are kept as per ECI instructions No. 51/8/7/2018-EMPS, dated 13 th November, 2018?	Yes/No	
7.	Whether arrangement for installation of CCTV cameras at Strong room has been made?	Yes/No	
8.	Whether arrangement has been made for providing round the clock police security at strong room as per the norms prescribed by Commission vide letter no. 51/8/7/2018-EMPS, dated 29 th August, 2018?	Yes/No	
9.	Whether adequate arrangement for fire extinguisher has been made?	Yes/No	
10.	Whether alternate arrangement for lighting at strong room has been made?	Yes/No	
11.	Whether round the clock 02 tier security arrangements have been planned at the strong room having polled EVMs and VVPATs?	Yes/No	

12.	Whether arrangement for providing log book to CPF has been made to maintain details of visitors?	Yes/No	
13.	Whether arrangement for providing video camera to CPF has been made to record the visit of any permitted officials?		
14.	Whether there is provision for candidates representatives to stay outside the inner perimeter at a location which enables them to view entry point of the strong room?	Yes/No	
15.	If no direct view, whether CCTV arrangements have been planned to enable them to watch the main gate of the strong room?	Yes/No	
16.	Whether round the clock control room has been planned at the storage centre?	Yes/No	
17.	Whether candidates have been intimated in writing to depute their representatives to keep watch on the security arrangements of the strong room after the poll?	Yes/No	
18.	Whether you are satisfied with arrangements of strong room?	Yes/No	

Other remarks, if any:

(Signature of the Police Observer)

Name of Police Observer:

Police Observer Code:

No. & Name of AC/district allocated:

(signature of the General Observer)

Name of General Observer:

General Observer Code:

No. & Name of AC allocated:

Report on Arrangement at Counting Centre

Name of State:

Name of District:

No. & Name of AC:

Address of Counting Centre visited:

I have visited the above mentioned Counting Centre on All necessary arrangements at the Counting Centre have been made for counting of votes of the ongoing General/Bye-election..... It is also submitted that Commissions instructions on the arrangement at counting centre have been complied with. It is further certified that:

S. No.	Particulars	Status	If No, remarks thereon
1.	Whether Counting Hall is spacious to accommodate infrastructure, officials and counting agents?	Yes/No	
2.	Whether smooth flow of EVMs/VVPATs from the strong room to counting hall and vice versa has been made?	Yes/No	
3.	Whether adequate lighting with proper standby arrangements (generator etc.) has been made?	Yes/No	
4.	Whether 100 meter perimeter around the counting centre has been demarcated as 'Pedestrian Zone' and barricaded?	Yes/No	
5.	Whether 03 (three) cordoning security system has been made? [1 st (outer) cordon to start from pedestrian zone having adequate local police, 2 nd (middle) cordon at the gate of counting premises/campus manned by SAP and 3 rd (inner) cordon at the door of counting hall manned by CPF]	Yes/No	
6.	Whether proper barricade using transparent material/wire mesh for each counting table to prevent agents/candidates/counting agents etc. from handling polled EVMs has been made?	Yes/No	
7.	Whether one of the counting table inside the counting hall has been earmarked as VVPAT Counting Booth (VCB) for counting of VVPAT paper slips?	Yes/No	
8.	Whether VCB has been wire-mashed just like a Bank Cashier Cabin so that no VVPAT slips can be accessed by any unauthorised person?	Yes/No	
9.	Whether you have seen the complete mock drill of counting of VVPAT with atleast 500 VVPAT slips?	Yes/No	
10.	Whether you are satisfied with arrangements at Counting Centre?	Yes/No	

Other remarks, if any:

(signature of the General Observer)

Name of General Observer:

General Observer Code:

No. & Name of AC allocated:

(Register for Preparation of EVMs)**Name of State/UT:****Name of District:****Name of Assembly/Parliamentary Constituency:****Address of Preparation of EVM hall:****Date:**

S. No.	Name of candidate	Name of representative of candidates with party affiliation, if any	Identity document No. with date	Signature of candidates/ His representative	Remarks, if any.

Note: If a candidate or his representative is absent the proof of due service of notice to the candidate should be pasted in the register.

(Name and signature of engineers of BEL/ECIL with ID No.) (Name, designation, signature of officers nominated by District Election Officer)

Part-I

(Certification of EVMs by BEL/ECIL)

Name of State/UT:

Name of District:

Name of Assembly/Parliamentary Constituency:

Address of hall:

Date:

It is certified that tests prescribed by BEL/ECIL to ascertain that all components are original were carried out on the Balloting Unit listed below on.....(date). On the basis of these

tests it is certified that all components of the Balloting Unit listed below are original.

BU Identification No.

(Name & signature of BEL/ECIL engineers with ID No.)

Part-II

(Register for Sealing of Balloting Unit of EVMs using Pink Paper Seal) Name of State/UT:

Name of District:

Address of FLC hall:

Date:

It is certified that the sealing of the Balloting Units using Pink Paper Seals has been done in my presence. I have put my signature on the Pink Paper Seals after sealing of the Balloting Units and I am satisfied with the sealing of the Balloting Units.

Sl. No.	Unique ID No. of Balloting Unit	Pink Paper Seal Number

S. No.	Name of candidate	Name of political party with party affiliation, if any	Identity document No. with date	Signature of candidate/ his representative

INSTALLATION OF PAPER ROLL IN VVPAT

- a)** Open the Paper Roll compartment by opening the side latches and by lifting the top cover. Observe the Paper Roll Compartment which holds the Paper roll.
- b)** Remove “Spindle” from its position by pulling towards upward direction.
- c)** Insert “Spindle” into “Thermal Paper Roll”.
- d)** Place the “Thermal Paper Roll” with “Spindle” into its position (i.e Paper Roll compartment) and press it towards down.
- e)** Insert “Thermal Paper Roll” edge into the “Guide -Paper Entry”. Ensure that the plain paper should be on the top surface and the printed band should be on the lower Surface of the Paper.
- f)** Move the paper into the slot by rotating the paper feed knob clock wise.



Paper Roll Installation steps

(Mock Poll certification during Preparation of EVMs)**Date:.....****Name of State/UT:****Name of District:****Name of Assembly/Parliamentary Constituency: Address of hall:**

It is certified that during commissioning of EVMs and VVPATs, mock poll of 1000 votes have been cast on 5% randomly selected EVMs, as well as VVPATs. The electronic result tallied with paper count, picked up by me. There are no discrepancies between the votes polled during the mock poll.

S.No.	Name of candidate	Name of representative of candidate with party affiliation, if any	Identity document No. with date	Signature of candidate/his representative	Remark, if any.

Voting Compartment – Dimensions & Cascading of Balloting Units
ON ONE SIDE - FACING THE WEB CAMERA



Name of State/UT:

AC/PC Name:

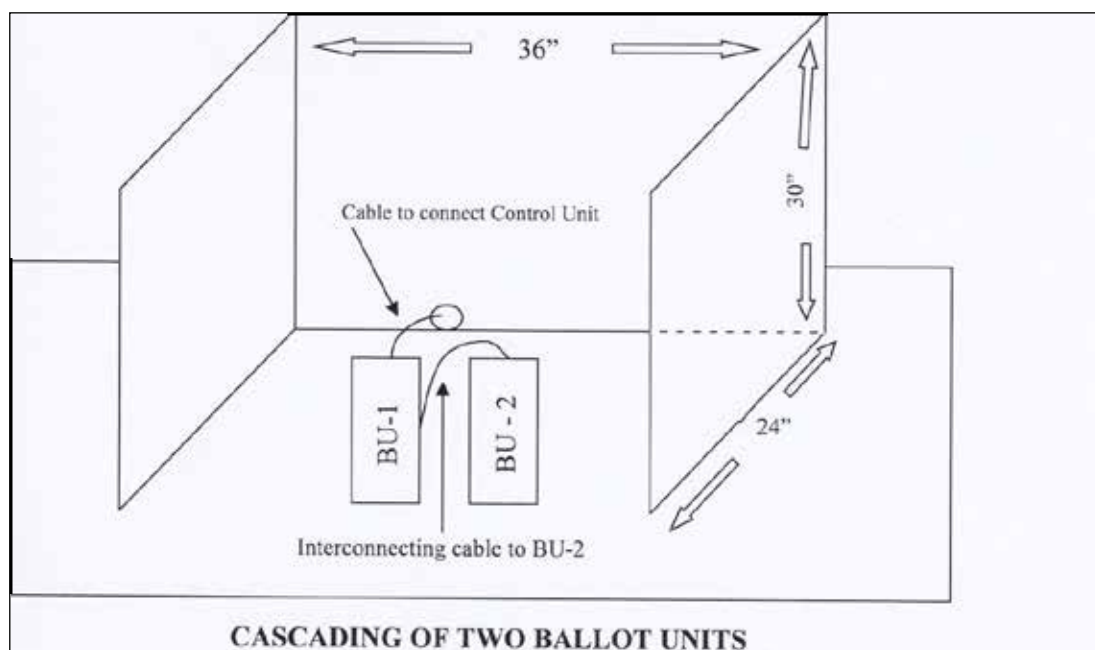
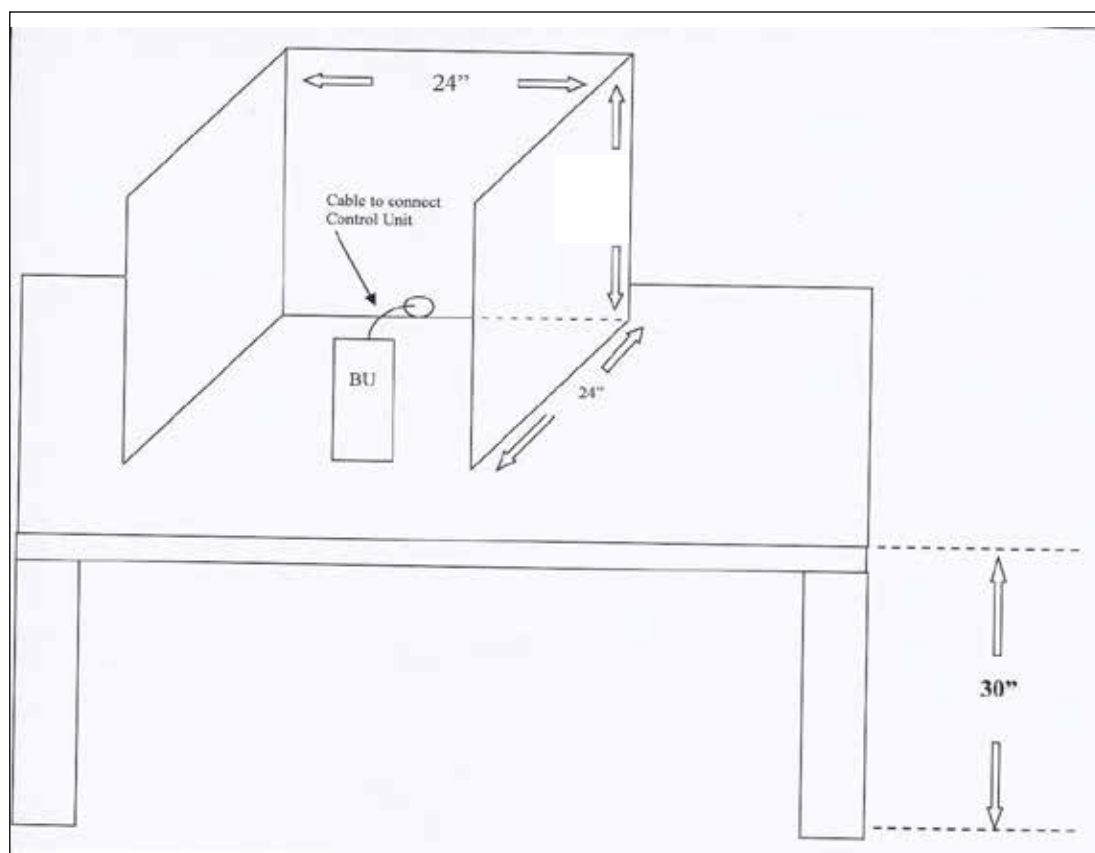
AC/PC Number: Date of Poll:

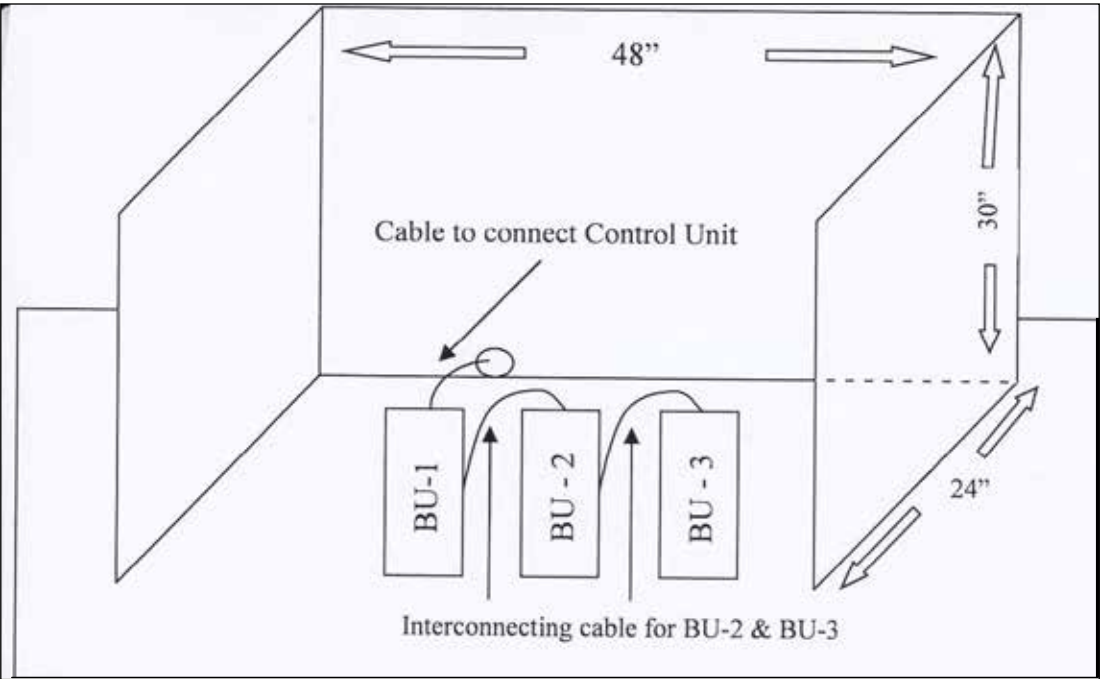
Polling Station Name:

Polling Station Number:

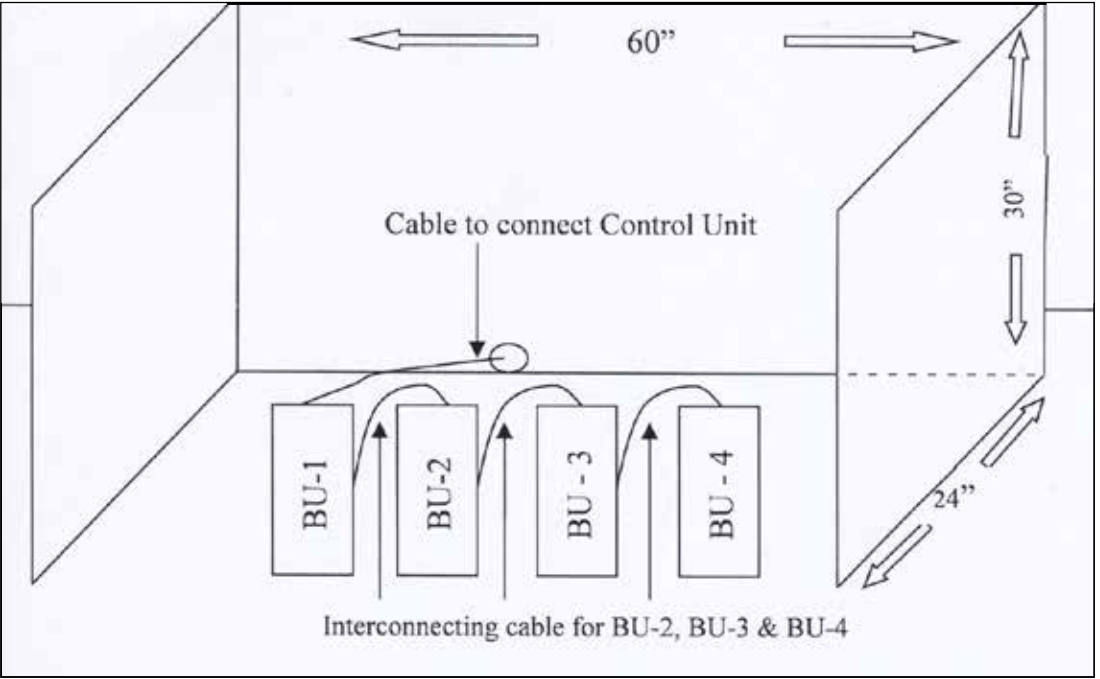
ON REMAINING TWO SIDES OF THE VOTING COMPARTMENT


भारत निर्वाचन आयोग
मतदान कम्पार्टमेंट
ELECTION COMMISSION OF INDIA
VOTING COMPARTMENT





CASCADING OF THREE BALLOTING UNITS



CASCADING OF FOUR BALLOTING UNITS

PRESIDING OFFICER'S REPORT**PART-I : MOCK POLL****(TO BE FILLED BEFORE COMMENCEMENT OF ACTUAL POLL)**

1. Name of the constituency (in block letters): *To be pre-printed*
2. Date of poll: *To be pre-printed*
3. Number and Name of the polling station:
4. (a) Details of Electronic Voting Machine and VVPAT used-

(BU- Balloting Unit, CU- Control Unit and VVPAT- Voter Verifiable Paper Audit

S. No.	Particulars	BU	CU	VVPAT	Signature of Sector Officers in case of replacement
1	Unique ID of units given at the time of dispersal				
2	(a) Tick (✓) which one found non-functional during mock poll				
	(b) Reason for non-functioning (mention error/ code noticed in CU)				
3	Unique ID of unit(s) given as replacement during mock poll				

(b) Following polling agents witness the replacement process:

S. No.	Name of Polling Agent	Name of Party	Name of Candidate	Signature of Polling Agent

(Signature of Presiding Officer)

5. Mock poll details –

(a) Conduct of mock poll and verification of mock poll data

S. No.	Name of the Candidate	Number of votes cast during mock poll	Number of votes displayed in CU on checking the result	Number of VVPAT printed Paper slips against candidates	Result displayed in CU & Printed Paper Slips count tallied with each other (YES/ NO)	Signature of polling agents with party abbreviation
1.						
2.						
3.						
4						
5						
6						
7						
8						
9						
10						
11						
12						
13						
14						
15						
	NOTA					
	TOTAL					

Repeat the above information in same format, if number of candidates more than 16.

- (c) ‘CLEAR’ button on the Control Unit has been pressed to clear mock poll data (Yes/No) If Yes, then write the above sentence in ink.

.....

- (d) All paper slips taken out from VVPAT after mock poll (Yes/No)
- (e) Empty VVPAT shown to all polling agents (Yes/No)
- (f) Before actual poll ensure that no printed paper slip is in VVPAT Drop Box and shown to polling agents (Yes/No)
- (g) ‘TOTAL’ button on the Control Unit has been pressed to shown total vote ‘0’ to polling agents (Yes/No)

- (h) Mock poll VVPAT slips stamped with 'MOCK POLL SLIP' and sealed in black envelope/ biodegradable opaque plastic pouch and then sealed in plastic box with Pink Paper Slip (Yes/ No)
- (i) Following witness Mock Poll and certify that mock votes tallied and that the mock votes erased from CU after mock poll:

S. No.	Name of Polling Agent	Name of Party	Name of Candidate	Signature of Polling Agent

- (j) Signature of Micro-Observer (if posted at the polling station)

Name and signature of the Presiding Officer

- (k) It is, hereby, certify that before commencement of actual poll, 'TOTAL' button of the Control Unit has been pressed in the presence of all polling officials to ensure that '**Total Vote is 0**'. Tick the appropriate observation:

- (i) Control Unit shows total vote '0'

OR

- (ii) Control Unit shows total vote more than '0' (means mock poll votes not cleared), hence, clear the mock poll data.

(Signature of Presiding Officer)

Following witness the above process and certify that mock votes erased from the Control Unit and mock poll VVPAT slips removed from the VVPAT before start of actual poll:

S. No.	Name of Polling Officer	Signature

PRESIDING OFFICER'S REPORT**PART-II : EVM/VVPAT REPLACEMENT**

**(TO BE FILLED DURING POLL & AFTER COMPLETION OF POLL
DEPENDING ON CASE/SITUATION)**

Name of election:..... (to be pre-printed)

No. and Name of AC/AS: (to be pre-printed)

No. and Name of PC: (to be pre-printed)

Polling Station No:.....

(a) Replacement of EVM and VVPAT during actual poll process

S. No.	Particulars	BU	CU	VVPAT
1	(a) Unique ID of unit(s) found non-functional during actual poll			
	(b) Time of occurrence of defects			
	(c) No. of votes recorded in the Control Unit by the time the unit(s) got non-functional			
	(d) Reason for non-functioning (mention error/ code noticed in CU)			
	(e) Unique ID of new unit(s) provided as replacement			
	(f) Time of re-starting poll			
2	Remarks, if any			

(b) Following polling agents witness the replacement process during actual poll:

S. No.	Name of Polling Agent	Name of Party	Name of Candidate	Signature of Polling Agent

Repeat the above information in same format, if multiple replacements happen.

Signature of Presiding Officer

Signature of Sector Officer

PRESIDING OFFICER'S REPORT

PART-III : POWER PACK REPLACEMENT IN CU

**(TO BE FILLED DURING MOCK POLL, POLL & AFTER COMPLETION OF
POLL DEPENDING ON CASE/SITUATION)**

Name of election:..... (to be pre-printed)

No. and Name of AC/AS: (to be pre-printed)

No. and Name of PC: (to be pre-printed)

Polling Station No:.....

(a) Details of replacement of Power Pack of the Control Unit during mock poll/actual poll
(strike out which one is not applicable)

(i) Unique ID of Control Unit:.....

(ii) Reason for replacement of Power Pack of the Control Unit:.....
.....

(iii) Unique ID of old address tag that was cut by the Presiding Officer to replace the Power
Pack of the Control Unit:.....

(iv) Unique ID of new address tag used by the Presiding Officer to seal the Battery Section
of the Control Unit:.....

(b) Following polling agents witness the replacement of power pack from the Control Unit:

S. No.	Name of Polling Agent	Name of Party	Name of Candidate	Signature of Polling Agent

Repeat the above information in same format, if multiple replacements happen.

Signature of Presiding Officer

Signature of Sector Officer

HANDLING OF CU-BU-VVPAT FAILURES/ERRORS DURING POLL PREPARATION OF POLLING OFFICIALS FOR FAULT HANDLING-SUGGESTIONS

Certain contingencies may arise during the polling process which may require certain actions. These are as follows: -

- a. In case the CU or the BU does not work properly:** (i) Switch off the CU and don't switch it on again (ii) Replace the complete set of EVM and VVPAT by another set of BU, CU and VVPAT (iii) **However, in such case only one vote to each contesting candidate including NOTA should be polled in the mock poll.** (iv) Continue the poll with the new EVM set, after clearing mock poll data and printed paper slips from VVPAT Drop Box.
- b. In case Display Panel of the CU displays "Link Error":** (i) Check that the cable connections are proper by visual inspection (don't remove and reconnect the connectors); (ii) If "Link Error" still persists, replace the complete set of EVM and VVPAT.
- c. In case the printed paper slip has not been cut and is hanging from the paper roll:** Replace the Printer, but no effort should be made to make it fall into the drop box. It should be allowed to remain hanging, as it is not to be counted at the time of counting of the ballot slips. The details of such an occurrence should be clearly recorded in the Presiding Officers diary in the following format:
 - i.** The date and time of the occurrence.
 - ii.** The name of the voter and his serial number in part in the electoral roll who was allowed to cast his vote after replacement of VVPAT.
 - iii.** Whether the voter cast his vote after replacement of VVPAT or went away without casting his vote.
 - iv.** The Total number of votes cast before the occurrence.
- d. In case a voter alleges after recording his vote that the printed paper slip generated by the printer has shown the name or symbol of a candidate other than the one he voted for:** Action should be taken as per provisions of Rule 49MA of the Conduct of Elections (Amendment) Rules, 2013:
 - (i) Obtain a declaration from the complainant in the Declaration Form (**Annexure-23**) under his/her signature/thumb impression; (ii) Proceed to the voting compartment along with the complainant and polling agents present in the polling station at that moment; (iii) The voter shall be asked to cast a test vote in favour of any candidate and make second entry related to that elector in the Form-17A; (iv) Observe carefully whether the Printer has printed the paper slip correctly; (v) If the complaint of the elector is found genuine, the Presiding Officer shall report the facts immediately to the RO and stop further polling at the station; (vi) If the complaint of the elector is found false, make a remark to that effect against the second entry relating to that elector in Form-17A mentioning the serial number and name of the candidate for whom such test vote has been recorded and obtain the signature or thumb impression against such remark. Further make necessary entries regarding such test vote in item 5 in Part-I of Form-17-C.

General/Bye-Election to.....

Sl. No. and Name of Parliamentary/Assembly Constituency.....

No. and Name of Polling Station.....

FORM OF DECLARATION BY ELECTOR

UNDER RULE 49MA OF CONDUCT OF ELECTIONS RULES, 1961

1. I hereby solemnly declare and affirm under sub-rule (1) of Rule 49 MA of the Conduct of Elections Rules 1961 that the paper slip generated by the printer attached to the Balloting Unit has shown the name and/or symbol of a candidate other than the candidate for whom I voted by pressing the concerned blue button against the name and symbol of the candidate of my choice on the Balloting Unit. I am ready to cast a test vote again to show that the allegation made by me is true and bonafide.
2. I am aware of the penal provisions of Section 177 of the IPC that I shall be liable to be punished with imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both, if the declaration given by me in para 1 above to the Presiding Officer appointed under Section 26 of the RP Act, 1951 is found to be incorrect.

Signature/Thumb impression of the Elector Name of the Elector.....

Father/Mother/Husband's Name

Part No. of elector roll

Sl. No. of elector in that Part

Sl. No. in Register of Voters (Form 17A)

Dated

Certified that the above declaration was made and subscribed by the elector above named before me.

Signature of the Presiding Officer

..... Dated.....

CHECK LIST OF ADDITIONAL ITEMS OF POLLING MATERIALS TO BE PROVIDED TO THE POLLING PARTY

- | | | |
|---|---|-----------|
| 1. Voter Verifiable Paper Audit Trail (VVPAT) Printer Unit | : | 1 No. |
| 2. Carrying Case for the VVPAT system | : | 1 No. |
| 3. Envelope made of thick black paper
(For sealing printed paper slips of Mock Poll) | : | 2 Nos. |
| 4. Plastic Box for Black Paper Envelope Sealing | : | 1 No. |
| 5. Pink Paper Seal for sealing Plastic Box | : | 2 Nos. |
| 6. Form of declaration by elector under rule 49MA
of the Conduct of Elections Rules | : | 10 copies |
| 7. Small roll of half inch width transparent cello tape
(For securing connecting cable to leg table) | : | 1 No. |

(Report on getting result data from Control Unit whose CLOSE button was not pressed by Presiding Officer at the end of poll)**Name of State/UT :****Name of District :****Name of election :****Number & Name of Assembly/Parliamentary Constituency :****Date of Counting :**

It is certified that the result has been obtained from the following Control Unit(s) after pressing CLOSE button in the presence of the contesting candidates/their counting agents. The result of the election has been declared taking into consideration the result from this machine as well.

Sl. No.	Polling Station No.	Unique ID No. of Control Unit	Detailed Report	No. of votes polled in the Control Unit as per Form 17C

Final statement showing votes polled by the winning and runner up candidates

S.No.	Name of candidate	Party affiliation, if any	Votes polled

(Name & Signature of Returning Officer)

(Name & Signature of Observer)

**(Report on discrepancy in total votes shown in the Control Unit whose
CLOSE button was not pressed by Presiding Officer at the end of
poll and as mentioned in Form 17-C)**

Name of State/UT:

Name of District:

Name of election:

Number & Name of Assembly/Parliamentary Constituency:

Date of Counting:

It is certified that the discrepancy has been noticed in the total votes polled in the following Control Unit(s), after pressing TOTAL button of the Control Unit and comparing it with the total votes polled mentioned in Form17-C.

Sl.No.	Polling Station No.	Unique ID No. of Control Unit	No. of votes polled displayed by Control Unit on pressing TOTAL button	No. of votes polled in the Control Unit as per Form 17C	Remarks

Final statement showing votes polled by the winning and runner up candidates

S. No.	Name of candidate	Party affiliation, if any	Votes polled

As the margin of votes between the candidate having highest votes and the runner up is more than the votes polled mentioned in the Form17 C relating to the Control Unit(s) mentioned above, the matter is being referred to the Commission for permission to set aside the votes polled in the said Control Units (s) and to declare the result.

(Name & Signature of Returning Officer)

(Name & Signature of Observer)

(Report on discrepancy in total votes shown in the Control Unit whose CLOSE button was not pressed by Presiding Officer at the end of poll and as mentioned in Form 17-C)

Name of State/UT:

Name of District:

Name of election:

Number & Name of Assembly/Parliamentary Constituency:

Date of Counting:

It is certified that the discrepancy has been noticed in the total votes polled in the following Control Unit(s), after pressing TOTAL button of the Control Unit and comparing it with the total votes polled mentioned in Form17-C.

Sl. No.	Polling Station No.	Unique ID No. of Control Unit	No. of votes polled displayed by Control Unit on pressing TOTAL button	No. of votes polled in the Control Unit as per Form 17C	Remarks

As the margin of votes between the candidate having highest votes and the runner up is less than the votes polled mentioned in the Form 17C relating to the Control Unit(s) mentioned above, the matter is being referred to the Commission for appropriate orders.

Statement showing votes polled by the candidates having highest voters and runner up

S. No.	Name of candidate	Party affiliation, if any	Votes polled

(Name & Signature of Returning Officer)

(Name & Signature of Observer)

Mandatory verification of paper slips of VVPAT of 01 randomly selected polling station

Name of State/UT:.....

No. and Name of Assembly/Parliamentary Constituency:.....

No. and Name of Assembly Segment (in case of PC):.....

Sl. No. and name of Polling Station:.....

Unique ID of Control Unit:.....

Unique ID of VVPAT:.....

It is certify that testing of counting of paper slips of VVPAT of 01 randomly selected polling station has been conducted as per the instructions of the Commission.

Name of Candidate	No. of Votes Cast		Discrepancy if any
	As per EVM	As per Paper Slips	
1.			
2.			
3.			
--			
-- NOTA			
TOTAL VOTES			

Signature of Counting Agents 1.....

2.....

3.....

Signature of Counting Supervisor

Signature of Returning Officer

Signature of General Observer

**Mandatory verification of paper slips of VVPAT of 05 randomly
selected polling stations**

(To be sent to the Commission through the Zonal Secretary concerned)

Name of State/UT:.....

No. and Name of Assembly/Parliamentary Constituency:.....

No. and Name of Assembly Segment (in case of PC):.....

Sl. No. and name of Polling Station:.....

1.

2.

3.

4.

5.

It is certify that the entire process of mandatory verification of counting of paper slips of VVPAT of randomly selected 05 polling stations has been conducted under my close and direct oversight with strict compliance of the Commission's instructions.

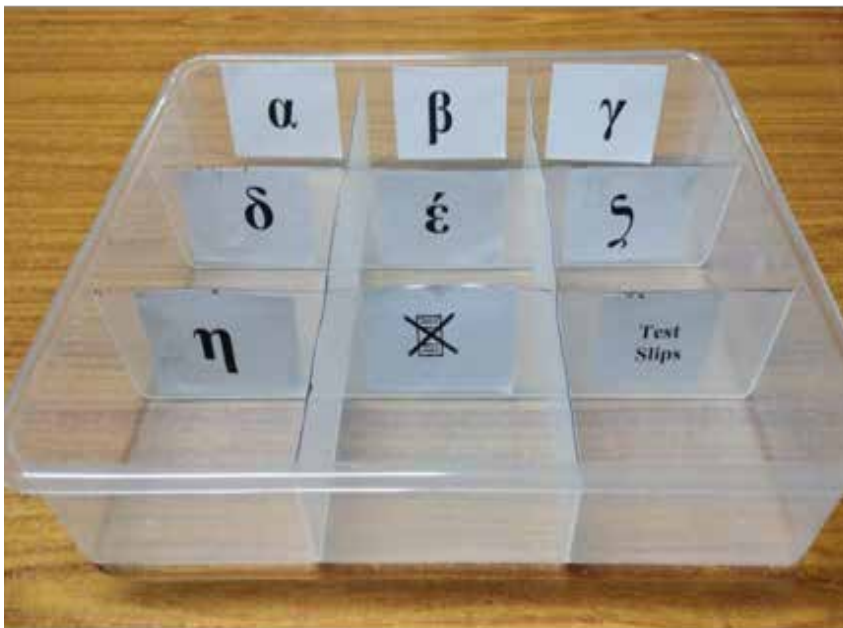
-Signature-

(Name of ECI Observer)

Observer Code:.....



Sample Container -14 inch X 10 inch X 5 inch (length X breadth X height)



Sample Pigeonholes (Size of each compartment 6 inch X 4 inch X 4 inch)

ANNEXURE TO PART-II OF FORM 17-C**RESULT OF PRINTED PAPER COUNT****Polling Station No** _____ **Total number of VVPATs used:** _____**Unique ID of VVPAT:** _____

Sl.No. of candidate	Name of candidate	Number of votes as per count of Printed Paper Slip of VVPAT	Number of test votes to be deducted as per item 5 of Part I	Number of valid votes. (3-4)
(1)	(2)	(3)	(4)	(5)

1.

2.

3.

4.

5.

6.

Total

Whether the total number of votes shown above tallies with the total number of votes shown against item 6 of Part I or any discrepancy noticed between the two totals.(YES/NO)

Place.....

Date.....

Signature of Counting Supervisor

Name of candidate/election agent/counting agent

Full signature

1.

2.

3.

4.

5.

6.

7.

Place.....

Date.....

Signature of Returning Officer

FORM 17 C

[See rules 49S and 56C(2)]

PART I – ACCOUNT OF VOTES RECORDED

Election to House of the People/Legislative Assembly of the State/Union Territory
.....from.....constituency.

Number and Name of Polling Station:

Identification Number of voting Control Unit.....

Machine used at the Polling Station: Balloting Unit.....

Printer (if used).....

1. Total number of electors assigned to the Polling Station
2. Total number of voters as entered in the Register for Voters (Form17A)
3. Number of voters deciding not to record votes under rule49-O
4. Number of voters not allowed to vote under rule49M
5. Test votes recorded under rule 49MA (d) required to be deducted-
 - (a) total number of test votes to be deducted: Total No. Sl.No.(s) of elector(s) in Form17A
.....
 - (b) Candidate(s) for whom test vote(s)cast: Sl.No. Name of candidate No .of
votes

6. Total number of votes recorded as per voting machine:.....
7. Whether the total number of votes as shown against item 6 tallies with the total number of votes as shown against item 2 minus numbers of voters deciding not to record votes as against item 3 minus number of voters as against item 4(i.e. 2-3-4) or any discrepancy noticed:.....
8. NumberofvoterstowhomtenderedBallotpaperswereissuedunderrule49P:.....
9. Number of tendered Ballot papers: Sl.No.

Total	From	To
(a) received for use		
(b) issued to electors		
(c) not used and returned		
10. Account of papers seals

Signature of polling agents

1. Paper seals supplied for use: Total No..... 1.....
Sl.No. from..... To.....

2. Paper seals used: Total No..... 2.....
Sl.No. from..... To

3. Unused paper seals returned to
Returning Officer: Total No..... 3.....
Sl.No. from..... To.....

4. Damaged paper seal, if any: Total No..... 4.....
Sl.No. from..... To.....

Date..... 5.....

Place..... 6.....

Signature of Presiding Officer
Polling Station No.....

PART II- RESULT OF COUNTING

Sl. No. of candidate	Name of candidate	Number of votes as displayed on control unit	Number of test votes to be deducted as per item 5 of Part I	Number of valid votes. (3-4)
(1)	(2)	(3)	(4)	(5)

- 1.
- 2.
- 3.
- 4.
- 5.
- 6.

Total

Whether the total number of votes shown above tallies with the total number of votes shown against item 6 of Part I or any discrepancy noticed between the two totals.

Place.....

Date.....

Signature of Counting Supervisor

Name of candidate/election agent/counting agent

Full signature

- 1.
- 2.
- 3.
- 4.
- 5.
- 6.
- 7.

Place.....

Date.....

Signature of Returning Officer

Appointment of Officer for shredding VVPAT slips

It has been confirmed that no EP/Court Case is pending with regard to election _____
(Name of Election).

I hereby nominate Smt./Sh.....(name and designation),
Officer incharge responsible

to shred VVPAT Paper slips pertaining to mock poll and actual poll_____(Name of
election).

The Officer shall submit a certificate that all VVPAT paper slips pertaining to mock poll and
actual

poll of(name of election) have been shredded by using Paper Shredding
Machine in

his/her presence, within 7 days of issuing of this order.

By Order,

(District Election Officer)

Name of District:.....

Certificate

I,....., District Election Officer,....., hereby, certify that all the VVPAT paper slips pertaining to mock poll and actual poll of(name of election), which are not involved in any Election Petition or Court Case, have been shredded out as per Commission's letter No. 51/8/VVPAT/2019-EMS, datedSeptember, 2019.

I, further certify that all the VVPAT paper slips pertaining to mock poll and actual poll of (name of election, if any), which are involved in Election Petition..... or Court Case, have been kept, as per the Commission's instructions.

(District Election Officer)

Name of District:.....

Certificate

I, hereby, certify that certificates regarding disposal of all the VVPAT paper slips pertaining to mock poll and

actual poll of(name of election), which are not involved in any Election Petition or Court Case, have been received from all District Election Officers in the State.

VVPAT paper slips pertaining to mock poll and actual poll of(name of election) of the following district(s), have not been disposed of due to pendency of Election Petition or Court Case:

- 1.....
- 2.....
- 3.....

(Chief Electoral Officer)

Name of State/UT:.....

FOR SECTOR OFFICERS/ZONAL MAGISTRATE ect.

- a) Name of election:.....
- b) No. and Name of Parliamentary / Assembly Constituency:
- c) No. and Name of Parliamentary Constituency:
- (In case of Parliamentary Constituency)

(To be filled at the time of dispersal)

- a) Name of Sector Officer/Zonal Magistrate:.....
- b) Cell No.:
- c) Polling Station Nos assigned :
- d) Date and Time of receiving Reserve EVMs/VVPATs.
- e) Details of reserve EVMS and VVPATs provided

Sl. No.	Unique ID of BU	Unique ID of CU	Unique Id of VVPAT

(To be filled on Poll day)

- (a) At the time of mock poll on poll day

Sl. No.	No. and name of Polling Station	Unique ID of units replaced at polling station			Unique ID of units provided to polling station			Sign of the Presiding Officer
		Unique ID of BU	Unique ID of CU	Unique ID of VVPAT	Unique ID of BU	Unique ID of CU	Unique ID of VVPAT	

- (b) At the time of actual poll on poll day

Sl. No.	No. and name of Polling Station	Unique ID of units replaced at polling station			Unique ID of units provided to polling station			Sign of the Presiding Officer
		Unique ID of BU	Unique ID of CU	Unique ID of VVPAT	Unique ID of BU	Unique ID of CU	Unique ID of VVPAT	

(c) At the time of deposition of EVMs and VVPATs at Reception Centre

(i) Date and Time of Deposition of the Reserve EVMs/ VVPATs.....

(ii) Detail of unused/defective unused EVMs and VVPATs deposited at reception centre

Sl. No.	Unique ID of BU	Unique ID of CU	Unique Id of VVPAT

It is certified that the above information is correct.

(Signature)

Name of Section Officer

Designation

It is certified that I have received the unused/defective unused EVMs and VVPATs as mentioned above from the Sector Officer (Name)

(Signature)

Name of RO/ ARO

CERTIFICATE

I (name), Returning Officer of (No. and name of AC/PC) of..... (district) in..... (State/UT) for the election to (General/Bye-election to AC/PC) hereby certify that all the unused reserve EVMs and VVPATs and defective unpolled EVMs and VVPATs in respect of my AC/PC have been received from all the Sector Officer, the number tallied and accounted for and all these units have been safely stored in the earmarked strong-rooms, as per the extant instruction of the Commission.

(Signature)

Name of RO

Date:

Place:



भारत निर्वाचन आयोग
Election Commission of India
Nirvachan Sadan, Ashoka Road, New Delhi - 110001

"No Voter to be left behind"